

THE TREATISE OF
LORENZO VALLA ON THE
DONATION OF CONSTANTINE
TEXT AND TRANSLATION
INTO ENGLISH



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*** START OF THE PROJECT GUTENBERG EBOOK THE TREATISE
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**THE TREATISE OF
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~~559~~

Plures a me libri: Compluresq' erigsi sunt in omni fere doctrinae
 genere: In quibus q' a nonnullis magnisq' et longe iam quo probatis
 auctoribus dissentio cum sint: qui indigna ferant: meq' ut
 Tertiarium sacrilegumq' criminantur: quid tandem nunc
 facere quidem putandi sunt: quantopere in me debacchari?
 et si facultas daretur: q' unde me ad supplicium festinaretq'
 raptus: qui nō tantum aditus mortuos serido: sed aditus et
 vivos: nō in unum: alterumne: sed in plurimos me contra
 primos modo: utiq' et contra Magistratus. At quos Magistratus?
 Hic ergo summum Pontificem: qui non Temporalis solū armatus
 est gladio regum ac principum more: sed Pontificali quoq' ut
 ab eo nōq' subter ipso: ut sic loquar. Clipem alicuius principis
 protegere se possis: quo minus executionem: anathematis
 execrationem feriant: et si prudenter: ut dixit: sic fecisse
 existimatus est: qui inquit: Nolo scribere in eos qui possunt
 proscribere: q' mihi magis idem faciendum esse videatur
 in eum: qui ut proscriptio quidem relinquit locum: quāq'
 iniuriabilis me potestatis sine faculis persequatur: ut sum
 possim dicere: Ego ibo a spiritibus: spiritus tuo et quo a tua
 fugiam facie: nisi forte putatus patientius hoc esse latens
 sum. Pont. q' ceteri facerent. Nihil minus si quidem
 paulo q' bona se conscientia quersatum esse diceret. Naamias
 princeps sacerdotum Coram Tribuno: qui iudex sedebat iussit
 os verberari: Et Phasus eadem gradibus dignitate premium
 ob loquendi libertatem coniecit in Carcerem: sed illi Tribunus:
 ac praeses. hunc Rex aditus iniuriam Pontificis Tutari et
 potuit et voluit. Me vero quis Tribunus: quis praeses: quis
 Rex e manibus sum. sacerdos. Si me rapuerit ille et: ut
 velit tricare poterit: ut nō est causa: Cur me duplex
 hic periculi Terror conturbet: arceatq' a proposito. Nam
 neq' Contra sum: Insaq' sum Pontifex licet aut ligari quampis:
 aut solvere. Et in defendenda veritate atq' iustitia p'fundere
 aiam sume virtutis: sume laudis: summi praeij est. An vero
 multi ob Terrastram patriam defendendam mortis adire
 discrimin? Ego ob Coelestem patriam assignandam: assignantur
 autem tam qui deo placent: nō qui hominibus: mortis discrimin?

The First Page of Vallā's Treatise,

Codex Vaticanus Latinus 5314.

*The First Page of Valla's Treatise,
Codex Vaticanus Latinus 5314.*

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INTRODUCTORY

The Donation of Constantine—the most famous forgery in European history; papal authority—since the triumph of Christianity the most perennial question of European society; historical criticism—one of the most comprehensive, most alluring, and most baffling enterprises of the modern mind; Lorenzo Valla—the greatest of the professional Italian humanists; these lines of study have converged, accidentally perhaps, to call forth the following pages. Much of the subject matter which might properly form their introduction I have already treated more fully in an earlier work, [\[1\]](#) and a brief statement will suffice here.

The Donation of Constantine (*Constitutum Constantini*), written probably not long after the middle of the eighth century, became widely known through its incorporation in the Pseudo-Isidorian Decretals (about 847-853). Parts of it were included in most of the medieval collections of canon law; Anselm's, Deusdedit's, and Gratian's great work (the *Decretum*, or *Concordia discordantium canonum*). It purports to reproduce a legal document in which the Emperor Constantine the Great, reciting his baptism and the cure of his leprosy at the hands of Sylvester, Bishop of Rome 314-336, confirmed the privilege of that pontiff as head of all the clergy and supreme over the other four patriarchates; conferred upon him extensive imperial property in various parts of the world, especially the imperial Lateran palace, and the imperial diadem and tiara, and other imperial insignia; granted the Roman clergy the rank of the highest Roman orders and their privileges; gave Sylvester and his successors freedom in consecrating men for certain orders of the clergy; it tells how he, Constantine, recognized the superior dignity of the Pope by holding the bridle of his horse; grants Sylvester Rome, all of Italy, and the western provinces, to remain forever under the control of the Roman See; and states his own determination to retire to Byzantium in order that the presence of an earthly emperor may not embarrass ecclesiastical authority. This remarkable document was almost universally accepted as genuine from the ninth to the fifteenth century.

The question of the position of the bishop of Rome in the Christian Church lacks but a few generations of being as old as Christianity itself. His relation to secular governments became an acute problem as soon as the imperial government broke down in Italy, and has remained so to the present moment. For centuries the Papacy was the strongest institution in western Europe. While its control at any one time rested principally on the power it actually possessed and on the ability of its representatives, legal theories and historical documents played a not inconsiderable part in its rise and decline. Of these documents the Donation of Constantine was perhaps the most spectacular, even though it was not the most important. It was cited by no less than ten Popes of whom we know, to mention no lesser writers, in contentions for the recognition of papal control, and contributed not a little to the prestige of the Papacy. On the other hand, when its spuriousness became known, the reaction against it, as in Luther's case, contributed powerfully to the revolt from Rome. Its century-long influence entitles it to a respect difficult for any one who now reads it to feel. And Valla's discussion of it contains many interesting reflections on the secular power of the Papacy, perhaps the most interesting expression in this connection of fifteenth century Italian humanism.

Among the achievements of modern historical criticism Valla's work was a conspicuous pioneer. Its quality and its importance have often been exaggerated, and as often underestimated. It is some satisfaction to make it more generally available in the original text and translation, so that the reader may judge for himself. A critical appraisal would have to take into account that Nicholas Cusanus some seven years earlier in his *De concordantia catholica* covered part of the same ground even better than Valla did, and anticipated some of his arguments. But Valla's treatise is more exhaustive, is in more finished and effective literary form, and in effect established for the world generally the proof of the falsity of the Donation. Moreover, for the first time, he used effectively the method of studying the usage of words in the variations of their meaning and application, and other devices of internal criticism which are the tools of historical criticism to-day. So, while Valla's little book may seem slight beside later masterpieces of investigation and beside systematic treatises in larger fields, it is none the less a landmark in the rise of a new science. I speak from personal experience in adding that it is still useful in college classes in promoting respect for, and development in, critical scholarship.

As to Valla himself the words of Erasmus will bear repetition; “Valla, a man who with so much energy, zeal and labor, refuted the stupidities of the barbarians, saved half-buried letters from extinction, restored Italy to her ancient splendor of eloquence, and forced even the learned to express themselves henceforth with more circumspection.”^[2] The Italian Renaissance is much extolled among us,—and so little known. A short time ago diligent search revealed no copy of Valla’s works in the United States, and many of the larger libraries had none of his separate writings. The same is doubtless true in the case of other great names in the Renaissance. Meanwhile, there are those whose profession it is to teach European history and who are utterly unacquainted with medieval and later Latin.

The best life of Valla is that by Girolamo Mancini.^[3] There is no satisfactory account of him in English.

Valla wrote his Discourse on the Forgery of the alleged Donation of Constantine (*Declamatio de falso credita et ementita donazione Constantini*, also referred to as *Libellus*, and *Oratio*) in 1440, when he was secretary to Alfonso, king of Aragon, Sicily, and Naples. It may well be considered as part of the campaign which that king was conducting against Pope Eugenius IV in furtherance of his claims to Italian territories.

There has hitherto been no satisfactory text of this treatise. The first printed edition, that of Ulrich von Hutten, in 1517, is excessively rare, and it, as well as its numerous reprints, is defective in places. The same is true of the text in the collected works of Valla, the *Opera*, printed at Basle, 1540, 1543 (?). The only English edition, by Thomas Godfray (London, 1525?), is rare and of no great merit. A modern French edition by Alcide Bonneau (*La Donation de Constantin*, Paris, 1879) gives the text with a French translation and a long introduction. It is based on the 1520 reprint of Hutten’s edition, is polemical, uncritical, and admittedly imperfect. A modern edition with translation into Italian (*La dissertazione di Lorenzo Valla su la falsa e manzognera donazione di Costantino tradotta in Italiano da G. Vincenti*, Naples, 1895) is out of print.

My text is based on the manuscript Codex Vaticanus 5314, dated December 7, 1451, the only complete manuscript of the treatise I have been able to find. I have collated this with Hutten’s text as found in one of the earliest, if not the earliest, reprint (contained in the little volume *De*

Donatione Constantini quid veri habeat, etc., dated 1520 in the Union Theological Seminary library copy, but corresponding closely to the one dated 1518 in E. Böcking's edition of the works of Ulrich von Hutten, vol. I, p. 18), and have occasionally used readings from Hutten's text or later ones, such as that of Simon Schard,^[4] but in every instance I have indicated the MS. reading. I have used uniform, current spelling and punctuation, and have used my own judgment in paragraphing.

Preceding Valla's treatise I reprint, with a translation, the text of the Donation as given, with the omission of long sections, in Gratian's *Decretum*, or *Concordia discordantium canonum*, which was the form Valla used and on which he based his criticism. I take it from A. Friedberg's edition of the *Corpus Iuris Canonici*, vol. I, columns 342-345. The full text of the Donation is best given by Karl Zeumer, in the *Festgabe für Rudolf von Gneist* (Julius Springer, Berlin, 1888), pp. 47-59, reprinted among other places in my *Constantine the Great and Christianity*, pp. 228-237. The document may be studied to advantage also in the *Decretales Pseudo-Isidorianae et Capitula Angilramni*, ed. Hinschius (Leipsic, 1863). An English translation, from Zeumer's text, is in E. F. Henderson's *Select Historical Documents of the Middle Ages*, pp. 319-329.

In the translation of passages of the Donation I have, so far as possible, used the words of Henderson's translation. In quotations from the Bible I have used the King James version. In translating Valla's quotations from the Donation I have usually, though not always, followed him in giving words their classical and not their medieval meaning.

The Donation of Constantine grew out of the legends about Sylvester I, Bishop of Rome, as well as out of legends about Constantine. These are described at length in *Constantine the Great and Christianity*. The most familiar form of the Sylvester-Constantine legend is that of Mombritius' *Sanctuarium, sive Vitae collectae ex codibus*, Milan, c. 1470, vol. II, folio 279: Paris, 1910, vol. II, pp. 508-531.

Present-day scholarship is not in entire agreement on all points connected with the Donation of Constantine. The following summary, however, may be hazarded. The problem of modern criticism, of course, is, not to establish the spuriousness of the Donation,—that has long been obvious,—but to locate the origin of the document as closely as possible.

The development of the Sylvester-Constantine legend was worked out best by Döllinger (*Papstfabeln des Mittelalters*, Munich, 1863: ed., J. Friedrich, Stuttgart, 1890) and by Duchesne (in his edition of the *Liber Pontificalis*, vol. I, 1886, pp. cvii-cxx). These have shown the existence at Rome, as early as the last of the sixth century, of the story which forms most of the narrative part of the Donation, and gave the forger the whole of his background.

The earliest known manuscript of the document is in the *Codex Parisiensis* Lat. 2778, in the *Collectio Sancti Dionysii*, found in the monastery of St. Denis, in France. The collection contains documents dating from the last years of the eighth century, though it may have been put together later. The collected Pseudo-Isidorian Decretals, in which the Donation was virtually published to the world, in the middle of the ninth century, also came out in France. French writers of the ninth century, also, were the first, so far as we know, to refer to the Donation. Such facts help to fix the date of the forgery, but under the circumstances they do not fix the place as France. Rather they are merely another illustration of the well-known leadership of France in learning and politics during the ninth century.

Linguistic peculiarities of the document have been most exhaustively treated by one of the greatest of critical historians, Paul Scheffer-Boichorst, [5] not to speak of briefer studies by Döllinger, Brunner, and others. In the full text of the Donation, as for instance the one published by Zeumer, are found many features distinctive of Italian documents of the eighth century, and a number that apparently are peculiar to the chancellery of Stephen II (III), Bishop of Rome 752-757, and of Paul I (757-767), more particularly the latter. (Some of these do not occur in the passages and the text which Valla used; that is, in his copy of Gratian's *Decretum*.) This is true in varying degrees of particularity of the form or usage of the following words; *synclitus* (for *senatus*) in § 15, *banda* (for *vexillum*) in § 14, *censura* (diploma) in § 17, *constitutum* (*decretum*) in §§ 17 and 18, *retro* (applied to the future) in §§ 1 and 19, *largitas* (*possessio*) in § 13, *consul* and *patricius* (as mere designations of rank) in § 15, *vel* (*et*) in §§ 11, 12, 13, 16, 19, *seu* (*et*) in §§ 14 and 17, *satraps* (as a Roman official) in §§ 8, 11, and 19, and *inluminator* in § 7 in some manuscripts. The following phrases, also, are more or less distinctive; *Deo amabilis* in § 1, *Deo vivo qui nos regnare*

precipit in § 19, uno ex eadem sancta Trinitate in § 1, principem apostolorum vel eius vicarios firmos apud Deum adesse patronos in § 11, pro concinnatione luminariorum in § 13, et subscriptio imperialis in § 20, propriis manibus roborantes in § 20, religiosus clericus in § 15. The first part of § 4, Tres itaque formae ... hominem, is very similar to part of a letter of Paul I's in 757. In short, the language of the Donation seems to point to the papal chancellery as the place of its origin, and the pontificate of Paul I (757-767) as the most probable time.

That also seems to offer the situation and environment which would most naturally call forth the document as we have it. This is well brought out by Ludo Moritz Hartmann in his *Geschichte Italiens im Mittelalter*,^[6] and by Erich Caspar in his *Pippin und die römische Kirche*.^[7] The Papacy was then cutting loose from the Emperor at Constantinople and ignoring his representatives in Italy, as well as developing its own independent policy toward Italian territory, toward the Lombards, and toward the Franks. The aim of the forger seems to have been the characteristically medieval one of supplying documentary warrant for the existence of the situation which had developed through a long-drawn-out revolution, namely, the passage of imperial prerogatives and political control in Italy from the Emperor to the Papacy. Hence, along with general statements of papal primacy, and of gifts of property, detailed and explicit stress is laid upon the granting of imperial honors, the imperial palace, and imperial power to the Pope, and upon the right of the Roman clergy to the privileges of the highest ranks of Roman society. Legal confirmation was thus given for riding roughshod over the vestiges and memories of the imperial régime in Italy and for looking to the Papacy as the source of all honors and dignities. Furthermore we know that Paul I was extremely devoted to the memory of Sylvester, and so it may well have been under his influence that this document came into existence with its tribute to Sylvester's personal character and historic significance.

I wish to give public expression of my thanks to Professor Deane P. Lockwood, of Columbia University, for his kindness in reading my translation of Valla's treatise and the many suggestions and improvements he indicated; to Professor J. T. Shotwell, of Columbia University, who was largely responsible for the beginning of the whole undertaking; and to Mr.

Alexander D. Fraser, of Allegheny College, for generous assistance in reading proof.

FOOTNOTES

[1] C. B. Coleman, *Constantine the Great and Christianity, three phases: the historical, the legendary, and the spurious*. Columbia University Studies in History, Economics and Public Law, vol. LX, no. 1. Columbia University Press, and Longmans, Green & Co., New York, 1914.

[2] F. M. Nichols, ed., *Epistles of Erasmus*. Longmans, Green & Co., New York, 1901.

[3] *Vita di Lorenzo Valla* (Florence, 1891).

[4] *Syntagma tractatum de imperiali iurisdictione*, etc., Strassburg, 1609; first published under a similar title at Basle, 1566.

[5] *Neue Forschungen über die Konstantinische Schenkung*, in *Mittheilungen d. Instituts für österr. Geschichtsforschung*, vol. X (1889), pp. 325 et seq., XI (1890), pp. 128 et seq. Reprinted in his *Gesammelte Schriften* in the *Historische Studien* of E. Eberling, vol. XLII.

[6] II, ii (Leipsic, 1903), pp. 218-231.

[7] Berlin, 1914, pp. 185-189.

Transcriber's Note

The original book was printed with a page of Latin and a page of the English translation next to each other in a double-page spread. This is impractical for an e-book and so the Latin is presented in full first, followed by the English in full, with links between the relevant pages.

[\[See English page\]](#)

THE DONATION OF CONSTANTINE AS GIVEN IN THE DECRETUM GRATIANI (CONCORDIA DISCORDANTIUM CANONUM)^[8]

PRIMA PARS DISTINCTIO XCVI

[PALEA.

CAPITULUM XIII. DE EODEM.^[9]

Constantinus imperator coronam, et omnem regiam dignitatem in urbe Romana, et in Italia, et in partibus occidentalibus Apostolico concessit. Nam in gestis B. Silvestri (que B. Papa Gelasius in concilio LXX. episcoporum a catholicis legi commemorat, et pro antiquo usu multas hoc imitari dicit ecclesias) ita legitur:]

[PALEA.

C. XIV. DE EODEM.

Constantinus imperator quarta die sui baptismi privilegium Romanae ecclesiae Pontifici contulit, ut in toto orbe Romano sacerdotes ita hunc caput habeant, sicut iudices regem. [\[See English page\]](#) In eo privilegio ita inter cetera legitur: “Utile iudicavimus una cum omnibus satrapis nostris, et universo senatu optimatibusque meis, etiam et cuncto populo Romanae gloriae imperio subiacenti, ut sicut B. Petrus in terris vicarius Filii Dei esse videtur constitutus, ita et Pontifices, qui ipsius principis apostolorum gerunt vices, principatus potestatem amplius quam terrena imperialis nostrae serenitatis mansuetudo habere videtur, concessam a nobis nostroque imperio obtineant, eligentes nobis ipsum principem apostolorum vel eius

vicarios firmos apud Deum esse patronos. Et sicut nostram terrenam imperialem potentiam, sic eius sacrosanctam Romanam ecclesiam decrevimus veneranter honorari, et amplius quam nostrum imperium et terrenum thronum sedem sacratissimam B. Petri gloriose exaltari, tribuentes ei potestatem, et gloriae dignitatem atque vigorem, et honorificentiam imperialem. Atque decernentes sancimus, ut principatum teneat tam super quatuor precipuas sedes, Alexandrinam, Antiocenam, Ierosolimitanam, Constantinopolitanam, quam etiam super omnes in universo orbe terrarum ecclesias Dei, et Pontifex, qui pro tempore ipsius sacrosanctae Romanae ecclesiae extiterit, celsior et princeps cunctis sacerdotibus totius mundi existat, et eius iudicio queque ad cultum Dei vel fidei Christianorum stabilitatem procuranda fuerint disponantur. *Et infra*: §. 1. Ecclesiis beatorum apostolorum Petri et Pauli pro continuatione luminariorum possessionum predia contulimus, et rebus diversis eas ditavimus, et per nostram imperialem iussionem sacram tam in oriente, quam in occidente, vel etiam septentrionali et meridiana plaga, videlicet in Iudea, Grecia, Asia, Thracia, Affrica et Italia, vel diversis insulis, nostra largitate ei concessimus, ea prorsus ratione, ut per manus beatissimi patris nostri Silvestri summi Pontificis successorumque eius omnia disponantur. *Et infra*: §. 2. Beatro Silvestro Patri nostro, summo Pontifici et universalis urbis Romae Papae, et omnibus, eius successoribus Pontificibus, qui usque in finem mundi [\[See English page\]](#) in sede B. Petri erunt sessuri, de presenti contradimus palatium imperii nostri Lateranense, deinde diadema, videlicet coronam capitis nostri, simulque frigium, nec non et superhumerales, videlicet lorum, quod imperiale circumdare assolet collum; verum etiam et clamidem purpuream, atque tunicam coccineam, et omnia imperialia indumenta; sed et dignitatem imperialium presidentium equitum, conferentes etiam et imperialia sceptrum, simulque cuncta signa, atque banda, et diversa ornamenta imperialia, et omnem processionem imperialis culminis et gloriam potestatis nostrae. §. 3. Viris autem reverentissimis clericis in diversis ordinibus eidem sacrosanctae Romanae ecclesiae servientibus illud culmen singularitate, potentia et precellentia habere sancimus, cuius amplissimus noster senatus videtur gloria adornari, id est patricos atque consules effici, nec non et ceteris dignitatibus imperialibus eos promulgamus decorari. Et sicut imperialis milicia ornatur, ita et clerum sanctae Romanae ecclesiae ornari decernimus. Et quemadmodum imperialis [sic] potentia offitiis diversis, cubiculariorum nempe, et ostiariorum, atque

omnium excubitorum ornatur, ita et sanctam Romanam ecclesiam decorari volumus. Et ut amplissime pontificale decus prefulgeat, decernimus et hoc, clericorum eiusdem sanctae Romanae ecclesiae manipulis et lintheaminibus, id est candidissimo colore, decorari equos, ita et equitare. Et sicut noster senatus calciamentis utitur cum udonibus, id est candido lintheamini illustratis, sic utantur et clerici, ut sicut celestia, ita et terrena ad laudem Dei decorentur. §. 4. Pre omnibus autem licentiam tribuimus ipsi sanctissimo Patri nostro Silvestro et successoribus eius ex nostro indicto, ut quem placatus proprio consilio clericare voluerit, et in religiosorum numero clericorum connumerare, nullus ex omnibus presumat superbe agere. §. 5. Decrevimus itaque et hoc, ut ipse et successores eius diademate, [\[See English page\]](#) videlicet corona, quam ex capite nostro illi concessimus, ex auro purissimo et gemmis pretiosis uti debeant, et in capite ad laudem Dei pro honore B. Petri gestare. Ipse vero beatissimus Papa, quia super coronam clericatus, quam gerit ad gloriam B. Petri, omnino ipsa ex auro non est passus uti corona, nos frigium candido nitore splendidum, resurrectionem dominicam designans, eius sacratissimo vertici manibus nostris imposuimus, et tenentes frenum equi ipsius pro reverentia B. Petri stratoris offitium illi exhibuimus, statuentes eodem frigio omnes eius successores singulariter uti in processionibus ad imitationem imperii nostri. §. 6. Unde ut pontificalis apex non vilescat, sed magis quam terreni imperii dignitas gloria et potentia decoretur, ecce tam palatium nostrum, ut predictum est, quam Romanam urbem, et omnes Italiae seu occidentalium regionum provincias, loca et civitates prefato beatissimo Pontifici nostro Silvestro universali Papae contradimus atque relinquimus, et ab eo et a successoribus eius per hanc divalem nostram et pragmaticum constitutum decernimus disponenda, atque iuri sanctae Romanae ecclesiae concedimus permansura. §. 7. Unde congruum perspeximus nostrum imperium et regni potestatem in orientalibus transferri regionibus, et in Bizantiae provinciae optimo loco nomini nostro civitatem edificari, et nostrum illic constitui imperium, quoniam ubi principatus sacerdotum et Christianae religionis caput ab imperatore celesti constitutum est, iustum non est, ut illic imperator terrenus habeat potestatem. §. 8. Hec vero omnia que per hanc nostram imperialem sacram, et per alia divalia decreta statuimus atque confirmavimus, usque in finem mundi illibata et inconcussa permanere decernimus. Unde coram Deo vivo, qui nos regnare precepit, et coram terribili eius iudicio obtestamur per hoc nostrum imperiale constitutum omnes nostros successores imperatores,

vel cunctos optimates, satrapas etiam, amplissimum senatum, et universum [\[See English page\]](#) populum in toto orbe terrarum nunc et in posterum cunctis retro temporibus imperio nostro subiacentem, nulli eorum quoquo modo licere hec aut infringere, aut in quoquam convellere. Si quis autem, quod non credimus, in hoc temerator aut contemptor extiterit, eternis condemnationibus subiaceat innodatus, et sanctos Dei, principes apostolorum Petrum et Paulum sibi in presenti et in futura vita sentiat contrarios, atque in inferno inferiori concrematus cum diabolo et omnibus deficiat impiis. Huius vero imperialis decreti nostri paginam propriis manibus roborantes, super venerandum corpus B. Petri principis apostolorum posuimus. Datum Romae 3. Calend. Aprilis, Domino nostro Flavio Constantino Augusto quater, et Gallicano V. C. Coss.”]

[\[See English page\]](#)

LAURENTII VALLENSIS

DE FALSO CREDITA ET EMENTITA CONSTANTINI DONATIONE DECLAMATIO.^[10]

Plures a me libri compluresque emissi sunt in omni fere doctrinarum genere. In quibus quod a nonnullis magnisque et longo iam aevo probatis auctoribus dissentio cum sint, qui indigne ferant meque ut temerarium sacrilegumque crimentur, quid tandem nunc facturi quidam putandi sunt? Quantopere in me debacchaturi, et si facultas detur, quam avide me ad supplicium festinanterque rapturi, qui non tantum adversus mortuos scribo, sed adversus etiam vivos; nec in unum alterumve, sed in plurimos; nec contra privatos modo, verum etiam contra magistratus! At quos magistratus! Nempe summum pontificem, qui non temporali solum armatus est gladio, regum ac principum more, sed ecclesiastico quoque, ut ab eo neque subter ipsum, ut sic loquar, clipeum alicuius principis^[11] protegere te possis, quominus excommunicatione, anathemate, execratione^[12] feriare. Quod si prudenter, ut dixit, sic fecisse existimatus est, qui inquit, “Nolo scribere in eos qui possunt proscribere,” quanto mihi magis idem faciendum [\[See English page\]](#) esse videatur in eum qui ne proscriptioni quidem relinquat^[13] locum, quique invisibilibus me potestatis suae iaculis persequatur, ut iure possim dicere, “Quo ibo a spiritu tuo et quo a tua fugiam facie!” Nisi forte putamus patientius haec esse laturum summum pontificem^[14] quam ceteri^[15] facerent. Nihil minus, si quidem Paulo, quod bona se conscientia conversatum esse dicerat, Ananias, princeps sacerdotum, coram tribuno qui iudex sedebat, iussit os verberari,^[16] et Phasur, eadem praeditus dignitate, Ieremiam ob loquendi libertatem coniecit in carcerem. Sed illum tribunus ac praeses, hunc rex adversus iniuriam pontificis tutari et potuit et voluit. Me vero quis tribunus, quis praeses, quis rex e manibus summi sacerdotis, si me rapuerit ille, etiam ut velit eripere poterit?

Verum non est causa cur me duplex hic periculi terror conturbet arceatque a proposito. Nam neque contra ius fasque summo pontifici licet aut ligare quempiam^[17] aut solvere, et in defendenda veritate atque iustitia profundere animam summae virtutis, summae laudis, summi praemii est. An vero multi ob terrestrem patriam defendendam mortis adiere discrimen? Ego ob caelestem^[18] patriam assequendam (assequuntur autem eam qui Deo placent, non qui hominibus) mortis discrimine deterrebor? Facessat igitur trepidatio; procul abeant metus; timores excidant! Forti animo, magna fiducia, bona spe, defendenda est causa veritatis, causa iustitiae, causa Dei!

Neque enim is verus est habendus orator qui bene scit^[19] dicere nisi et dicere audeat. Audeamus itaque accusare eum^[20] quicumque digna committit accusatione. Et qui in omnes peccat, unius pro omnium voce carpatur. At non debeo palam obiurgare fratrem, sed inter me et ipsum. Immo, “publice peccans,” et qui privatum consilium non admitteret, “publice arguendus est, ut ceteri timorem habeant.” An non Paulus, cuius verbis modo sum usus, in [\[See English page\]](#) os Petrum coram ecclesia reprehendit, quia reprehensibilis erat? Et hoc ad nostram doctrinam scriptum reliquit.—At non sum Paulus, qui Petrum possim reprehendere. Immo Paulus sum, qui Paulum imitor. Quemadmodum, quod multo plus est, unus cum Deo spiritus efficior, cum studiose mandatis illius obtempero. Neque aliquem sua dignitas ab increpationibus tutum reddit quae Petrum non reddidit, multosque alios eodem praeditos gradu; ut Marcellum quod diis libasset, ut Celestinum quod cum Nestorio haeretico^[21] sentiret, ut quosdam etiam nostra memoria quos ab inferioribus (quis enim non est inferior papa?) reprehensos scimus, ut taceam condemnatos.

Neque vero id ago ut quemquam^[22] cupiam insectari et in eum quasi Philippicas scribere, hoc enim a me facinus procul absit, sed ut errorem a mentibus hominum convellam, ut eos a vitiis sceleribusque vel admonendo vel increpando summoveam. Non ausim dicere ut alii per me edocti luxuriantem nimiis sarmentis papalem sedem, quae Christi vinea est, ferro coerceant, et plenas uvas non graciles labruscas ferre compellant. Quod cum facio, numquis^[23] erit qui aut mihi os aut sibi aures velit occludere, ne dicam supplicium mortemque proponere? Hunc ego, si hoc faciat, etiam si papa sit, quid dicam esse, bonumne pastorem, an aspidem surdam quae

nolit exaudire vocem incantantis, velit eiusdem membra morsu venenoque praestringere?

Scio iamdudum exspectare^[24] aures hominum quidnam pontificibus Romanis criminis^[25] impingam. Profecto ingens, sive supinae ignorantiae, sive immanis avaritiae quae est idolorum servitus, sive imperandi vanitatis cuius crudelitas semper est comes. Nam aliquot iam saeculis aut non^[26] intellexerunt donationem Constantini commenticiam^[27] fictamque esse, aut ipsi finxerunt, sive posteriores in maiorum suorum dolis vestigia imprimentes pro vera quam [\[See English page\]](#) falsam cognoscerent defenderunt, dedecorantes pontificatus maiestatem, dedecorantes veterum pontificum memoriam, dedecorantes religionem Christianam, et omnia caedibus, ruinis,^[28] flagitiisque miscentes. Suam esse aiunt urbem Romam; suum regnum Siciliae Neapolitanumque; suam universam Italiam, Gallias, Hispanias,^[29] Germanos, Britannos; suum denique occidentem; haec enim cuncta in ipsa donationis pagina contineri. Ergo haec omnia tua sunt, summe pontifex? Omnia tibi in animo est recuperare? Omnes reges ac principes occidentis spoliare urbibus, aut cogere ut annua tibi tributa pensitent, sententia est?

At ego contra existimo iustius licere principibus spoliare te imperio omni quod obtines. Nam, ut ostendam, donatio illa unde natum esse suum ius summi pontifices volunt Silvestro pariter et Constantino fuit incognita.

Verum antequam ad confutandam donationis paginam venio, quod unum istorum patrocinium est, non modo falsum verum etiam stolidum, ordo postulat ut altius repetam. Et primum dicam non tales fuisse Constantinum Silvestrumque, illum quidem qui donare vellet, qui iure donare posset, qui ut in manum alteri ea traderet in sua haberet potestate, hunc autem qui vellet accipere, quique iure accepturus^[30] foret. Secundo loco, si haec non essent, quae verissima atque clarissima sunt, neque hunc acceptasse neque illum tradidisse possessionem rerum quae dicuntur donatae, sed eas semper in arbitrio et imperio Caesarum permansisse. Tertio, nihil datum Silvestro a Constantino, sed priori pontifici ante quem etiam baptismum^[31] acceperat, donaque illa mediocria fuisse, quibus [\[See English page\]](#) papa degere vitam posset. Quarto, falso dici donationis exemplum aut apud Decreta reperiri aut ex historia Silvestri esse sumptum, quod neque in illa neque in^[32] ulla

historia invenitur. In eoque quaedam contraria, impossibilia, stulta, barbara, ridicula contineri. Praeterea loquar de quorundam^[33] aliorum Caesarum vel simulata vel frivola donatione. Ubi ex abundanti adiciam, si Silvester possedisset, tamen, sive illo sive quovis alio pontifice a possessione deiecto, post tantam temporis intercapedinem nec divino nec humano iure posse repeti. Postremo, ea quae a summo pontifice tenentur nullius temporis longitudine potuisse^[34] praescribi.

Atque quod ad primam partem attinet, loquamur autem de Constantino prius, deinde de Silvestro.

Non est committendum ut publicam et quasi Caesaream causam non maiore quam privatae solent ore agamus. Itaque quasi in^[35] contione^[36] regum ac principum orans, ut certe facio, nam mea haec oratio in manus eorum ventura est, libet tamquam praesentes et in conspectu positos alloqui. Vos appello reges ac principes, difficile est enim privatum hominem animi regii concipere imaginem, vestram mentem inquiri, conscientiam scrutor, testimonium postulo. Numquid^[37] vestrum quispiam, si fuisset Constantini loco, faciendum sibi putasset ut urbem Romam, patriam suam, caput orbis terrarum, reginam civitatum, potentissimam, nobilissimam, ditissimam populorum, triumphatricem nationum, et ipso aspectu sacram, liberalitatis gratia donaret alteri, et se ad humile oppidum conferret deinde Byzantium? donaret praeterea una cum Roma Italiam, non provinciam sed provinciarum victricem: donaret tres Gallias: donaret duas Hispanias: donaret Germanos: donaret Britannos: totum donaret occidentem: et se altero ex duobus^[38] Imperii oculis orbaret? Hoc ego, ut quis faciat compos mentis, adduci non possum ut credam.

Quid enim vobis exspectatius, quid iucundius,^[39] quid gratius contingere [\[See English page\]](#) solet, quam accessionem imperiis vestris vos regnisque adiungere, et longe lateque quam maxime proferre dicionem? In hoc, ut videre videor, omnis vestra cura, omnis cogitatio, omnis labor dies^[40] noctesque consumitur. Ex hoc praecipua spes gloriae, propter hoc voluptates relinquitis, propter hoc mille pericula aditis, propter hoc carissima^[41] pignora, propter hoc partem corporis aequo animo amittitis. Siquidem neminem vestrum aut audivi aut legi a conatu ampliandi imperii fuisse deterritum, quod aut luminis, aut manus, aut cruris, aut alterius membri iacturam fecisset. Quin ipse hic ardor atque haec late dominandi

cupiditas, ut quisque maxime potens est, ita eum maxime angit atque agitat. Alexander non contentus deserta Libyae pedibus peragrasse, orientem ad extremum usque Oceanum vicisse, domuisse septentrionem, inter tot vulnera, tot casus, recusantibus iam, detestantibus^[42] tam longinquas, tam asperas expeditiones militibus, ipse sibi nihil effecisse videbatur, nisi et occidentem, et omnes nationes aut vi, aut nominis sui auctoritate sibi tributarias reddidisset. Parum dico: iam Oceanum transire et si quis alius orbis esset explorare, ac suo subicere arbitrio destinaverat. In caelum^[43] tandem, ut opinor, tentasset ascendere. Talis fere est omnium regum voluntas, etsi non omnium talis audacia. Taceo quanta scelera, quot abominanda propter imperium assequendum ampliandumve admissa sunt, ut nec fratres a fratrum, nec filii a parentum, nec parentes a filiorum sanguine nefarias abstineant manus. Adeo nusquam magis, nusquam atrocius grassari solet humana temeritas. Et quod mirari possis, non segniores ad hoc videas animos senum quam iuvenum, orborum quam parentum, regum quam tyrannorum.

Quod si tanto conatu peti dominatus solet, quanto maiore necesse est conservetur! Neque enim tantopere miserum est non ampliare imperium quam imminuere; neque tam deforme tibi alterius regnum non accedere tuo quam tuum accedere alieno. Nam [\[See English page\]](#) quod ab rege aliquo aut populo legimus nonnullos praepositos regno aut urbibus, id factum est non de prima nec de maxima, sed de postrema quodammodo ac minima imperii parte, atque ea ratione ut donantem qui donatus est quasi dominum et se ministrum illius semper agnosceret.

Nunc quaeso, nonne abiecto animo et minime generoso videntur esse, qui opinantur Constantinum meliorem a se imperii alienasse partem? Non dico Romam, Italiamque et cetera, sed Gallias, ubi ipse proelia gesserat, ubi solum diu dominatus fuerat, ubi suae gloria suique imperii rudimenta posuerat. Hominem, qui cupiditate dominandi nationibus bella intulisset, socios affinesque bello civili persecutus imperio privasset; cui nondum perdomitae ac profligatae reliquiae essent alterius factionis, qui cum multis nationibus bella gerere non modo soleret spe gloriae imperiique sed etiam necesse haberet, utpote quotidie^[44] a barbaris laccessitus; qui filiis, qui coniunctis sanguine, qui amicitiiis^[45] abundaret; qui senatum populumque Romanum huic facto repugnaturum nosset; qui expertus esset instabilitatem victarum nationum, et ad omnem fere Romani principis mutationem

rebellantium; qui se meminisset more aliorum Caesarum, non electione patrum consensuque plebis, sed exercitu, armis, bello dominatum occupasse; quae tam vehemens causa et urgens aderat, ut ista negligeret et tanta liberalitate uti vellet?

Aiunt, quia effectus erat Christianus. Ergone Imperii optima parte se abdicaret? Credo scelus erat, flagitium, nefas iam regnare, nec cum Christiana religione coniungi poterat regnum! Qui in adulterio sunt, qui usuris rem auxerunt, qui aliena possident, ii^[46] post baptismum alienam uxorem, alienam pecuniam, aliena bona reddere solent. Hanc cogitationem si habes, Constantine, restituere urbibus libertatem, non mutare dominum debes. Sed non id in [\[See English page\]](#) causa fuit; tantum in honorem religionis ut faceres adductus es. Quasi religiosum sit magis regnum deponere quam pro tutela religionis illud administrare! Nam quod ad accipientes attinet, neque honesta erit illis neque utilis ista donatio. Tu vero si Christianum te ostendere, si pietatem indicare tuam, si consultum non dico Romanae ecclesiae vis sed ecclesiae Dei, nunc praecipue, nunc principem agas, ut pugnes pro iis^[47] qui pugnare non possunt nec debent, ut eos tua auctoritate tutos reddas qui insidiis iniuriisque obnoxii sunt. Nabuchodonosor, Cyro, Assuero, multisque aliis principibus sacramentum veritatis Deus aperiri voluit; a nullo tamen eorum exegit ut imperio cederet, ut partem regni donaret, sed tantum libertatem Hebraeis^[48] redderet eosque ab infestantibus finitimis protegeret. Hoc satis fuit Iudaeis; hoc sat erit et Christianis. Factus es, Constantine, Christianus? At indignissima res est Christianum te nunc imperatorem minori^[49] esse principatu quam fueras infidelis. Est enim principatus praecipuum quoddam Dei munus, ad quem gentiles etiam principes a Deo eligi existimantur.

At erat levatus a lepra. Ideo verisimile est referre gratiam voluisse, et maiore mensura reddere quod acceperat. Itane? Naaman^[50] ille Syrus ab Heliseo curatus munera tantum offerre voluit, non dimidium bonorum. Constantinus dimidium Imperii obtulisset? Piget me impudenti fabellae tamquam indubitatae historiae respondere, sic enim haec fabula ex historia Naaman et Helisei, ut altera^[51] draconis ex fabuloso dracone Beli adumbrata [\[See English page\]](#) est. Sed, ut ista concedam, numquid in hac historia de donatione fit mentio? Minime. Verum de hoc commodius postea.
^[52]

Levatus est a lepra? Cepit^[53] ob id mentem Christianam Dei timore Dei amore imbutus; illi honorem habere voluit. Non tamen persuaderi possum eum tanta donare voluisse, quippe cum videam neminem, aut gentilem in honorem deorum, aut fidelem in honorem Dei viventis, imperium deposuisse sacerdotibusque donasse. Siquidem ex regibus Israel nemo adduci potuit ut pristino more ad templum Ierusalem populos sacrificaturos ire permetteret, eo videlicet timore ne forte ad regem Iudae a quo defecerant redirent, sacro illo cultu religionis admoniti ac templi maiestate. Et quanto maius est hoc quod fecisse dicitur Constantinus! Ac ne quid tibi propter curationem leprae blandiaris, Ieroboam primus a Deo in regem Israel electus est, et quidem ex infima condicione, quod mea sententia plus est quam esse lepra levatum;^[54] et tamen is non est ausus regnum suum Deo credere. Et tu vis Constantinum regnum Deo donasse quod ab illo non accepisset, qui praesertim (id quod in Ieroboam non cadebat) offenderet filios, deprimeret amicos, negligeret suos, laederet patriam, maerore omnes afficeret, suique oblivisceretur!

Qui si etiam talis fuisset, et quasi in alium hominem versus, certe non defuissent qui eum admonerent, et imprimis filii, propinqui amici; quos quis est qui non putet protinus Imperatorem fuisse adituros? Ponite igitur illos ante oculos, mente Constantini audita, trepidos, festinantes cum gemitu lacrimisque^[55] ad genua principis procumbentes, et hoc voce utentes:

“Itane, pater antehac filiorum amantissime, filios privas, exheredas,^[56] abdicas! Nam quod te optima maximaque Imperii parte exuere vis, non tam querimus quam miramur. Querimus autem [\[See English page\]](#) quod eam ad alios defers, cum nostra et iactura et turpitudine. Quid enim causae est quod liberos tuos exspectata successione Imperii fraudas, qui ipse una cum patre regnasti? Quid in te commisimus? Qua in te, qua in patriam, qua in nomen Romanum ac maiestatem Imperii impietate digni videmur quos praecipua optimaque prives principatus portione, qui a patriis laribus, a conspectu natalis soli, ab assueta aura, a vetusta consuetudine relegemur!^[57] Penates, fana,^[58] sepulchra exules relinquemus, nescio ubi aut qua terrarum regione victuri!

“Quid nos propinqui, quid nos amici, qui tecum totiens in acie stetimus, qui fratres, parentes, filios hostili mucrone confossos palpitantesque conspeximus, nec aliena morte territi sumus, et ipsi pro te parati mortem oppetere, nunc abs te universi deserimur!^[59] Qui Romae gerimus magistratus, qui urbibus Italiae, qui Galliis, qui Hispaniis, qui ceteris provinciis^[60] praesumus, aut praefuturi sumus,^[61] omnesne revocamur! Omnes privati iubemur esse! An iacturam hanc aliunde pensabis? Et quomodo pro merito ac pro dignitate poteris, tanta orbis terrarum parte alteri tradita? Num qui praeerat centum populis, eum tu, Caesar, uni praeficies? Quomodo tibi istud in mentem venire potuit? Quomodo subita tuorum te cepit oblivio, ut nihil te misereat amicorum, nihil proximorum, nihil filiorum? Utinam nos, Caesar, salva tua dignitate atque victoria, in bello contigisset occumbere potius quam ista cernamus!

“Et tu quidem de imperio tuo ad tuum arbitratum agere potes, atque etiam de nobis, uno dumtaxat excepto, in quo^[62] ad mortem usque erimus contumaces; ne a cultu deorum immotalium desistamus—magno etiam aliis exemplo, ut scias tua ista largitas quid mereatur de religione Christiana. Nam si non largiris Silvestro Imperium, tecum Christiani esse volumus, multis factum nostrum imitaturis: sin largiris, non modo Christiani fieri non sustinebimus,^[See English page] sed invisum, detestabile, execrandum nobis hoc nomen efficies, talesque reddes ut tandem tu et vitae et mortis nostrae miserearis, nec nos sed te ipsum duritiae accuses.”

Nonne hac oratione Constantinus, nisi exstirpatam^[63] ab eo volumus humanitatem, si sua sponte non movebatur, motus fuisset? Quid si hos audire noluisset, nonne erant qui huic facto et oratione adversarentur et manu? An senatus populusque Romanus sibi tanta in re nihil agendum putasset? Nonne oratorem, ut ait Virgilius, gravem pietate ac meritis advocasset, qui apud Constantinum hanc haberet orationem?

“Caesar, si tu tuorum immemor es atque etiam tui, ut nec filiis hereditatem, nec propinquis opes, nec amicis honores, nec tibi Imperium esse integrum velis, non tamen senatus populusque

Romanus immemor potest esse sui iuris suaeque dignitatis. Etenim quomodo tibi tantum permittis de Imperio Romano quod non tuo sed nostro sanguine paratum^[64] est! Tunc unum corpus in duas secabis partes, et ex uno duo efficies regna, duo capita, duas voluntates; et quasi duobus fratribus gladios quibus^[65] de hereditate decernant porriges! Nos civitatibus quae de hac urbe bene meritae sunt iura civitatis damus, ut cives Romani sint: tu a nobis dimidium Imperii aufers, ne hanc urbem parentem suam agnoscant! Et in alveis quidem apium si duo reges nati sunt, alterum qui deterior est occidimus: tu in alveo Imperii Romani, ubi unus et optimus princeps est,^[66] alterum et hunc deterrimum, et non apem sed fucum, collocandum putas! Prudentiam tuam vehementer desideramus, Imperator. Nam quid futurum est, si vel te vivo, vel post tuam mortem, aut huic parti quam alienas, aut alteri quam tibi relinquis, bellum a barbaris nationibus inferatur? Quo [\[See English page\]](#) robore militum, quibus copiis occurremus? Vix nunc totius Imperii viribus possumus; tunc poterimus? An perpetuo membrum hoc cum illo in concordia erit? Ut reor, nec esse poterit, cum Roma dominari velit, nolit pars illa servire. Quin et te vivo breve intra tempus, revocatis veteribus praesidibus^[67], suffectis novis, te in tuum regnum profecto et longe agente, hic altero dominante, nonne omnia nova, id est diversa atque adversa, erunt? Regno fere inter duos fratres diviso, protinus et populorum animi dividuntur, et prius a se ipsis quam ab externis hostibus bellum auspicantur. Idem eventurum in hoc Imperio quis non videt? An ignoras hanc olim imprimis fuisse causam optimatibus, cur dicerent citius se in conspectu populi Romani esse morituros quam rogationem illam ferri sinerent ut pars senatus ac pars plebis ad incolendum Veios mitteretur, duasque urbes communes^[68] populi Romani esse; si enim in una urbe tantum dissensionum esset, quid in duabus urbibus futurum! Ita hoc tempore, si tantum discordiarum in uno Imperio, testor conscientiam tuam ac labores, quid in duobus imperiis fiet!

“Age vero, putasne hinc fore qui tibi bellis occupato esse auxilio aut velint aut sciant? Ita ab armis atque ab omni re bellica abhorrentes erunt qui praeficientur militibus atque urbibus, ut ille qui praeficit. Quid, nonne hunc tam imperitum regnandi et iniuriae

facilem aut Romanae legiones aut ipsae provinciae^[69] spoliare tentabunt, ut quem sperabunt vel non repugnaturum, vel poenas non repetiturum? Credo, me hercule, ne unum quidem mensem illos in officio mansuros, sed statim et ad primum profectionis tuae nuntium^[70] rebellaturos. Quid facies? Quid consilii capies, cum duplici atque adeo multiplici bello urgebere? Nationes quas subegimus continere vix possumus; quomodo illis accedente ex liberis gentibus bello resistetur?

[\[See English page\]](#)

“Tu, Caesar, quid ad te spectet ipse videris. Nobis autem haec res non minus quam tibi curae esse debet. Tu mortalis es: Imperium populi Romani decet esse immortale, et quantum in nobis est erit, neque Imperium modo, verum etiam pudor. Scilicet quorum religionem contemnimus eorum accipiemus imperium, et, principes orbis terrarum, huic contemptissimo homini serviemus! Urbe a Gallis capta, Romani senes demulceri sibi barbam a victoribus passi non sunt: nunc sibi tot senatorii ordinis, tot praetorii, tot tribunicii,^[71] tot consulares, triumphalesque viri eos dominari patientur, quos ipsi tamquam^[72] servos malos omni contumeliarum genere suppliciorumque affecerunt! Istine homines magistratus creabunt, provincias regent, bella gerent, de nobis sententias capitis ferent? Sub his nobilitas Romana stipendia faciet, honores sperabit, munera assequetur? Et quod maius quodque altius penetret vulnus accipere possumus? Non ita putes, Caesar, Romanum degenerasse sanguinem ut istud passurus sit aequo animo et non quavis ratione devitandum existimet: quod medius fidius neque mulieres nostrae^[73] sustinerent, sed magis se una cum dulcibus liberis sacrisque penetibus concremarent, ut non Carthaginienses^[74] feminae^[75] fortiores fuerint quam Romanae.

“Etenim, Caesar, si regem te delegissemus, haberes tu quidem magnum de Imperio Romano agendi arbitrium, sed non ita ut vel minimum de ipsius imminueres maiestate, alioquin qui te fecissemus regem, eadem facultate abdicare te regno iuberemus—nedum posses regnum dividere, nedum tot provincias^[76] alienare, nedum ipsum regni caput peregrino atque humillimo homini

addicere. Canem ovili praeficimus;^[77] quem si lupi mavult officio fungi, aut eicimus aut occidimus. Nunc tu, cum diu canis officio in ovili Romano defendendo sis functus, ad extremum in lupum nullo exemplo converteris?

“Atque, ut intelligas, quandoquidem nos pro iure nostro cogis^[78] asperius loqui, nullum tibi in populi Romani Imperio ius esse. [\[See English page\]](#) Caesar vi dominatum occupavit,^[79] Augustus et in vitium successit et adversariorum partium profligatione se dominum fecit, Tiberius, Gaius, Claudius, Nero, Galba, Otho, Vitellius, Vespasianus, ceterique aut eadem aut simili via libertatem nostram praedati sunt, tu quoque, aliis expulsis aut interemptis, dominus effectus es. Sileo quod ex matrimonio natus non sis.

“Quare, ut tibi nostram mentem testificemur, Caesar, si non libet te^[80] Romae principatum tenere, habes filios, quorum aliquem in locum tuum, nobis quoque permittentibus ac rogantibus, naturae lege substituas. Sin minus, nobis in animo est publicam amplitudinem cum privata dignitate defendere. Neque enim minor haec iniuria Quiritum quam olim fuit violata Lucretia, neque nobis deerit Brutus qui contra Tarquinium^[81] se ad libertatem recuperandam huic populo praebeat ducem. Et in istos primum quos nobis praeponis, deinde et in te ferrum stringemus, quod in multos Imperatores et quidem leviores ob causas fecimus.”

Haec profecto Constantinum, nisi lapidem eum aut truncum existimamus, permovissent. Quae si populus non dixisset, tamen dicere apud se et his passim verbis fremere credibile erat. Eamus nunc et dicamus Constantinum gratificari voluisse Silvestro, quem tot hominum odiis, tot gladiis subiceret ut vix, quantum sentio, unum Silvester diem in vita futurus fuisset. Nam eo paucisque aliis absumptis, videbatur^[82] omnis sublatum iri de pectoribus Romanorum tam dirae iniuriae contumeliaeque suspicio.^[83]

Age porro, si fieri potest, concedamus neque preces, neque minas, neque ullam rationem aliquid profecisse, perstareque adhuc Constantinum, nec velle a suscepta semel persuasione recedere.^[84] Quis non ad Silvestri

orationem, si res vera fuisset umquam,^[85] commotum^[86] assentiatur? Quae talis haud dubie fuisset:

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“Princeps optime ac fili, Caesar, pietatem quidem tuam tam pronam tamque effusam non possum non amare atque amplecti, verumtamen quod in offerendis Deo muneribus immolandisque victimis nonnihil erres, minime demiror; quippe qui adhuc es in Christiana militia tiro. Ut non decebat olim a sacerdote omnem pecudem feramque et avem^[87] sacrificari, ita non omne ab eodem accipiendum est munus. Ego sacerdos sum ac pontifex, qui dispicere debeo quid ad altare patiar offerri, ne forte, non dico immundum animal offeratur, sed vipera aut serpens. Itaque sic habeas. Si foret tui iuris, partem Imperii cum regina orbis, Roma, alteri tradere quam filiis (quod minime sentio); si populus hic, si Italia, si ceterae nationes sustinerent, ut quos oderunt et quorum religionem adhuc respuunt, capti illecebris saeculi, eorum imperio obnoxii esse vellent (quod impossibile est): tamen, si quid mihi credendum putas, fili amantissime, ut tibi assentire^[88] ulla adduci ratione non possem,^[89] nisi vellem mihi ipsi esse dissimilis et condiconem meam oblivisci ac propemodum dominum Iesum^[90] abnegare. Tua enim munera, sive, ut tu vis, tuae remunerationes et gloriam et innocentiam et sanctimoniam meam atque omnium qui mihi successuri sunt polluerent ac prorsus everterent, viamque iis qui ad cognitionem veritatis venturi sunt intercluderent.

“An vero Heliseus,^[91] Naaman Syro a lepra curato, mercedem accipere noluit: ego te curato accipiam? Ille munera respuit; ego regna mihi dari sinam? Ille personam prophetae maculare noluit; ego personam Christi quam in me gero maculare potero? Cur autem ille accipiendis muneribus personam prophetae maculari putavit? Nempe quod videri poterat vendere sacra, faenerare donum Dei, indigere praesidiis hominum, elevare atque imminuere beneficii dignitatem. Maluit ergo sibi principes ac reges^[92] beneficiarios facere, quam ipse beneficiarius illorum esse; immo ne mutua quidem beneficentia uti. ‘Beatius est enim multo,’ ut inquit

Dominus, [\[See English page\]](#) ‘dare quam accipere.’ Eadem mihi atque adeo maior est causa, cui etiam a Domino praecipitur dicente, ‘Infirmos curate, mortuos suscite, leprosos mundate, daemones eicite; gratis accepistis, gratis date.’ Egone tantum flagitium admittam, Caesar, ut Dei praecepta^[93] non exsequar; ut gloriam meam polluam? ‘Melius est,’ ut inquit Paulus, ‘mihi mori quam ut gloriam meam quis evacuet.’ Gloria nostra est apud Deum honorificare ministerium nostrum, ut idem inquit, ‘Vobis dico gentibus; quamdiu ego quidem sum gentium apostolus, glorificabo ministerium meum.’

“Ego, Caesar, aliis quoque sim et exemplum et causa delinquendi; Christianus homo, sacerdos Dei, pontifex Romanus, vicarius Christi? Iam vero innocentia sacerdotum quomodo incolumis erit inter opes, inter magistratus, inter administrationem saecularium negotiorum?^[94] Ideone terrenis renuntiamus, ut eadem uberiora assequamur; et privata abieciamus, ut aliena possideamus et publica? Nostrae erunt urbes? nostra tributa? nostra vectigalia? Et cur clericos, si hoc^[95] fecerimus, nos vocari licebit? Pars nostra sive sors, quae Graece dicitur κλήρος,^[96] est non terrena sed caelestis. Levitae, qui iidem^[97] clerici sunt, partem cum fratribus non fuere sortiti: et tu nos iubes etiam fratrum sortiri portionem!

“Quo mihi divitas atque opes, qui Domini voce iubeor nec de crastino esse sollicitus, et cui dictum est ab illo: ‘Nolite thesaurizare super terram; nolite possidere aurum, neque argentum, neque pecuniam in zonis vestris’; et, ‘Difficilius est divitem introire in regnum caelorum, quam camelum per foramen acus transire?’ Ideoque pauperes sibi ministros elegit et qui omnia relinquerent^[98] et eum sequerentur; et paupertatis ipse fuit exemplum. Usque adeo divitiarum pecuniarumque tractatio innocentiae inimica est, non modo possessio illarum atque dominatus. Unus Iudas, qui loculos [\[See English page\]](#) habebat et portabat quae mittebantur, praevaricatus est; et amore pecuniae, cui assueverat, Magistrum, Dominum, Deum et reprehendit et prodidit. Itaque vereor, Caesar, ne me ex Petro facias Iudam.

“Audi etiam quid Paulus dicat: ‘Nihil intulimus in hunc mundum: haud dubium, quod nec auferre quid possumus. Habentes autem alimenta, et quibus tegamur, his contenti simus. Nam qui volunt divites fieri, incidunt in tentationem et in laqueum diaboli et desideria multa et inutilia et nociva, quae mergunt homines in interitum et perditionem. Radix enim omnium malorum est cupiditas, quam quidam appetentes erraverunt a fide, et inseruerunt se doloribus multis. Tu autem, homo Dei, haec fuge.’ Et tu me accipere iubes, Caesar, quae velut venenum effugere debeo!

“Et quis praeterea, pro tua prudentia, Caesar, consideres, quis inter haec divinis rebus faciendis locus? Apostoli, quibusdam indignantibus quod viduae ipsorum in ministerio quotidiano despicerentur, responderunt non esse aequum relinquere se verbum Dei et ministrare mensis. Et tamen viduarum mensis ministrare, quanto aliud est quam exigere vectigalia, curare aerarium, stipendium numerare militibus, et mille aliis huiusmodi curis implicari? ‘Nemo militans Deo implicat se negotiis saecularibus,’ inquit Paulus. Numquid Aaron, cum ceteris Levitici generis, aliud quam Domini tabernaculum procurabat? Cuius^[99] filii, quia ignem alienum in thuribula sumpserant, igni caelesti conflagraverunt. Et tu iubes nos ignem saecularium divitiarum, vetitum ac profanum,^[100] in sacrata thuribula, id est in sacerdotalia opera sumere! Num Eleazar, num Phinees, num ceteri pontifices ministrique aut tabernaculi aut templi quicquam nisi quod ad rem divinam pertineret administrabant? Administrabant dico? Immo administrare poterant, si officio suo satisfacere volebant? Quod si nolint, audiant execrationem Domini dicentis: ‘Maledicti, qui opus Domini [\[See English page\]](#) faciunt negligenter.’ Quae execratio, cum in omnes, tum in pontifices maxime cadit.

“O quantum est pontificale munus! Quantum est caput esse ecclesiae! Quantum est praeponi pastorem tanto ovili, e cuius manu uniuscuiusque agni ovisque amissae sanguis exigitur; cui dictum est: ‘Si amas me plusquam alii, ut fateris, pasce agnos meos.’ Iterum, ‘si amas me, ut fateris, pasce oves meas.’ Tertio, ‘si amas me, ut fateris, pasce oves meas!’ Et tu me iubes, Caesar, capras etiam pascere et porcos, qui nequeunt ab eodem pastore custodiri!

“Quid, quod me regem facere vis, aut potius Caesarem, id est regum principem? Dominus Iesus Christus, Deus et homo, rex et sacerdos, cum se regem affirmaret, audi de quo regno locutus est: ‘Regnum meum,’ inquit, ‘non est de hoc mundo: si enim de hoc mundo esset regnum meum, ministri mei utique decertarent.’ Et quae fuit prima vox, ac frequentior^[101] clamor praedicationis eius, nonne hic:^[102] ‘Paenitentiam agite; appropinquavit enim regnum caelorum. Appropinquavit regnum Dei, cui comparabitur regnum caeli?’ Nonne, cum haec dixit, regnum saeculare nihil ad se pertinere declaravit? Eoque non modo regnum huiusmodi non quaesivit, sed oblatum quoque accipere noluit. Nam cum intelligeret aliquando populos destinasse ut eum raperent regemque facerent, in montium solitudines fugit. Quod nobis qui locum eius^[103] tenemus non solum exemplo dedit imitandum, sed etiam praecepto, inquires: ‘Principes gentium dominantur eorum, et qui maiores sunt potestatem exercent in eos. Non ita erit inter vos; sed quicumque voluerit inter vos maior fieri sit vester minister, et qui voluerit primus inter vos esse erit vester servus: sicut filius hominis non venit ut ministretur ei, sed ut ministret et det animam suam in^[104] redemptionem pro multis.’

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“Iudices olim Deus, ut scias, Caesar, constituit super Israel, non reges, populumque sibi nomen regium postulantem detestatus est. Nec aliter ob durtiam^[105] cordis illorum regem dedit, quam quod repudium permiserat, quod in nova lege revocavit. Et ego regnum accipiam, qui vix iudex esse permittor? ‘An nescitis,’ inquit Paulus, ‘quod sancti de hoc mundo iudicabunt? Et si in vobis iudicabitur mundus, indigni estis qui de minimis iudicetis. Nescitis quod angelos iudicabimus? Quanto magis saecularia? Saecularia igitur iudicia si habueritis, contemptibiles qui sunt in ecclesia, eos constituite ad iudicandum.’ Atqui iudices de rebus et controversiis^[106] tantummodo iudicabant, non etiam tributa exigebant. Ego exigam, qui scio a Domino interrogatum Petrum: ‘A quibusnam reges terrae acciperent tributum censumve, a filiis an ab alienis?’ et cum hic respondisset ‘Ab alienis,’ ad eodem dictum:

‘Ergo liberi sunt filii?’ Quod si omnes filii mei sunt, Caesar, ut certe sunt, omnes liberi erunt; nihil quisquam solvet. Igitur non est opus mihi tua donatione, qua nihil assecuturus sum praeter laborem quem, ut minime debeo, ita minime possum ferre.

“Quid quod necesse haberem potestatem exercere sanguinis, punire soutes, bella gerere, urbes diripere, regiones ferro ignique vastare! Aliter non est quod sperem posse me tueri quae tradidisses. Et si haec fecero, sacerdos, pontifex, Christi vicarius, sum? Ut illum in me tonantem audiam atque dicentem: ‘Domus mea domus orationis vocabitur omnibus gentibus, et tu fecisti eam speluncam latronum.’ ‘Non veni in mundum,’ inquit Dominus, ‘ut iudicem mundum, sed ut liberem eum.’ Et ego qui illi successi causa mortium [\[See English page\]](#) ero, cui in persona Petri dictum est: ‘Converte gladium tuum in locum suum: omnes enim qui acceperint gladium gladio peribunt?’ Ne defendere quidem nobis ferro nos licet, siquidem defendere Dominum Petrus volebat cum auriculam abscidit servo. Et tu divitiarum aut comparandarum aut tuendarum causa uti ferro nos iubes?

“Nostra potestas est potestas clavium, dicente Domino, ‘Tibi dabo claves regni caelorum. Quodcumque^{[\[107\]](#)} ligaveris super terram erit ligatum et in caelis, et quodcumque solveris super terram erit solutum et in caelis. Et portae inferi non praevallebunt adversus eas.’ Nihil ad hanc potestatem, nihil ad hanc dignitatem,^{[\[108\]](#)} nihil ad hoc regnum adici potest. Quo qui contentus non est, aliud sibi quoddam a diabolo postulat, qui etiam Domino dicere ausus est: ‘Tibi dabo omnia regna mundi, si cadens in terram adoraveris me.’ Quare, Caesar, cum pace tua dictum sit, noli mihi diabolus effici qui Christum, id est me, regna mundi a te data accipere iubeas. Malo enim illa spernere quam possidere.

“Et ut aliquid de infidelibus, sed, ut spero, futuris fidelibus, loquar; noli me de angelo lucis reddere illis angelum tenebrarum, quorum corda ad pietatem inducere volo, non ipsorum cervici iugum imponere, et gladio quod est verbum Dei, non gladio ferreo,^{[\[109\]](#)} mihi subicere; ne deteriores efficiantur, ne recalcitrent, ne cornu feriant, ne nomen Dei meo irritati errore blasphement.^{[\[110\]](#)} Filios

mihi carissimos^[111] volo reddere, non servos; adoptare, non emere; generare, non manu capere; animas eorum offerre sacrificium Deo, non diabolo corpora. ‘Discite a me,’ inquit Dominus, ‘quia mitis sum et humilis corde. Capite iugum meum, et invenietis requiem animabus vestris. Iugum enim meum suave^[112] et pondus meum leve.’

“Cuius ad extremum, ut iam^[113] finem faciam, illam de^[114] hac re [\[See English page\]](#) sententiam accipe quam quasi inter me et te tulit. ‘Reddite quae sunt Caesaris Caesari; et quae sunt Dei Deo.’ Quo fit ut nec tu, Caesar, tua relinquere, neque ego quae Caesaris sunt accipere debeam; quae vel si millies offeras numquam accipiam.”

Ad hanc Silvestri orationem apostolico viro dignam, quid esset quod amplius Constantinus posset opponere? Quod cum ita sit, qui aiunt donationem esse factam nonne iniuriosi sunt in Constantinum, quem suos privare imperiumque Romanum voluisse convellere; iniuriosi in senatum populumque Romanum, Italiam, totumque occidentem, quem contra ius fasque mutari imperium permississe; iniuriosi in Silvestrum, quem indignam sancto viro donationem acceptam habuisse; iniuriosi in summum pontificatum cui licere terrenis potiri regnis et Romanum moderari Imperium arbitrantur? Haec tamen omnia eo pertinent, ut appareat Constantinum inter tot impedimenta numquam fuisse facturum, ut rem Romanam Silvestro ex maxima parte donaret ut isti aiunt.

Age porro, ut credamus istam donationem de qua facit pagina vestra mentionem, debet constare etiam de acceptance Silvestri. Nunc de illa non constat. At credibile est, dicitis, ratam hunc habuisse donationem. Ita credo, nec ratam habuisse modo, verum etiam petiisse, rogasse, precibus extorsisse, credibile est. Quid vos credibile, quod praeter opinionem est hominum, dicitis? Nec quia in pagina privilegii de donatione fit mentio, putandum est fuisse acceptatum:^[115] sed e contrario, quia non fit mentio de acceptance, dicendum est non fuisse donatum.^[116] Ita plus contra vos [\[See English page\]](#) facit, hunc donum respuisse, quam illum dare voluisse; et beneficium in invitum non confertur. Neque vero tantum donata respuisse

Silvestrum suspicari debemus, sed tacite etiam indicasse nec illum dare iure^[117] nec se iure accipere posse.

Sed o caecam semper inconsultamque avaritiam!^[118] Demus ut tabulas quoque de assensu Silvestri proferre possitis veras, incorruptas, sinceras: num protinus donata sunt quae in talibus^[119] continentur? Ubi possessio? Ubi in manus traditio? Nam si chartam modo Constantinus dat, non gratificari Silvestro voluit, sed illudere. Verisimile est, dicitis, qui donat quippiam eum et possessionem tradere. Videte quid loquamini! cum possessionem non esse datam constet, et an datum sit ius ambigatur. Verisimile est qui possessionem non dedit, eum ne ius quidem dare voluisse.

An non constat possessionem numquam fuisse traditam? Quod negare impudentissimum est. Numquid Silvestrum Constantinus in Capitolium quasi triumphantem inter frequentium Quiritum, sed infidelium, plausum duxit? In sella aurea adsistente universo senatu collocavit? Magistratus pro sua quemque dignitate regem salutare et adorare iussit? Hoc^[120] erga novos principes fieri solet, non tantum aliquod palatium velut Lateranense tradi. Num postea per universam Italiam circumduxit?^[121] Adiit cum illo Gallias; adiit Hispanos;^[122] adiit Germanos, ceterumque occidentem? Aut si gravabantur^[123] ambo tantum obire terrarum, quibusnam tam ingens officium delegarunt, qui et Caesaris vice traderent possessionem et Silvestri acciperent? Magni ii^[124] viri atque eximiae auctoritatis esse debuerunt: et tamen qui fuerint ignoramus. Et quantum in his duobus verbis, *tradere* et *accipere*, subest pondus!^[125] Nostra memoria, ut exempla vetusta omittam, numquam aliter facitatum vidimus, cum quis aut urbis aut regionis aut provinciae dominus factus est; ita demum traditam existimari possessionem, si magistratus [\[See English page\]](#) pristini summoveantur novique subrogentur. Hoc si tunc Silvester fieri non postulasset, tamen magnificentiae Constantini intererat, ut declararet non verbo se, sed re possessionem tradere, suos praesides amovere aliosque ab illo substitui iubere. Non traditur possessio quae penes eosdem remanet qui possidebant, et novus dominus illos summovere non audet.

Sed fac istud quoque non obstore, et nihilominus putari Silvestrum possedissee, atque omnia praeter morem praeterque naturam tunc esse dicamus administrata. Postquam ille abiit, quos provinciis urbibusque

rectores Silvester praeposuit; quae bella gessit; quas nationes ad arma spectantes oppressit; per quos haec administravit? Nihil horum scimus, respondetis. Ita puto, nocturno tempore haec omnia gesta sunt, et ideo nemo vidit.

Age, fuit in possessione Silvester? Quis eum de possessione deiecit? Nam perpetuo in possessione non fuit, neque successorum aliquis saltem usque ad Gregorium Magnum, qui et ipse caruit possessione. Qui extra possessionem est, nec se ab ea deiectum probare potest, is profecto numquam possedit; et si se possedisce dicat, insanit. Vides ut te insanum etiam probo! Alioquin, dic quis papam deiecit? Ipsene Constantinus, an eius filii, an Iulianus, an quis^[126] alius Caesar? Profer nomen expulsoris, profer tempus, unde primum, unde secundo, ac deinceps expulsus est. Num per seditionem^[127] et caedes, an sine his? Coniurarunt in eum pariter nationes, an quae prima? Quid! Nemo omnium auxilio fuit: ne illorum quidem qui per Silvestrum aliumve papam praepositi urbibus ac provinciis erant? Uno die universa amisit; an paulatim et per partes? Restitit ipse suique magistratus; an ad primum se tumultum abdicarunt? Quid! Ipsi victores non in eam faecem^[128] hominum, quam indignam imperio ducebant, ferro grassati sunt, in ultionem^[129] contumeliae, in tutelam occupatae dominationis, in [\[See English page\]](#) contemptum religionis nostrae, in ipsum etiam posteritatis exemplum? Omnino eorum qui victi sunt nemo fugam cepit? nemo latuit? nemo timuit? O admirabilem casum! Imperium Romanum tantis laboribus, tanto cruore partum, tam placide, tam quiete a Christianis sacerdotibus vel partum est, vel amissum, ut nullus cruor, nullum bellum, nulla querela intercesserit; et quod non minus admirari debeas, per quos hoc gestum sit, quo tempore, quomodo, quamdiu, prorsus ignotum. Putes in silvis inter arbores regnasse Silvestrum, non Romae, et inter homines; et ab hibernis^[130] imbribus frigoribusque, non ab hominibus eiectum.

Quis non habet cognitum, qui paulo plura lectitarit, quot reges Romae, quot consules, quot dictatores, quot tribuni plebis, quot censores, quot aediles^[131] creati fuerint? Nemoque ex tanta hominum copia, ex tanta vetustate nos fugit. Scimus item quot Atheniensium duces, quot Thebanorum, quot Lacedaemoniorum exstiterint; pugnas eorum terrestres navalesque universas tenemus. Non ignoramus qui reges Persarum,

Medorum,^[132] Chaldaeorum, Hebraeorum fuerint, aliorumque plurimorum; et quomodo horum quisque aut acceperit regnum, aut tenuerit, aut perdiderit, aut recuperaverit. Romanum autem, sive Silvestrianum, Imperium, qua ratione inceperit, aut qua desierit, quando, per quos, in ipsa quoque urbe nescitur. Interrogo num^[133] quos harum rerum testes auctoresque proferre possitis. Nullos, respondetis. Et non pudet vos, non tam homines, quam pecudes dicere verisimile esse possedissee Silvestrum!

Quod quia vos non potestis, ego e contrario docebo, ad ultimum usque diem vitae Constantinum, et gradatim deinceps omnes Caesares possedissee, ut ne quid habeatis quod hiscere possitis. At perdifficile est et magni, ut opinor, operis hoc docere! Evolvantur omnes Latinae Graecaeque historiae; citentur ceteri auctores qui de illis meminere temporibus: ac^[134] neminem reperies in hac re ab alio discrepare. Unum ex mille testimoniis sufficiat.^[135] Eutropius, qui Constantinum, qui tres Constantini filios a patre relictos [\[See English page\]](#) dominos orbis terrarum vidit, qui de Iuliano filio fratris Constantini ita scribit: “Hic Iulianus, qui fuit subdiaconus^[136] in Romana ecclesia, Imperator^[137] effectus apostatavit in idolorum cultu,^[138] rerum potitus est, ingentique apparatu Parthis intulit bellum, cui expeditioni ego quoque interfui.” Nec de donatione Imperii occidentis tacuisset; nec paulo post de Ioviano, qui successit Iuliano, ita dixisset: “Pacem cum Saporem necessariam quidem sed ignobilem fecit, mutatis finibus ac nonnulla Imperii Romani parte tradita. Quod ante, ex quo Romanum Imperium conditum erat, numquam accidit. Quin etiam legiones nostrae apud Caudium per Pontium Telesinum^[139] et in Hispania apud Numantiam et in Numidia sub iugo missae sunt, ut nihil tamen finium traderetur.”

Hoc loco libet vos,^[140] nuperrime licet^[141] defuncti estis, convenire, pontifices Romani, et te, Eugeni, qui vivis cum Felice^[142] tamen venia. Cur donationem Constantini magno ore iactitis, frequenterque vos ultores erepti Imperii quibusdam regibus principibusque minamini, et confessionem quandam servitutis a Caesare dum coronandus est et a nonnullis aliis principibus extorquetis, veluti ab rege Neapolitano atque Siciliae; id quod numquam aliquis veterum Romanorum pontificum fecit, non Damasus apud Theodosium, non Syricius apud Arcadium,^[143] non Anastasius apud Honorium, non Ioannes apud Iustinianum, non alii apud alios sanctissimi papae apud optimos Caesares, sed semper illorum Roman

Italiamque, cum provinciis quas nominavi, fuisse professi sunt? Eoque numismata aurea, ut de aliis monumentis sileam templisque urbis Romanae, circumferuntur, non Graecis sed Latinis litteris inscripta, Constantini iam Christiani et deinceps [\[See English page\]](#) cunctorum ferme Imperatorum, quorum multa penes me sunt cum hac plerumque subscriptione subter imaginem crucis, “Concordia orbis.” Qualia infinita reperirentur summorum pontificum, si umquam Romae imperassetis! Quae nulla reperiuntur, neque aurea, neque argentea, neque ab aliquo visa memorantur. Et tamen necesse erat illo tempore proprium habere numisma quisquis imperium Romae teneret; saltem sub imagine Salvatoris aut Petri.

Pro^[144] imperitiam hominum! Non cernitis, si donatio Constantini vera est, Caesari—de Latino loquor—nihil relinqui. En qualis Imperator, qualis rex Romanus erit, cuius regnum si quis habeat, nec aliud habeat, omnino nil habet! Quod si itaque palam est Silvestrum non possedisse; hoc est, Constantinum non tradidisse possessionem, haud dubium erit ne ius quidem, ut dixi, dedisse possidendi: nisi dicitis ius quidem datum, sed aliqua causa possessionem non traditam; ita plane dabat quod minime futurum intelligebat; dabat quod tradere non poterat; dabat quod non prius venire in manus eius cui dabatur possibile erat quam esset extinctum; dabat donum quod ante quingentos annos aut numquam valitum foret. Verum hoc loqui aut sentire insanum est.

Sed iam tempus est, ne longior fiam, causae adversariorum iam concisae atque laceratae letale^[145] vulnus imprimere et uno eam iugulare ictu. Omnis fere historia, quae nomen historiae meretur, Constantinum a puero cum patre Constantio^[146] Christianum refert multo etiam ante pontificatum Silvestri; ut Eusebius ecclesiasticae scriptor historiae, quem Rufinus,^[147] non in postremis doctus, in Latinum interpretatus duo volumina de aevo suo adiecit, quorum [\[See English page\]](#) uterque paene^[148] Constantini temporibus fuit. Adde huc testimonium etiam Romani pontificis qui his rebus gerendis non interfuit sed praefuit, non testis sed auctor, non alieni negotii sed sui narrator. Is est Melchiades papa, qui proximus fuit ante Silvestrum, qui ita ait: “Ecclesia ad hoc usque pervenit, ut non solum gentes sed etiam Romani principes, qui totius orbis monarchiam tenebant, ad fidem Christi et^[149] fidei sacramenta concurrerent. E quibus vir religiosissimus Constantinus,

primus fidem veritatis patenter adeptus, licentiam dedit per universum orbem^[150] suo degentibus imperio non solum fieri Christianos, sed etiam fabricandi ecclesias, et praedia constituit tribuenda. Denique idem praefatus princeps donaria immensa contulit, et fabricam templi primae sedis beati Petri instituit; adeo ut sedem imperialem relinqueret et beato Petro suisque successoribus profuturam concederet.” En nihil Melchiades a Constantino datum ait, nisi palatium Lateranense, et praedia, de quibus Gregorius in registro facit saepissime mentionem. Ubi sunt qui nos^[151] in dubium vocare non sinunt donatio Constantini valeat necne, cum illa donatio fuerit et ante Silvestrum et rerum tantummodo privatarum?

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Quae res quamquam plana et aperta sit, tamen de ipso quod isti stolidi proferre solent privilegio disserendum est.

Et ante omnia non modo ille qui Gratianus videri voluit, qui nonnulla ad opus Gratiani adiecit, improbitatis arguendus est, verum etiam inscitiae qui opinantur paginam privilegii apud Gratianum contineri; quod neque docti umquam putarunt, et in vetustissimis quibusque editionibus^[152] decretorum non invenitur. Et si quo in loco huius rei Gratianus meminisset, non in hoc ubi isti collocant seriem ipsam orationis abrumpentes, sed in eo ubi agit de Ludovici^[153] pactione meminisset. Praeterea duo millia locorum in decretis sunt quae ab huius loci fide dissentiant; quorum unus est ubi, quae superius retuli, Melchiadis verba ponuntur. Nonnulli eum qui hoc capitulum adiecit aiunt vocatum *Paleam* vel vero nomine, vel ideo quod quae de suo adiunxit ad Gratianum comparata instar palearum iuxta frumenta existimentur. Utcumque sit, indignissimum est credere, quae ab^[154] hoc adiecta sunt, ea decretorum collectorem aut ignorasse, aut magnificisse habuisseque pro veris. Bene habet, sufficit; vicimus. Primum quod hoc Gratianus non ait ut isti mentiebantur, immo adeo, prout^[155] ex infinitis locis datur intelligi, negat atque confutat. Deinde quod unum et ignotum et nullius auctoritatis ac minimi^[156] hominem afferunt, ita etiam stolidum, ut ea Gratiano affinxerit, quae cum ceteris illius dictis congruere non possent. Hunc ergo vos auctorem profertis? Huius unius testimonio nitimini?^[157] Huius chartulam ad tantae rei confirmationem contra sexcenta probationum genera recitatis? At ego exspectaveram ut aurea sigilla, marmoratos titulos, mille auctores ostenderetis.

Sed ipse, dicitis, Palea auctorem profert, fontem historiae ostendit, [\[See English page\]](#) et Gelasium^[158] papam cum multis episcopis in testimonium citat. “Ex Gestis,” inquit, “Silvestri, quae beatus Gelasius in concilio septuaginta episcoporum a catholicis legi commemorat, et pro antiquo usu multas hoc dicit ecclesias imitari; in quibus legitur, Constantinus et cetera.” Multo superius, ubi de libris legendis et non legendis agitur, etiam dixerat, “Actus beati Silvestri praesulis, licet eius qui scripsit nomen ignoremus, a multis tamen ab urbe Roma catholicis legi cognovimus, et pro antiquo usu hoc imitantur ecclesiae.” Mira haec auctoritas, mirum testimonium, inexpugnabilis probatio! Dono vobis hoc, Gelasium dum de concilio septuaginta episcoporum loquitur id dixisse. Num id dixit, paginam privilegii in beatissimi Silvestri Gestis legi? Is vero tantum ait Gesta Silvestri legi^[159] et hoc Romae, cuius ecclesiae auctoritatem multae aliae sequuntur,^[160] quod ego non nego; concedo, fateor; me quoque una cum Gelasio testem exhibeo. Verum quid vobis ista res prodest, nisi ut in adducendis testibus mentiri voluisse videamini? Ignoratur nomen eius qui hoc in Decretis ascripsit, et solus hoc dicit. Ignoratur nomen eius qui scripsit historiam, et solus is et falso testis affertur. Et vos, boni viri atque prudentes, hoc satis superque esse ad tantae rei testimonium existimatis? At videte, quantum inter meum intersit vestrumque iudicium. Ego ne si hoc quidem apud Gesta Silvestri privilegium contineretur, pro vero habendum putarem, cum historia illa non historia sit, sed poetica et impudentissima fabula, ut posterius ostendam; nec quisquam alius alicuius dumtaxat^[161] auctoritatis de hoc privilegio [\[See English page\]](#) habeat mentionem. Et Iacobus Voraginis, propensus in amorem clericorum ut archiepiscopus, tamen in Gestis sanctorum de donatione Constantini, ut fabulosa nec digna quae inter Gesta Silvestri poneretur, silentium egit; lata quodammodo sententia contra eos, si qui haec litteris mandavissent.

Sed ipsum falsarium ac vere “paleam,” non triticum, obtorto collo in iudicium trahere volo. Quid ais, falsarie? Unde fit quod istud privilegium inter Silvestri Gesta non legimus? Credo hic liber rarus est, difficilis inventu, nec vulgo habetur, sed tamquam fasti olim a pontificibus, aut libri Sibyllini^[162] a decemviris custoditur! Lingua Graeca aut Syriaca aut Chaldaica scriptus est! Testatur Gelasius a multis catholicis legi; Voraginis de eo meminit; nos quoque mille et antike scripta exemplaria vidimus; et in omni fere cathedrali ecclesia, cum adest Silvestri natalis dies,

lectitantur: et tamen nemo se illic legisse istud ait quod tu affingis, nemo audisse, nemo somniasse. An alia quaedam fortassis historia est? Et quaenam ista erit? Ego aliam nescio, nec abs te aliam dici interpretor, quippe de ea tu loqueris quam Gelasius apud multas ecclesias lectitari refert. In hac autem tuum privilegium non invenimus. Quod si istud in Vita Silvestri non legitur, quid tu ita legi tradidisti? Quid in tanta re iocari ausus es, et levium hominum cupiditatem eludere?

Sed stultus sum qui illius potius insector audacium, quam istorum dementiam qui crediderunt. Si quis apud Graecos, apud Hebraeos, apud barbaros diceret hoc esse memoriae proditum, nonne iuberetis nominari auctorem, proferri codicem, et locum ab interprete fideli exponi antequam crederetis? Nunc de lingua [\[See English page\]](#) vestra, de notissimo codice fit mentio, et vos tam incredibile factum aut non inquiritis, aut, cum scriptum non reperiatis, tam prona estis credulitate ut pro scripto habeatis atque pro vero. Et hoc titulo contenti, terras miscetis et maria, et, quasi nullum subsit dubium, eos qui vobis non credunt, terrore bellorum aliisque minis prosequimini. Bone Iesu, quanta vis, quanta divinitas est veritatis, quae per sese sine magno conatu ab omnibus dolis ac fallaciis se ipsa defendit, ut non immerito, cum esset apud Darium regem exorta contentio quid foret maxime validum et alius aliud diceret, tributa sit palma veritati!

Quia cum sacerdotibus, non cum saecularibus, mihi res est, ecclesiastica magis quam saecularia sunt exempla repetenda. Iudas Machabaeus, cum dimissis Romam legatis foedus amicitiamque a senatu impetrasset, curavit verba foederis in aes incidenda Ierosolimamque portanda. Taceo de lapideis decalogi tabulis, quas Deus Moysi dedit. Ista vero tam magnifica Constantini et tam inaudita donatio nullis neque in auro, neque in argento, neque in aere, neque in marmore, neque postremo in libris, probari documentis potest; sed tantum, si isti credimus, in charta, sive membrana. Iobal primus musices auctor, ut est apud Iosephum, cum esset a maioribus per manus tradita opinio res humanas semel aqua iterum igni delendas, doctrinam suam duabus columnis^[163] inscripsit, lateritia contra ignem, lapidea contra aquas; quae ad Iosephi aevum, ut idem scribit, permansit; ut suum in homines beneficium semper exstaret. Et apud Romanos rusticanos^[164] adhuc et agrestes, cum parvae et rarae litterae essent, tamen leges duodecim tabularum in aes fuere incisae, quae vi^[165] capta atque incensa a Gallis urbe incolumes postea sunt repertae. Adeo duo maxima in

rebus humanis, diuturnitatem temporis et fortunae violentiam, vincit [\[See English page\]](#) circumspecta providentia. Constantinus vero orbis terrarum donationem papyro^[166] tantum et atramento signavit, cum praesertim machinator fabulae, quisquis ille fuit, faciat Constantinum dicentem se credere non defore qui donationem hanc impia aviditate rescinderent! Hoc times, Constantine, et non caves ne ii qui Romam Silvestro eriperent chartulam quoque surriperent?

Quid ipse Silvester pro se nihil agit? Ita omnia Constantino remittit? Ita securus ac segnis est in tanto negotio? Nihil sibi, nihil ecclesiae suae, nihil posteritati prospicit? En, cui Imperium Romanum administrandum committas,^[167] qui tam magnae rei tantoque aut lucro aut periculo indormit! Si quidem sublata chartula, privilegii donationem utique aetate procedente probare non poterit.

“Paginam privilegii” appellat homo vesanus. Privilegiumne tu (libet velut praesentem insectari) vocas donationem orbis terrarum; et hoc in pagina vis esse scriptum; et isto genere orationis usum esse Constantinum? Si titulus absurdus est, qualia cetera existimemus?

“Constantinus Imperator quarto die sui baptismatis privilegium Romanae ecclesiae pontifici contulit, ut in toto orbe Romano^[168] sacerdotes ita hunc caput habeant, sicut iudices regem.” Hoc in ipsa Silvestri historia continetur; ex quo dubitari non potest ubinam scriptum significetur “privilegium.” Sed, more eorum qui mendacia machinantur, a vero incoepit^[169] ut sequentibus, quae falsa sunt, conciliet fidem, ut Sinon apud Virgilium:

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“Cuncta equidem tibi, rex, fuerint quaecumque fatebor.
Vera, inquit, nec me Argolica de gente negabo.”

Hoc primum, deinde falsa subiecit. Ita hoc loco noster Sinon facit, qui cum a vero incoepisset, adiecit:

“In eo privilegio, inter cetera, legitur: ‘Utile iudicavimus una cum omnibus satrapis nostris et universo senatu, optimatibus etiam, et cum cuncto populo imperio Romanae ecclesiae subiacenti ut sicut beatus Petrus in terris vicarius Dei videtur esse constitutus, etiam et pontifices ipsius principis apostolorum vicem principatus potestatem amplius quam terrenae imperialis nostrae serenitatis mansuetudo habere videretur, concessam a nobis nostroque imperio obtineant.’”

O scelerate atque malefice! Eadem quam affers in testimonium refert historia, longo tempore neminem senatorii ordinis voluisse accipere religionem Christianam, et Constantinum pauperes sollicitasse pretio ad baptismum. Et tu ais intra primos statim dies senatum, optimates, satrapes, [\[170\]](#) quasi iam Christianos, de honestanda ecclesia Romana cum Caesare decrevisse! Quid! Quod vis interfuisse satrapes? O cautes, O stipes! Sic loquuntur Caesares? Sic concipi solent decreta Romana? Quis umquam satrapes in consiliis Romanorum nominari audivit? Non teneo memoria umquam legisse me ullum, non modo Romanum, sed ne in Romanorum quidem provinciis satrapem nominatum. At hic Imperatoris [\[See English page\]](#) satrapes vocat, eosque senatui praeponit, cum omnes honores, etiam qui principi deferuntur, tantum a senatu decernantur, aut iuncto [\[171\]](#) “populoque Romano.” Hinc est quod in lapidibus vetustis aut tabulis aereis aut numismatis duas litteras videmus scriptas: S. C.; id est, “Senatus consulto,” vel quattuor: [\[172\]](#) S. P. Q. R., hoc est, “Senatus populusque Romanus.” Et, ut Tertullianus meminit, cum Pontius Pilatus de admirandis Christi actionibus ad Tiberium Caesarem, non ad senatum, scripsisset, siquidem ad senatum scribere de magnis rebus magistratus consueverant, senatus hanc rem indigne tulit, Tiberioque praerogativam ferenti ut Iesus pro deo coleretur repugnavit, ob tacitam tantummodo indignationem offensae senatoriae dignitatis. Et ut scias quantum senatus valeat auctoritas, ne pro deo coleretur obtinuit.

Quid! Quod ais optimates? Quos aut primarios in republica viros intelligimus, qui cur nominentur [\[173\]](#) cum de ceteris magistratibus silentium sit? aut eos qui populares non sunt, benevolentiam populi aucupantes, sed optimi cuiusque et bonarum partium studiosi ac defensores, ut Cicero quadam oratione demonstrat? Ideoque Caesarem ante oppressam

republicam popularem fuisse dicimus, Catonem ex optimatibus, quorum differentiam Sallustius explicavit. Neque hi optimates magisquam populares aut ceteri boni viri dicuntur in consilio adhiberi.

Sed quid mirum si adhibentur optimates, ubi cunctus populus, si homini credimus, cum senatu et Caesare iudicavit, et is quidem Romanae ecclesiae subiacens! Et quis iste est populus? Romanusne? [\[See English page\]](#) At cur non dicitur populus Romanus potiusquam populus subiacens? Quae nova ista contumelia est in Quirites, de quibus optimi poetae elogium est:

“Tu regere imperio populos, Romane, memento?”

Qui regit alios populos,[\[174\]](#) ipse vocatur populus subiacens, quod inauditum est. Nam in hoc, ut in multis epistolis Gregorius testatur, differt Romanus princeps[\[175\]](#) a ceteris, quod solus est princeps liberi populi. Ceterum ita sit ut vis. Nonne et alii populi subiacent? An alios quoque significas? Quomodo fieri istud triduo poterat, ut omnes populi subiacentes imperio Romanae ecclesiae illi decreto adessent? Tametsi num[\[176\]](#) omnis faex populi iudicabat? Quid! Antequam subiecisset Romano pontifici populum Constantinus subiectum vocaret? Quid! Quod ii[\[177\]](#) qui subiacentes vocantur faciendo dicuntur praefuisse decreto? Quid! Quod hoc ipsum dicuntur decrevisse, ut sint subiacentes et ut ille cui subiacent hos habeat subiacentes? Quid agis aliud, infelix,[\[178\]](#) nisi ut iudices te voluntatem fallendi habere, facultatem non habere?

“Eligentes nobis ipsum principem apostolorum, vel eius vicarios, firmos apud Deum esse patronos. Et sicut nostra est terrena imperialis potentia, ita eius sacrosanctam Romanam ecclesiam decrevimus veneranter honorare, et amplius quam nostrum imperium terrenumque thronum, sedem sacratissimam beati Petri gloriose exaltari,[\[179\]](#) tribuentes ei potestatem et gloriam et dignitatem, atque vigorem et honorificentiam imperialem.”

Revivisce paulisper, Firmiane[\[180\]](#) Lactanti, resisteque huic asino tam vaste immaniterque rudenti. Ita verborum turgentium strepitu delectatur, ut eadem repetat et inculcet quae modo dixerat. [\[See English page\]](#) Huncne in

modum aevo tuo loquebantur Caesarum scribae, ne dicam agasones? Elegit sibi illos Constantinus non patronos, sed “esse patronos.” Interposuit illud “esse” ut numerum redderet concinnioem. Honesta ratio! Barbare loqui ut venustius currat oratio, si modo quid in tanta scabritia venustum esse potest! “Eligentes principem apostolorum, vel eius vicarios.” Non eligis^[181] Petrum et eius deinceps vicarios, sed aut hunc exclusis illis, aut illos hoc excluso. Et pontifices Romanos appellat vicarios Petri, quasi vel vivat Petrus, vel minori dignitate sint ceteri quam Petrus fuit. Nonne et illud barbarum est; “a nobis nostroque imperio?” Quasi imperium habeat animum concedendi et potestatem! Nec fuit contentus dicere “obtineant,” nisi etiam diceret “concessam,” cum satis alterum esset. Et illud “firmos patronos,” perquam elegans est! Scilicet firmos vult ne pecunia corrumpantur aut metu labantur. Et illud “terrena imperialis potentia”; duo adiectiva sine copula! Et illud “veneranter honorare,” et illud “nostrae imperialis serenitatis mansuetudo!” Lactantianam eloquentiam redolet, cum de potentia agatur imperii, serenitatem nominare et mansuetudinem, non amplitudinem et maiestatem. Quod etiam tumida superbia inflatum est, ut in illo quoque, “gloriose exaltari”^[182] per “gloriam et potestatem et dignitatem, et vigorem et honorificentiam imperialem”! quod ex Apocalypsi sumptum videtur, ubi dicitur: “Dignus est agnus qui occisus est, accipere virtutem et divinitatem”^[183] et sapientiam et fortitudinem et honorem et benedictionem.” Frequenter, ut posterius liquebit, titulos Dei sibi [\[See English page\]](#) arrogare fingitur Constantinus, et imitari velle sermonem sacrae Scripturae, quem numquam legerat.

“Atque decernentes sancimus, ut principatum teneat, tam super quatuor sedes Alexandrinam, Antiochenam, Ierosolimitanam, Constantinopolitanam, quam etiam super omnes in universo orbe terrarum Dei ecclesias; etiam pontifex, qui per tempora ipsius sacrosanctae Romanae ecclesiae extiterit, celsior et princeps cunctis sacerdotibus et totius mundi existat, et eius iudicio, quae ad cultum Dei et fidem Christianorum vel stabilitatem procurandam fuerint, disponantur.”^[184]

Omitto hic barbariem sermonis, quod “princeps sacerdotibus” pro “sacerdotum” dixit, et quod in eodem loco posuit “extiterit” et “existat,” et,

cum dixerit “in universo orbe terrarum,” iterum addit “totius mundi,” quasi quiddam diversum, aut caelum, quae mundi pars est, complecti velit, cum bona pars orbis terrarum sub Roma non esset, et quod “fidem Christianorum,” “vel stabilitatem procurandam,” tamquam non possent simul esse, distinxit, et quod “decernere” et “sancire” miscuit, et veluti prius cum ceteris Constantinus non iudicasset, decernere eum et, tamquam poenam proponat, sancire, et quidem una cum populo sancire facit. Quis hoc Christianus pati queat, et non papam, qui hoc patitur ac libens audit et recitat, censorie severeque castiget, quod, cum a Christo primatum acceperit Romana sedes et id, Gratiano testante multisque Graecorum, octava synodus declararit, accepisse dicatur [\[See English page\]](#) a Constantino vix dum Christiano tamquam a Christo? Hoc ille modestissimus princeps dicere, hoc piissimus pontifex audire voluisset? Absit tam grave ab utroque illorum nefas!

Quid, quod multo est absurdius, capite rerum natura, ut quis de Constantinopoli loqueretur tamquam una patriarchalium sedium, quae nondum esset nec patriarchalis, nec sedes, nec urbs Christiana, nec sic nominata, nec condita, nec ad condendum destinata? Quippe privilegium concessum est triduo quod Constantinus esset effectus Christianus, cum Byzantium^[185] adhuc erat, non Constantinopolis. Mentior nisi hoc quoque confiteatur^[186] hic stolidus. Scribit enim prope calcem privilegii:

“Unde congruum prospeximus, nostrum imperium et regiam potestatem orientalibus transferri regionibus, et in Byzantiae provinciae optimo loco nomini nostro civitatem aedificari, et illic nostrum constitui imperium.”

Si ille transferre volebat alio imperium, nondum transtulerat. Si illic volebat constituere imperium, nondum constituerat. Si sic volebat aedificare urbem, nondum aedificaverat. Non ergo fecisset mentionem de patriarchali, de una quattuor sedium, de Christiana, de sic nominata, de condita; de qua condenda, ut historiae placet quam Palea in testimonium affert, ne cogitarat quidem. A qua^[187] non videt haec belua, sive is Palea sit, sive alius quem Palea sequitur, se dissentire, ubi Constantinus, non sua sponte, sed inter quietem admonitu Dei, non Romae, sed Byzantii, non intra paucos dies, sed post aliquot annos, dicitur decrevisse de urbe condenda, nomenque quod in

somnis edoctus fuerat indidisse. Quis ergo non [\[See English page\]](#) videt, qui privilegium composuit, eum diu post tempora Constantini fuisse, et, cum vellet adornare mendacium, excidisse sibi quod ante dixisset haec gesta esse Romae tertio die quam ille fuisset baptizatus: ut in eum decentissime cadat tritum vetustate proverbium, “Mendaces memores esse oportere”?

Quid, quod Byzantium provinciam vocat quod erat oppidum nomine^[188] Byzantium? Locus haudquaquam capax tantae urbis condendae: namque muris complexa est Constantinopolis vetus Byzantium! Et hic in eius optimo loco ait urbem esse condendam! Quid, quod Thraciam,^[189] ubi positum erat Byzantium, vult esse in oriente, quae vergit ad Aquilonem! Opinor ignorabat Constantinus locum quem condendae urbi delegerat, sub quo caelo esset, urbsque an provincia, quanta eius mensura foret!

“Ecclesiis beatorum apostolorum Petri et Pauli pro continuatione luminariorum possessionum praedia contulimus, et rebus diversis eas ditavimus, et per nostram imperialem iussionem sacram tam in oriente quam in occidente quam etiam a septentrione et meridionali plaga, videlicet in Iudaea, Graecia, Asia, Thracia, Africa, et Italia, vel diversis insulis, nostra largitate eis concessimus, ea prorsus ratione, ut per manus beatissimi patris nostri Silvestri summi pontificis successorumque eius omnia disponantur.”

O furcifer! Ecclesiaene, id est templa, Romae erant Petro et Paulo dicatae? Quis eas extruxerat?^[190] Quis aedificare ausus fuisset cum nusquam foret, ut historia ait, Christianis locus nisi secreta et latebrae? Aut si qua templa Romae fuissent illis dicata apostolis, non erant digna in quibus tanta luminaria accenderentur; aediculae sacrae, non aedes; sacella, non templa; oratoria inter privatos parietes, non publica delubra. Non ergo ante cura gerenda erat de luminaribus templorum, quam de ipsis templis.

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Quid ais tu, qui facis Constantinum dicentem Petrum et Paulum beatos, Silvestrum vero cum adhuc vivit beatissimum, et suam qui paulo ante fuisset ethnicus iussionem sacram? Tantane conferenda sunt pro luminaribus continuandis, ut totus orbis terrarum fatigetur? At quae ista praedia sunt, praesertim “possessionum”? Praediorum possessiones dicere

solemus, non “possessionum praedia.” Das praedia, nec quae praedia explicas. Ditasti diversis rebus, nec quando, nec quibus rebus ostendis. Vis plagas orbis a Silvestro disponi, nec pandis quo genere disponendi. Concessisti haec antea? Cur te hodie incoepisse significas honorare ecclesiam Romanam et ei privilegium concedere? Hodie concedis; hodie ditas? Cur dicis “concessimus” et “ditavimus”? Quid loqueris, aut quid sentis, bestia? Cum fabulae machinatore mihi sermo est, non cum optimo principe Constantino.

Sed quid in te ullam prudentiam, ullam doctrinam requiro, qui nullo ingenio, nulla litteratura es praeditus; qui ais “luminariorum” pro luminarium, et “orientalibus transferri regionibus” pro eo quod est ad orientales transferri regiones? Quid porro? Istaene sunt quattuor plagae? Quam orientalem numeras? Thraciamne? At, ut dixi, vergit ad septentrionem. An Iudaeam? At magis ad meridiem spectat, utpote vicina Aegypto. Quam item occidentalem? Italiamne? At haec in Italia gerebantur, quam nemo illic agens occidentalem vocat; cum Hispanias dicamus esse in occidente; et Italia hinc ad meridiem illinc ad arcton magisquam ad occidentem vergit. Quam septentrionalem? An Thraciam? At ipse ad orientem esse vis. An Asiam? At haec sola totum possidet orientem, septentrionem vero communem^[191] cum Europa. Quam meridionalem? Certe Africam. At cur non aliquam nominatim provinciam proferebas? Nisi forte Aethiopes Romano imperio [\[See English page\]](#) suberant. Et nihilominus non habent locum Asia et Africa cum orbem terrarum in quattuor dividimus partes et nominatim regiones singularum referimus, sed cum in tres, Asiam, Africam, Europam; nisi Asiam pro Asiatica provincia, Africam pro ea provincia quae prope Gaetulos^[192] est, appellas, quae non video cur praecipue nominentur.^[193]

Sicine^[194] locutus esset Constantinus, cum quattuor orbis plagas exsequitur,^[195] ut has regiones nominaret, ceteras non nominaret; et a Iudaea inciperet, quae pars Syriae numeratur et quae amplius Iudaea non erat, eversa Hierosolima, fugatis et prope extinctis^[196] Iudaeis, ita ut credam vix aliquem in sua tunc patria remansisse, sed alias habitasse nationes? Ubi tandem erat Iudaea, quae nec Iudaea amplius vocabatur, ut hodie videmus illud terrae nomen extinctum? Et sicut exterminatis Chananeis Chananea regio desiit appellari, commutato nomine in Iudaeam a

novis incolis, ita exterminatis Iudaeis et convenis gentibus eam incolentibus desierat Iudaea nominari.

Nuncupas Iudaeam, Thraciam, insulas; Hispanias vero, Gallias, Germanos non putas nuncupandos, et cum de aliis linguis loquaris, Hebraea, Graeca, barbara, de ulla provinciarum Latino sermone utentium non loqueris. Video: has tu ideo^[197] omisisti, ut postea in donatione complectereris. Et quid non tanti erant tot provinciae occidentis, ut continuandis luminaribus suppeditarent sumptus, nisi reliquus orbis adjuvaret?

Transeo quod haec concedi ais per largitatem; non ergo, ut isti aiunt, ob leprae curationem. Alioquin insolens sit, quisquis renumerationem loco munerum ponit.

“Beato Silvestro eius vicario de praesenti tradimus palatium imperii nostri Lateranense, deinde diadema, videlicet coronam capitis nostri, simulque phrygium, nec non et superhumera, videlicet lorum quod imperiale circumdare^[198] solet collum, verum etiam [\[See English page\]](#) chlamydem^[199] purpuream, atque tunicam coccineam, et omnia imperialia indumenta, seu etiam dignitatem imperialium praesidentium equitum; conferentes etiam ei imperialia sceptrum, simulque cuncta signa atque banna et diversa ornamenta imperialia, et omnem processionem imperialis culminis, et gloriam potestatis nostrae.

“Viris etiam diversi ordinis reverendissimis^[200] clericis sanctae Romanae ecclesiae servientibus, illud culmen singularis potentiae et praecellentiae habere sancimus, cuius amplissimus noster senatus videtur gloria adornari, id est patricios,^[201] consules effici. Nec non in ceteris dignitatibus imperialibus eos promulgavimus decorari. Et sicut imperialis extat decorata militia, ita clerum sanctae Romanae ecclesiae adornari decrevimus. Et quemadmodum imperialis potentia diversis officiis, cubiculariorum nempe et ostiariorum^[202] atque omnium concubitorum ordinatur,^[203] ita et sanctam Romanam ecclesiam decorari volumus. Et ut amplissime pontificale decus praefulgeat, decernimus^[204] et ut clerici sancti eiusdem sanctae Romanae ecclesiae mappulis et lintheaminibus, id est candidissimo

colore decoratos equos equitent, et sicut noster senatus calciamentis utitur cum udonibus, id est candido linteamine illustrentur, et ita caelestia sicut terrena ad laudem Dei decorentur.”

O sancte Iesu! Ad hunc sententias volventem sermonibus imperitis non respondebis de turbine? Non tonabis? Non in tantam blasphemiam^[205] ultricia fulmina iaculabere? Tantumne probrum in tua familia sustines? Hoc audire, hoc videre, hoc tamdiu conniventibus oculis praeterire potes? Sed patiens^[206] es, et multae misericordiae. Vereor tamen ne patientia haec tua sit potius ira et condemnatio, qualis in illos fuit, de quibus dixisti: “Et dimisi eos secundum desiderium cordis eorum, ibunt in adinventionibus suis,” ^[See English page] et alibi: “Tradidi eos in reprobum sensum, ut faciant quae non conveniunt, quia non probaverunt se habere notitiam mei.” Iube me, quaeso, Domine, ut exclamem adversus eos, et forte convertantur.^[207]

O Romani pontifices, exemplum facinorum omnium ceteris pontificibus! O improbissimi scribae et Pharisei,^[208] qui sedetis super cathedram Moysi, et opera Dathan et Abiron facitis! Itane vestimenta, apparatus, pompa, equitatus, omnis denique vita Caesaris vicarium Christi decebit? Quae communicatio sacerdotis ad Caesarem? Istane Silvester vestimenta sibi induit? Eo apparatu incessit? Ea celebritate ministrantium domi vixit atque regnavit? Sceleratissimi homines non intelligunt Silvestro magis vestes Aaron, qui summus Dei sacerdos fuerat, quam gentilis principis fuisse sumendas.

Sed haec alias erunt exagitanda vehementius. Impraesentiarum autem de barbarismo cum^[209] hoc sycophanta loquamur, cuius ex stultiloquio impudentissimum eius patescit^[210] sua sponte mendacium.

“Tradimus,” inquit, “palatium imperii nostri Lateranense”; quasi male hoc loco inter ornamenta donum palatii posuisset, iterum postea ubi de donis agitur replicavit. “Deinde diadema”; et quasi illi non videant qui adsunt, interpretatur; “videlicet coronam.” Verum hic non addidit “ex auro,” sed posterius easdem res inculcans inquit; “ex auro purissimo et gemmis preciosis.” Ignoravit homo imperitus diadema e panno esse aut fortassis ex serico; unde sapiens illud regis dictum celebrari solet, quem ferunt traditum sibi diadema priusquam capiti imponeret retentum diu considerasse ac dixisse: “O nobilem magisquam felicem pannum! Quem si quis penitus

agnosceret,^[211] quam multis sollicitudinibus^[212] periculisque et miseriis sis refertus, ne humi quidem iacentem [\[See English page\]](#) vellet tollere.” Iste non putat illud nisi ex auro esse, cui circulus aureus nunc cum gemmis apponi a regibus solet. Verum non erat rex Constantinus, nec regem appellare, nec regio se ritu ornare fuisset ausus. Imperator Romanorum erat, non rex. Ubi rex est, ibi respublica non est. At in respublica multi fuerunt etiam uno tempore imperatores; nam Cicero frequenter ita scribit: M. Cicero imperator illi vel illi imperatori salutem: licet postea peculiari nomine Romanus princeps, ut summus omnium, imperator appelletur.

“Simulque phrygium, nec non superhumerales, videlicet lorum quod imperiale circumdare solet collum.” Quis umquam phrygium Latine dici audivit? Tu mihi dum barbare loqueris videri vis Constantini aut Lactantii esse sermonem. Plautus in *Menaechmis*^[213] phrygionem^[214] pro concinnatore vestium posuit. Plinius phrygionas^[215] appellat vestes acupictas, quod earum Phryges fuerint^[216] inventores. Phrygium vero quid significat?^[217] Hoc non exponis, quod obscurum; exponis quod est clarius. Superhumerales ais esse lorum, nec quid sit lorum tenes; non enim cingulum ex corio factum, quod dicitur lorum, sentis circumdari pro ornamento Caesaris collo: hinc est quod habenas et verbera vocamus lora; quod si quando dicantur lora aurea, non nisi de habenis quae auratae collo equi aut alterius pecudis circumdari assolent intelligi potest. Quae te res, ut mea fert opinio, fefellit, et cum lorum circumdare collo^[218] Caesaris atque Silvestri vis, de homine, de imperatore, de summo pontifice, equum aut asinum^[219] facis.

“Verum et chlamydem^[220] purpuream, atque tunicam coccineam.” Quia Matthaeus ait chlamydem coccineam, et Ioannes vestem purpuream, utrumque voluit hic eodem loco coniungere. Quod si idem color est, ut Evangelistae significant, quid tu non fuisti contentus alterum nominasse, ut illi contenti fuerunt: nisi accipis purpuram, ut nunc imperiti loquuntur, genus panni serici colore [\[See English page\]](#) albo? Est autem purpura piscis, cuius sanguine lana tingitur, ideoque a tinctura datum est nomen panno, cuius color pro rubro accipi potest, licet sit magis nigricans et proximus colori sanguinis concreti, et quasi violaceus. Inde ab Homero atque Virgilio purpureus dicitur sanguis et marmor porphyritum,^[221] cuius color est simillimus amethysto;^[222] Graeci enim purpuram porphyram vocant.

Coccineum pro rubro accipi forte non ignoras; sed cur faciat coccineum cum nos dicamus coccum, et chlamys quod genus sit vestimenti, iurarem te plane nescire.

Atque ut ne se^[223] longius persequendo singulas vestes mendacem proderet, uno semel verbo complexus est, dicens; “omnia imperialia indumenta.” Quid! Etiamne illa quibus in bello, quibus in venatione, quibus in conviviis, quibus in ludis amiciri solet? Quid stultius quam omnia Caesaris indumenta dicere convenire pontifici?

Sed quam lepide addit; “Seu etiam dignitatem imperialium praesidentium equitum”! “Seu” inquit. Distinguere duo haec invicem voluit, quasi multum inter se habeant similitudinis, et de imperatorio habitu ad equestrem dignitatem delabitur,^[224] nescio quid loquens. Mira quaedam effari vult, sed deprehendi in mendacio^[225] timet, eoque inflatis buccis et turgido gutture dat sine mente sonum.

“Conferentes ei etiam imperialia scepra.” Quae structura orationis! Qui nitor! Qui ordo! Quaenam sunt scepra ista imperialia? Unum est sceptrum, non plura; si modo sceptrum gerebat imperator. Num et pontifex sceptrum manu gestabit? Cur non ei dabimus et ense et galeam et iaculum?

“Simulque cuncta signa atque banna.” Quid tu “signa” accipis? Signa sunt aut statuae, unde frequenter legimus signa et tabulas [\[See English page\]](#) pro sculpturis ac picturis,—prisci enim non in parietibus pingebant, sed in tabulis,—aut vexilla, unde illud; “Signa, pares aquilas.” A priori significato sigilla dicuntur parvae statuae atque sculpturae. Num ergo statuas aut aquilas suas Silvestro dabat Constantinus? Quid hoc absurdus? At “banna” quid sibi velit, non invenio. Deus te perdat, improbissime mortalium, qui sermonem barbarum attribuis saeculo erudito!

“Et diversa ornamenta imperialia.” Quia dixit “banna,” satis putavit significatum esse, et ideo cetera sub verbum universale conclusit. Et quam frequenter inculcat “imperialia”; quasi propria quaedam sint ornamenta imperatoris magis quam consulis, quam dictatoris, quam Caesaris!

“Et omnem processionem imperialis culminis, et gloriam potestatis nostrae.”

“Proicit ampullas et sesquipedalia verba,”

“Rex regum Darius, consanguineusque deorum,”

numquam nisi numero plurali loquens.^[226] Quae est ista processio imperialis; cucumeris per herbam torti, et crescentis^[227] in ventrem? Triumphasse existimas Caesarem quotiens domo prodibat, ut nunc solet papa, praecedentibus albis equis, quos stratos ornatosque famuli dextrant; quo, ut taceam alias ineptias, nihil est vanius, nihilque a pontifice Romano alienius? Quae etiam ista gloria est? Gloriamne, ut Hebraeae linguae mos est, pompam et apparatus illum splendorem homo Latinus appellasset? Ut illud quoque militiam pro milites, quod ab Hebraeis sumus mutuati, quorum libros Constantinus aut ipsius scribae numquam aspexerant?

Verum quanta est munificentia tua, Imperator, qui non satis habes ornasse^[228] pontificem, nisi ornes et omnem clerum! “Culmen [\[See English page\]](#) singularis potentiae et praecellentiae,” ais, “effici patricos, consules.” Quis audivit senatores aliosve homines effici patricos? Consules efficiuntur, non patricii;^[229] ex domo vel patricia, quae eadem senatoria dicitur, siquidem senatores patres conscripti sunt, vel ex equestri, vel ex plebeia; plusque est senatorem esse quam patricium, nam senator est unus e delectis consiliariis reipublicae, patricius^[230] vero qui e domo senatoria ortum ducit. Ita qui senator aut ex patribus conscriptis non protinus et patricius^[230] est. Ridiculeque Romani mei hoc tempore faciunt, qui praetorem suum senatorem vocant, cum neque senatus ex uno homine constare possit, necesseque sit senatorem habere collegas; et is^[231] qui nunc senator dicitur fungatur officio praetoris. At dignitas patriciatus in multis libris invenitur, inquires. Audio: sed in his qui de temporibus post Constantinum loquuntur. Ergo post Constantinum privilegium confectum est.

Sed numquid clerici fieri consules possunt? Coniugio sibi interdixere Latini clerici: et consules fient, habitoque delectu militum cum legionibus et auxiliis in provincias, quas fuerint sortiti, se conferent? Ministrine et servi consules fient?^[232] Nec bini, ut solebat, sed centeni ac milleni ministri qui Romanae ecclesiae servient, dignitate afficientur imperatoria? Et ego stolidus mirabar quod papa effici diceretur! Ministri imperatores erunt; clerici vero milites. Militesne clerici fient, aut militaria ornamenta gestabunt, nisi imperialia ornamenta universis clericis impertis? Nam nescio

quid dicas. Et quis non videt hanc fabulam ab iis excogitatam esse, qui sibi omnem vestiendi licentiam esse voluerunt? Ut existimem, [\[See English page\]](#) si qua inter daemones qui aerem incolunt ludorum genera exercentur, eos exprimendo clericorum cultu, fastu, luxu, exerceri, et hoc scaenici^[233] lusus genere maxime delectari.

Utrum magis insequar, sententiarum an verborum stoliditatem? Sententiarum audistis. Verborum haec est; ut dicat senatum videri adornari, quasi non utique adornetur, et quidem adornari gloria; et quod fit, factum esse velit, ut “promulgavimus” pro promulgamus, illo enim modo sonat iucundius oratio; et eandem rem per praesens et per praeteritum enuntiet, velut “decernimus” et “decrevimus”; et omnia sint referta his vocibus, “decernimus,” “decoramus,” “imperialis,” “imperatoria,” “potentia,” “gloria”; et “exstat” pro est posuerit, cum “extare” sit supereminere, vel superesse; et “nempe” pro scilicet; et “concupitores” pro contubernales. “Concupitores” sunt qui concumbunt, et coeunt; nimirum scorta intelligenda sunt. Addit, cum quibus dormiat, ne timeat, opinor, nocturna phantasmata: addit cubicularios: addit hostiarios.

Non otiosum^[234] est, quare haec ab eo minuta referuntur. Pupillum instituit aut adolescentem filium, non senem; cui omnia quibus necesse habet tenera aetas ipse velut amantissimus pater praeparat, ut David Salomoni^[235] fecit. Atque ut per omnes numeros fabula impleatur, dantur clericis equi, ne asinario illo Christi more super asellos sedeant; et dantur non operati sive instrati operimentis coloris albi, sed decorati colore albo. At quibus operimentis! Non stragulis, non Babylonicis, aut quo alio genere, sed “mappulis [\[See English page\]](#) et lintheaminibus”! Mappae ad mensam pertinent, lintheamina ad lectulos. Et quasi dubium sit cuius sint haec coloris, interpretatur; “id est candidissimo colore.” Dignus Constantino sermo, digna Lactantio facundia, cum in ceteris, tum vero in illo “equos equitent”!

Et cum de vestitu senatorum nihil dixerit, non de laticlavo, non de purpura, non de ceteris, de calceamentis sibi loquendum putavit; nec lunulas appellavit, sed udones, sive “cum udonibus,” quos ut solet homo ineptus exponit, “id est candido lintheamine,” quasi udones lintheamen sint! Non occurrit impraesentiarum,^[236] ubi repererim “udones,” nisi apud Martialem Valerium, cuius disticon quod inscribitur “Udones Cilicii”^[237] hoc est:

“Non hos lana dedit, sed olentis barba mariti;
Cinyphio^[238] poterit planta latere sinu.”

Ergo non linei utique, nec candidi sunt udones, quibus hic bipes asellus non calceari pedes senatorum ait, sed senatores illustrari.

Atque per hoc, “sicut caelestia ita terrena^[239] ad laudem Dei decorantur,” quae tu “caelestia” vocas; quae “terrena”? Quomodo caelestia decorantur? Quae autem Deo laus sit ista tu videris. Ego vero, si qua mihi fides est, nihil puto nec Deo nec ceteris hominibus magis esse invisum quam tantam clericorum in rebus saecularibus licentiam. Verum quid ego in singula impetum facio? Dies me deficiat,^[240] si universa, non dico amplificare, sed attingere velim.

“Pre^[241] omnibus autem licentiam tribuimus beato Silvestro et successoribus eius ex nostro indictu, ut quem placatus proprio consilio clericare voluerit et in religioso numero religiosorum [\[See English page\]](#) clericorum connumerare, nullus ex omnibus praesumat superbe agere.”

Quis est hic Melchisedec, qui patriarcham Abraam benedicit? Constantinusne, vix Christianus, facultatem ei, a quo baptizatus est et quem beatum appellat, tribuit clericandi? Quasi prius nec fecisset hoc Silvester nec facere potuisset! Et qua comminatione vetuit, ne quis impedimento esset? “Nullus ex omnibus praesumat superbe agere.” Qua etiam elegantia! “Connumerare in numero religioso religiosorum,” “clericare ... clericorum,” et “indictu,” et “placatus.”

Atque iterum ad diadema revertitur:

“Decrevimus itaque et hoc, ut ipse et successores eius diademate, videlicet corona, quam ex capite nostro illi concesserimus,^[242] ex auro purissimo et gemmis pretiosis^[243] uti debeant pro honore beati Petri.”

Iterum interpretatur diadema; cum barbaris enim et obliuiosis loquebatur; et adicit “de auro purissimo,” ne forte aliquid aeris aut scoriae crederes admixtum.^[244] Et gemmas cum dixit, addit “pretiosas” eodem timore ne viles forsitan suspicareris. Cur tamen non “pretiosissimas,” quemadmodum “aurum purissimum”? Plus namque^[245] interest inter gemmam et gemmam, quam inter aurum et aurum. Et cum dicere debuisset distinctum gemmis, dixit “ex gemmis.” Quis non vidit ex eo loco sumptum, quem princeps gentilis non legerat; “Posuisti in capite eius coronam de lapide pretioso”? Sic locutus^[246] est Caesar vanitate quadam coronae suae iactandae, si modo Caesares coronabantur, in se ipsum contumeliosus, [\[See English page\]](#) qui vereretur ne homines opinarentur eum non gestare coronam ex auro purissimo cum gemmis pretiosis, nisi indicasset?

Accipe causam cur sic loquatur; “pro honore beati Petri.” Quasi Christus non sit summus angularis lapis, in quo templum ecclesiae constructum est, sed Petrus; quod iterum postea facit. Quem si tantopere venerari volebat, cur non templum episcopale illi potius quam Ioanni Baptistae Romae dicavit?

Quid? Illa loquendi barbaries nonne testatur non saeculo Constantini, sed posteriori, cantilenam hanc esse confictam? “Decernimus quod ... uti debeant,”^[247] pro eo quod est decernimus^[248] ut utantur: sic nunc barbari homines vulgo loquuntur et scribunt, “Iussi quod deberes venire,” pro eo quod est, “Iussi ut venires”: et “decreuimus” et “concessimus,” quasi non tunc fiant illa, sed alio quodam tempore facta sint.

“Ipse vero beatus papa super coronam clericatus, quam gerit ad gloriam beatissimi Petri, ipsa ex auro non est passus uti corona.”

O tuam singularem stultitiam, Constantine! Modo dicebas coronam super caput papae ad honorem facere beati Petri; nunc ais non facere, quia Silvester illam recusat; et cum factum recusantis probes, tamen iubes eum aurea uti corona; et quod hic non debere se agere existimat, id tu ipsius successores dicis agere debere. Transeo quod rasuram coronam vocas, et papam pontificem Romanum, qui nondum peculiariter sic appellari erat coeptus.

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“Phrygium vero candidissimo nitore splendidum, resurrectionem Dominicam designans, eius sacratissimo vertici manibus nostris imposuimus, et tenentes frenum equi pro reverentia beati Petri dextratoris officium illi exhibuimus, statuantes eodem phrygio omnes eius successores singulariter uti in processionibus ad imperii nostri imitationem.”

Nonne videtur hic auctor fabulae non per imprudentiam, sed consulto et dedita opera praevaricari et undique ansas ad se reprehendendum praebere? In eodem^[249] loco ait, phrygio et Dominicam resurrectionem repraesentari,^[250] et imperii Caesarei esse imitationem; quae duo inter se maxime discrepant. Deum testor, non invenio quibus verbis, qua verborum atrocitate, confodiam hunc perditissimum nebulonem. Ita omnia verba plena insaniae evomit. Constantinum non tantum officio similem Moysi, qui summum sacerdotem iussu Dei ornavit, sed secreta mysteria^[251] facit exponentem, quod difficillimum est iis qui diu in sacris litteris^[252] sunt versati. Cur non fecisti etiam Constantinum pontificem maximum, ut multi Imperatores fuerunt, ut commodius ipsius ornamenta in alterum summum pontificem transferrentur? Sed nescisti historias. Ago itaque Deo etiam hoc nomine gratias, quod^[253] istam nefandissimam mentem non nisi in stultissimum hominem cadere permisit: quod etiam posteriora declarant. Namque Aaron sedenti in equo Moysen^[254] inducit dextratoris exhibuisse officium, et hoc non per medium Israel, sed per Chananeos atque Aegyptios, id est per infidelem civitatem, ubi non tam imperium erat orbis terrarum quam daemonum, et daemones colentium populorum.

“Unde ut pontificalis apex non vilescat, sed ut^[255] magis quam imperii terreni dignitas, gloria et potentia decoretur, ecce tam palatium nostrum, quamque Romanam urbem et omnes Italiae sive occidentalium regionum provincias,^[256] loca, civitates beatissimo pontifici et universali papae Silvestro tradimus atque relinquimus,
[\[See English page\]](#) et ab eo et a successoribus eius per pragmaticum

constitutum decrevimus disponendas atque iuri sanctae Romanae ecclesiae permanendas.”

De hoc in oratione Romanorum atque Silvestri multa disseruimus. Huius loci est ut dicamus neminem fuisse facturum ut nationes uno cunctas verbo donationis involveret, et qui minutissima quaeque superius est exsecutus, lorum, calceos,^[257] lintheamina equorum,^[258] non referret nominatim provincias,^[259] quarum singulae non^[260] singulos reges nunc aut principes regibus pares habent. Sed ignoravit videlicet hic falsator quae provinciae sub Constantino erant, quae non erant. Nam certe cunctae sub eo non erant.^[261] Alexandro extincto videmus singulas regiones in ducum partitione numeratas; a Xenophonte terras principesque nominatos, qui vel ultro vel armis sub imperio Cyri fuerunt; ab Homero Graecorum barbarorumque regum nomen, genus, patriam, mores, vires, pulchritudinem, numerum navium et prope numerum^[262] militum, catalogo^[263] comprehensum, cuius exemplum cum multi Graeci, tum vero nostri Latini, Ennius, Virgilius, Lucanus, Statius, aliique nonnulli imitati sunt; a Iosue et Moyse in divisione terrae promissionis viculos quoque universos fuisse descriptos;^[264] et tu gravaris etiam provincias recensere? Occidentales tantum provincias nominas. Qui sunt fines occidentis; ubi incipiunt, ubi desinunt? Num ita certi constitutique sunt termini occidentis et orientis, meridiei et septentrionis, ut sunt Asiae, Africae, Europae? Necessaria verba subtrahis, ingeris supervacua. Dicis, “provincias, loca, civitates.” [\[See English page\]](#) Nonne et provinciae et urbes loca sunt? Et cum dixeris provincias, subiungis civitates, quasi hae sub illis non intelligantur. Sed non est mirum qui tantam orbis terrarum partem a se alienat, eundem urbium provinciarumque nomina praeterire, et quasi lethargo oppressum, quid loquatur ignorare. “Italiae sive occidentalium regionum,” tamquam aut hoc aut illud, cum tamen utrumque intelligat: appellans “provincias regionum,” cum sint potius regiones provinciarum; et “permanendam”^[265] dicens pro permansuram.

“Unde congruum prospeximus, nostrum imperium et regiam potestatem orientalibus transferri regionibus, et in Byzantiae provinciae optimo loco nomini nostro civitatem aedificari, et illic nostrum constitui imperium.”^[266]

Taceo quod dixit civitates aedificari, cum urbes aedificentur non civitates; et “Byzantiam^[267] provinciam.” Si tu es Constantinus, redde causam cur illum potissimum locum condendae urbi^[268] delegeris. Quod enim alio te transferas post Romam traditam non tam congruum quam necessarium est. Nec te appelles imperatorem, qui Romam amisisti, et de nomine Romano, quod discerpis, pessime meritis es; nec regem, quod nemo ante te fecit; nisi ideo te regem appelles quia Romanus esse desiisti.^[269] Sed affers causam sane honestam:

“Quoniam ubi princeps sacerdotum et Christianae religionis caput constitutum est ab imperatore caelesti iustum non est ut illic imperator terrenus habeat potestatem.”

[\[See English page\]](#)

O stultum David, stultum Salomonem, stultum Ezechiam, Iosiamque, et ceteros reges, stultos ac parum religiosos, qui in urbe Hierusalem cum summis sacerdotibus habitare sustinuerunt, nec tota illis urbe cesserunt! Plus sapit Constantinus triduo quam illi tota vita sapere potuerunt! Et “imperatorem caelestem” appellas, quia terrenum accepit imperium; nisi Deum intelligis,—nam ambigue loqueris,—a quo terrenum principatum sacerdotum super urbe Romana ceterisque locis constitutum esse mentiris.

“Haec vero omnia, quae per hanc imperialem sacram^[270] et per alia divalia decreta statuimus et firmamus,^[271] usque in finem mundi illibata et inconcussa permanere decrevimus.”

Modo terrenum te vocaveras, Constantine: nunc divum sacrumque vocas. Ad gentilitatem recidis, et plusquam gentilitatem. Deum te facis, et verba tua sacra, et decreta immortalia; nam mundo imperas ut tua iussa conservet “illibata et inconcussa.” Non cogitas quis tu es, modo e^[272] sordidissimo impietatis caeno^[273] lotus et vix perlotus? Cur non addebas; “Iota unum aut unus apex de privilegio hoc non praeteribit,^[274] ut non magis pereat caelum et terra?” Regnum Saul a Deo electi ad filios non pervenit; regnum David in nepote discerptum est, et postea extinctum. Et tu ad finem usque mundi

regnum, quod tu sine Deo^[275] tradis, permansurum tua auctoritate decernis? Quis etiam tam cito te docuit mundum esse perituum? Nam poetis, qui hoc etiam testantur, non puto te hoc tempore fidem habere. Ergo hoc tu non dixisses, sed alius tibi affinxit.

Ceterum, qui tam magnifice superbeque locutus est, timere incipit, sibi que diffidere, eoque obtestationibus agit:

[\[See English page\]](#)

“Unde coram Deo vivo, qui nos regnare praecepit,^[276] et coram terribili eius iudicio obtestamur^[277] omnes nostros successores Imperatores vel cunctos optimates, satrapas etiam amplissimumque senatum et universum populum in universo orbe terrarum, nec non^[278] et in posterum,^[279] nulli eorum quoquo modo licere hoc aut confringere vel in quoquam convelli.”

Quam aequa, quam religiosa adiuratio! Non secus ac si lupo per innocentiam et fidem obtestetur ceteros lupos atque pastores, ne oves, quas sustulit interque filios et amicos partitus est, aut illi adimere, aut hi repetere tentent. Quid tantopere extimescis, Constantine? Si opus tuum ex Deo non est, dissolvetur: si ex Deo, dissolvi non poterit. Sed video! Voluisti imitari Apocalypsim ubi dicitur: “Contestor autem audienti omnia verba prophetiae libri huius; si quis apposuerit ad haec, apponet Deus super illum plagas scriptas in libro isto. Et si quis diminuerit de verbis libri prophetiae huius, auferet Deus partem eius de libro vitae et de civitate sancta.” At tu numquam legeras Apocalypsim, ergo non sunt haec verba tua.

“Si quis autem, quod non^[280] credimus, in hoc temerator exstiterit, aeternis condemnationibus subiaceat condemnatus, et sanctos Dei apostolos Petrum et Paulum sibi in praesenti et in futura vita sentiat contrarios, atque in inferno inferiori concrematus cum diabolo et omnibus deficiat impiis.”

Hic terror atque haec comminatio non^[281] saecularis principis solet esse, sed priscorum sacerdotum ac flaminum, et nunc ecclesiasticorum. Itaque non est Constantini oratio haec, sed alicuius clericuli stolidi, nec quid dicat aut quomodo dicat scientis, saginati et crasi, ac inter crapulam interque fervorem vini has sententias et haec verba ructantis, quae non in alium transeunt, sed [\[See English page\]](#) in ipsum convertuntur auctorem. Primum ait, “aeternis condemnationibus subiaceat,” deinde, quasi plus addi queat, alia addere vult, et post aeternitatem poenarum adiungit poenas vitae praesentis; et cum Dei condemnatione nos terreat, adhuc, quasi maius quiddam sit, terret nos odio Petri,—cui Paulum cur adiungat, aut cur solum, nescio. Iterumque solito lethargo ad poenas aeternas redit, veluti non hoc ante dixisset. Quod si minae hae execrationesque Constantini forent, invicem execrerer ut tyrannum et profligatorem reipublicae meae, et illi me Romano ingenio minarer ultorem. Nunc quis extimescat^[282] execrationem avarissimi hominis et ritu histrionum verba simulantis ac sub persona Constantini alios deterrentis? Hoc est proprie hypocritam esse, si Graecam vocem exquirimus, sub aliena persona abscondere tuam.

“Huius vero imperialis decreti paginam propriis manibus roborantes super venerandum corpus beati Petri posuimus.”

Chartane an membrana fuit pagina in qua scripta haec sunt? Tametsi paginam vocamus alteram faciem, ut dicunt, folii; veluti quinternio habet folia dena, paginas vicens.

O rem inauditam et incredibilem! Cum essem adolescentulus, interrogasse me quendam^[283] memini, quis librum Iob scripsisset; cumque ille respondisset, “Ipse Iob,” tunc me subiunxisse, “Quo pacto igitur de sua ipsius morte faceret mentionem?” Quod de multis aliis libris dici potest,

quorum ratio huic loco non convenit. Nam quomodo vere narrari potest id quod nondum esset administratum, et in tabulis contineri id quod post tabularum, ut sic [\[See English page\]](#) dicam, sepulturam factum esse ipse fateatur? Hoc nihil aliud est quam paginam privilegii ante fuisse mortuam sepultamque quam natam, nec tamen umquam a morte atque sepultura reversam; praesertim antequam conscripta esset roboratam, nec id una tantum sed utraque Caesaris manu. Et quid istud est roborare illam? Chirographone Caesaris, aut anulo signatorio? Magnum nimirum robur, maiusque multo quam si tabulis aereis mandavisset! Sed non est opus scriptura aerea, cum super corpus beati Petri charta reponatur. Cur hic Paulum retices, qui simul iacet cum Petro, et magis custodire possent ambo quam si afforet tantummodo corpus unius?

Videtis artes malitiamque^[284] nequissimi Sinonis. Quia donatio Constantini doceri non potest, ideo non in tabulis aereis sed charteis privilegium esse, ideo latere illud cum corpore sanctissimi apostoli dixit, ne aut auderemus e venerabili sepulcro^[285] inquirere, aut, si inquireremus, carie absumptum putaremus. Sed ubi tunc erat corpus beati Petri? Certe nondum in templo ubi nunc est, non in loco sane munito ac tuto. Ergo non illic Caesar paginam collocasset. An beatissimo Silvestro paginam non credebat, ut parum sancto, parum cauto, parum diligenti? O Petre, O Silvester, O sancti^[286] Romanae ecclesiae pontifices, quibus oves Domini commissae sunt, cur vobis commissam paginam non custodistis?^[287] Cur a tineis illam rodi, cur situ tabescere passi estis? Opinor quia corpora quoque vestra contabuerunt. Stulte igitur fecit Constantinus. En redacta in pulverem pagina, ius simul privilegii in pulverem abiit!

Atqui, ut videmus, paginae exemplar ostenditur. Quis ergo illam de sinu sanctissimi apostoli temerarius accepit? Nemo, ut reor, hoc fecit. Unde porro exemplar?^[288] Nimirum aliquis antiquorum [\[See English page\]](#) scriptorum debet afferri, nec posterior Constantini temporibus. At is nullus affertur, sed fortasse aliquis recens. Unde hic habuit? Quisquis enim de superiore aetate historiam texit, aut Spiritu Sancto dictante loquitur, aut veterum scriptorum et eorum quidem qui de sua aetate scripserunt sequitur auctoritatem. Quare quicumque veteres non sequitur, is de illorum numero erit quibus ipsa vetustas praebet audaciam mentiendi. Quod si quo in loco ista res legitur, non aliter cum antiquitate consentit quam illa glossatoris^[289] Accursii de

legatis Romanis ad leges accipiendas dimissis in Graeciam plusquam stulta narratio cum Tito Livio aliisque praestantissimis scriptoribus convenit.

“Datum Romae tertio Kalendas^[290] Aprilis, Constantino Augusto quarto consule et Gallicano quarto consule.”

Diem posuit penultimum Martii ut sentiremus hoc factum esse sub tempus sanctorum dierum, qui illo plerumque tempore solent esse. Et Constantino quartum consule, et Gallicano quartum consule! Mirum si uterque ter fuerat consul et in quarto consulatu forent collegae! Sed mirandum magis Augustum leprosum elephantia, qui morbus inter ceteros ut elephas inter beluas eminet, velle etiam accipere consulatum, cum rex Azarias simul ac lepra tactus est in privato se continuerit, procuratione regni ad Ionatam^[291] filium relegata, ut fere omnes leprosi fecerunt! Quo uno argumento totum prorsus privilegium confutatur, profligatur, evertitur. Ac ne quis ambigat ante leprosum esse debuisse quam consulem, sciat et ex medicina paulatim hunc morbum succrescere, et ex notitia [\[See English page\]](#) antiquitatis consulatum iniri Ianuario mense magistratumque esse annum, et haec Martio proximo gesta referuntur.

Ubi neque hoc^[292] silebo; in epistolis scribi solere “datum,” non autem in ceteris, nisi apud indoctos. Dicuntur enim epistolae dari vel illi, vel ad illum; illi quidem qui perfert ut puta tabellario, ut reddat et in manum porrigat homini cui mittuntur; ad illum vero ut ei a perferente reddantur, hic est is cui mittuntur.^[293] Privilegium autem, ut aiunt, Constantini, quod reddi alicui non debebat, nec dari debuit dici: ut appareat eum qui sic locutus est mentitum esse, nec^[294] scisse fingere quod Constantinum dixisse ac fecisse verisimile esset. Cuius stultitiae atque vesaniae affines se ac socios faciunt quicumque hunc vera dixisse existimant atque defendunt; licet nihil iam habeant quo opinionem suam, non dico defendere, sed honeste excusare, possint.

An honesta erroris excusatio est, cum patefactam videas veritatem, nolle illi acquiescere quia nonnulli magni homines aliter senserint?^[295] Magni, inquam, dignitate, non sapientia nec virtute. Unde tantum^[296] scis an illi quos tu sequeris, si eadem audissent quae tu, mansuri in sententia fuerint, an a sententia recessuri? Et nihilominus indignissimum est plus homini velle

tribuere quam veritati, id est Deo. Ita enim quidam omnibus defecti rationibus solent mihi^[297] respondere: Cur tot summi pontifices donationem hanc veram esse crediderunt? Testificor vos, me vocatis quo nolo, et invitum me maledicere summis pontificibus cogitis, quos magis in delictis suis operire vellem. Sed pergamus ingenue loqui, quandoquidem aliter agi nequit haec causa.

Ut fatear eos ita credidisse, et non malitia^[298] fecisse; quid mirum [\[See English page\]](#) si ista crediderunt, ubi tantum lucri blanditur, cum plurima, ubi nullum lucrum ostenditur, per insignem imperitiam credant? Nonne apud Aram Coeli, in tam eximio templo et in loco maxime augusto,^[299] cernimus pictam fabulam Sibyllae et Octaviani, ut ferunt ex auctoritate Innocentii tertii haec scribentis, qui etiam de ruina templi Pacis sub natale Salvatoris, hoc est in partu Virginis, scriptum reliquit? Quae ad evertendam magis fidem quia falsa, quam ad stabiliendam quia miranda sunt, pertinent. Mentirine ob speciem^[300] pietatis audet vicarius veritatis, et se scientem hoc piaculo obstringere? An non mentitur? Immo vero a sanctissimis viris se, cum hoc facit, dissentire non videt? Tacebo alios: Hieronymus Varronis testimonio utitur, decem Sibyllas fuisse; quod opus Varro ante Augustum condidit. Idem de templo Pacis ita scribit: “Vespasianus et Titus Romae templo Pacis aedificato, vasa templi et universa donaria in delubro illius consecrarunt, quae Graeca et Romana narrat historia.” Et hic unus indoctus plus vult libello suo etiam barbare scripto credi quam fidelissimis veterum, prudentissimorum hominum historiis!

Quia Hieronymum attigi, non patiar hanc contumeliam ipsius tacito^[301] praeteriri. Romae ex auctoritate papae ostenditur codex Bibliae,^[302] tamquam reliquiae sanctorum luminibus^[303] semper accensis, quod dicunt^[304] scriptum chirographo Hieronymi. Quaeris argumentum? Quia multum, ut inquit Virgilius, est pictai vestis et auri: res quae magis Hieronymi manu indicat scriptum non esse. [\[See English page\]](#) Illum ego diligentius inspectum comperi scriptum esse iussu regis, ut opinor, Roberti chirographo hominis imperiti.

Huic simile est, quamquam decem millia huiusmodi Romae sunt, quod inter religiosa demonstratur in tabella effigies Petri et Pauli, quam Silvester Constantino ab eisdem apostolis in somnis admonito in confirmationem visionis exhibuit. Non hoc dico quia negem effigies illas esse apostolorum

(utinamque tam vera esset epistola nomine Lentuli missa de effigie Christi, quae non minus improbe ementita est quam privilegium quod confutavimus!) sed quia tabella illa a Sylvestro non fuerit exhibita Constantino; in quo non sustineo animi mei admirationem continere.

Disputabo enim aliquid de fabula Silvestri, quia et omnis in hoc quaestio versatur, et mihi cum sermo sit cum pontificibus Romanis, de pontifice Romano potissimum loqui decebit, ut ex uno exemplo facile aliorum coniectura capiatur. Et ex multis ineptiis quae ibi narrantur unam tantum de dracone attingam, ut doceam Constantinum non fuisse leprosum. Etenim Gesta Silvestri ab Eusebio quodam Graeco homine, ut interpret testatur, composita sunt,^[305] quae natio ad mendacia semper promptissima^[306] est, ut Iuvenalis satirica^[307] censura ait:

“... Quicquid Graecia mendax
Audet in historia.”

Unde draco ille venerat? Romae dracones non gignuntur. Unde etiam illi venenum? In Africa tantum pestiferi dracones ob ardorem regionis esse dicuntur. Unde praeterea tantum veneni [\[See English page\]](#) ut tam spatiosam civitatem peste corrumperet, praesertim cum in tam alto specu demersus esset, ad quem centum quinquaginta gradibus descenderetur? Serpentes, excepto forsitan basilisco, non afflatu, sed morsu virus inspirant atque interimunt. Nec Cato Caesarem fugiens cum tanta hominum manu per medias Africae harenas, dum iter faceret ac dormiret, ullum suorum comitum^[308] serpentis afflatu vidit extinctum; neque illi populi ob id aerem sentiunt pestilentem. Et si quid fabulis credimus, et Chimaera et Hydra et Cerberus sine noxa vulgo conspecti sunt ac tacti.

Adhuc quin eum Romani potius occidissent? Non poterant, inquis? At multo grandiore serpentem in Africa ad ripam Bagradae^[309] Regulus occidit. Hunc vero vel obstructo ore specus facile erat interimere. An nolebant? Ita, opinor, pro deo colebant, ut Babylonii fecerunt. Cur ergo, ut^[310] Daniel illum dicitur occidisse, non et Silvester hunc potius occidisset, quem^[311] canabaceo filo alligasset, et domum illam in aeternum perdidisset? Ideo commentator fabulae noluit draconem interimere, ne plane Danielis narratio referri videretur. Quod si Hieronymus, vir doctissimus ac fidelissimus interpret, Apollinarisque et Origenes atque Eusebius et

nonnulli alii narrationem Beli fictam esse affirmant, si eam Iudaei in Veteris Instrumenti archetypo non agnoscunt; id est, si doctissimi quique Latinorum, plerique Graecorum, singuli Hebraeorum illam ut fabulam damnant, ego non hanc adumbratam ex illa damnabo, quae nullius scriptoris auctoritate fulcitur, et quae magistram multo superat stultitia?

Nam quis beluae subterraneam domum aedificaverat? Quis illic eam collocaverat, et ne prodiret atque avolaret (volant enim dracones, ut quidam aiunt, etsi alii negant) imperaverat? Quis genus illud cibi excogitaverat?^[312] Quis feminas,^[313] easque virgines ac [\[See English page\]](#) sanctimoniales, descendere praeceperat, nec nisi Kalendis? An tenebat draco quis esset dies Kalendarum? Et tam parco raroque erat cibo contentus? Nec virgines tam altum specum, tam immanem et esurientem beluam exhorrebant? Credo, blandiebatur eis draco, ut feminis, ut virginibus, ut cibaria afferentibus. Credo, etiam cum illis fabulabatur. Quid ni, honore dicto, etiam coibat? Nam et Alexander et Scipio ex draconis serpentisve cum matre concubitu geniti dicuntur. Quid, denegato postea victu, non potius aut prodisset,^[314] aut fuisset extinctus?

O miram hominum dementiam, qui his anilibus deliramentis fidem habent! Iam vero quamdiu hoc factitatum est? Quando fieri^[315] coeptum? Ante adventum Salvatoris, an postea? Nihil horum scitur. Pudeat nos, pudeat harum neniarum et levitatis plusquam inimicae.^[316] Erubescat Christianus homo, qui veritatis se ac lucis filium nominat, proloqui quae non modo vera non sunt, sed nec verisimilia.

At enim inquiunt, hanc daemones potestatem in gentibus obtinebant, ut eas diis servientes illuderent. Silete, imperitissimi^[317] homines, ne dicam sceleratissimos, qui fabulis vestris tale semper velamentum obtenditis! Non desiderat sinceritas Christiana patrocinium falsitatis; satis per se, superque sua ipsius luce ac veritate defenditur, sine istis commenticiis ac praestigiosis fabellis, in Deum, in Christum, in Spiritum Sanctum contumeliosissimis. Siccine Deus arbitrio daemonum^[318] tradiderat genus humanum, ut tam manifestis, tam imperiosis miraculis seducerentur;^[319] ut propemodum posset iniustitiae^[320] accusari, qui oves lupis commisisset, et homines magnam errorum suorum haberent excusationem? Quod si tantum olim licebat daemonibus, et nunc apud infideles vel magis liceret; quod minime videmus, nec ullae ab eis huiusmodi fabulae proferuntur.

Tacebo de aliis populis; dicam de Romanis, apud quos paucissima miracula feruntur, eaque vetusta atque incerta. Valerius [\[See English page\]](#) Maximus ait hiatum illum terrae in medio foro, cum se in eum Curtius armatum adacto equo immisisset, iterum coisse inque pristinam formam continuo revertisse. Item Iunonem Monetam, cum a quodam milite Romano captis Veiis per iocum interrogata esset, an Romam migrare vellet, respondisse velle.

Quorum neutrum Titus Livius sentit et prior auctor et gravior. Nam et hiatum permansisse vult, nec tam fuisse subitum quam vetustum, etiam ante conditam urbem, appellatumque Curtium lacum quod in eo delituisset Curtius Mettius Sabinus Romanorum fugiens impressionem; et Iunonem annuisse, non respondisse, adiectumque fabulae postea vocem reddidisse. Atque de nutu quoque palam est illos esse mentitos, vel quod motum simulacri, avellebant autem illud, interpretati sunt sua sponte esse factum, vel qua lascivia hostilem et victam et lapideam deam interrogabant, eadem lascivia annuisse finxerunt. Tametsi Livius^[321] inquit non annuisse, sed milites quod annuisset exclamasse. Quae tamen boni scriptores non defendunt facta, sed dicta excusant. Nam prout idem Livius ait; “Datur haec^[322] venia antiquitati, ut miscendo humana divinis primordia urbium augustiora faciat.” Et alibi: “Sed in rebus tam antiquis si qua similia veri sunt pro veris accipiantur, satis habeam. Haec^[323] ad ostentationem scenae gaudentis miraculis aptiora quam ad fidem; neque affirmare neque refellere est operae pretium.”^[324]

Terentius Varro, his duobus et prior et doctior et, ut sentio, gravior auctor, ait triplicem historiam de lacu Curtio a totidem auctoribus proditam; unam a Proculo, quod is lacus ita sit appellatus [\[See English page\]](#) a Curtio, qui se in eum deiecit; alteram a Pisone, quod a Mettio Sabino; tertiam a Cornelio, cuius rei socium addit Luctatium, quod a Curtio consule, cui collega fuit M. Genutius.^[325]

Neque vero dissimulaverim Valerium non plane posse reprehendi quod ita loquatur, cum paulo post graviter et severe subiciat: “Nec me praeterit de motu et voce deorum immortalium humanis oculis auribusque percepto, quam in ancipiti opinione aestimatio versetur. Sed quia non nova dicuntur, sed tradita repetuntur, fidem auctores vendicent.” De voce deorum dixit propter Iunonem Monetam et propter simulacrum Fortunae, quod bis

locutum fingitur his verbis: “Rite me, matronae, vidistis,^[326] rite dedicastis.”

At vero nostri fabulatores passim inducunt idola loquentia, quod ipsi gentiles et idolorum cultores non dicunt et sincerius negant quam Christiani affirmant. Apud illos^[327] paucissima miracula non fide auctorum, sed veluti sacra quadam ac religiosa vetustatis commendatione nituntur; apud istos recentiora quaedam narrantur, quae illorum homines temporum nescierunt.^[328]

Neque ego admirationi sanctorum derogo, nec ipsorum divina opera abnuo,^[329] cum sciam tantum fidei quantum est granum sinapis^[330] montes etiam posse transferre. Immo defendo illa ac tueor, sed misceri cum fabulis non sino. Nec persuaderi possum hos^[331] scriptores alios fuisse quam aut infideles, qui hoc agerent in derisum Christianorum, si haec figmenta per dolosos homines in [\[See English page\]](#) manus imperitorum delata acciperentur pro veris, aut fideles habentes quidem aemulationem Dei, sed non secundum scientiam,^[332] qui non modo de gestis sanctorum, verum etiam Dei genetricis atque adeo Christi improba quaedam et^[333] pseudevangelia scribere non reformidarunt. Et summus pontifex hos libros appellat apocryphos, quasi nihil vitii sit^[334] quod eorum ignoratur auctor, quasi credibilia sint quae narrantur, quasi sancta et ad confirmationem religionis pertinentia; ut iam non minus culpa sit penes hunc qui mala probat quam penes illum qui mala excogitavit. Nummos reprobos discernimus, separamus, abicimus;^[335] doctrinam reprobam non discernimus, sed retinebimus, sed cum bona miscebimus, sed pro bona defendemus?

Ego vero, ut ingenue^[336] feram sententiam, Gesta Silvestri nego esse apocrypha, quia, ut dixi, Eusebius quidam fertur auctor; sed falsa atque indigna quae legantur existimo cum in aliis tum vero in alio^[337] quod narratur de dracone, de tauro, de lepra, propter quam refutandam tanta repetii. Neque enim si Naaman leprosus fuit, continuo et Constantinum leprosum fuisse dicemus? De illo multi auctores meminerunt, de hoc principe orbis terrarum nemo ne suorum quidem civium scripsit, nisi nescio quis alienigena, cui non aliter habenda est fides quam alteri cuidam de vespis intra nares Vespasiani nidificantibus, et de rana partu a Nerone emissa, unde Lateranum vocitatum locum dicunt, quod ibi rana lateat in

sepulcro: quod nec vespae ipsae nec ranae, si loqui possent, [\[See English page\]](#) dixissent;^[338] nisi ad deos Capitolinos hoc referunt, quasi illi loqui consuessent et hoc fieri iussissent.^[339]

Sed quid mirer haec non intelligere pontifices, cum nomen ignorent suum! Cephas enim dicunt vocari Petrum quia caput apostolorum esset, tamquam hoc vocabulum sit Graecum ἀπὸ τῆς κεφαλῆς,^[340] et non Hebraicum, seu^[341] potius Syriacum, quod Graeci κηφᾶς^[342] scribunt, quod apud eos interpretatur Petrus, non caput. Est enim “petrus,” et “petra,” Graecum vocabulum, stulteque per etymologiam Latinam exponitur petra, quasi pede trita. Et metropolitanum ab archiepiscopo distinguunt^[343] voluntque illum a mensura civitatis dictum, cum Graece dicatur non μετρόπολις sed μητρόπολις,^[344] id est mater-civitas sive urbs;^[345] et patriarcham quasi patrem patrum; et papam ab interiectione pape dictum; et fidem orthodoxam quasi rectae gloriae; et Simonem media correpta, cum legendum sit media longa, ut Platonem et Catonem;^[346] et multa similia quae transeo, ne culpa aliquorum omnes summos pontifices videar insectari. Haec dicta sint, ut nemo miretur si donationem Constantini commenticiam^[347] fuisse papae multi non potuerunt deprehendere, tametsi ab aliquo eorum ortam esse hanc fallaciam reor.

At dicitis, cur Imperatores, quorum detrimento res ista cedebat, donationem Constantini non negant, sed fatentur, affirmant, conservant? [\[See English page\]](#) Ingens argumentum; mirifica defensio! Nam de quo tu loqueris Imperatore? Si de Graeco, qui verus fuit Imperator, negabo confessionem: si de Latino, libenter etiam confitebor. Etenim quis nescit Imperatorem Latinum gratis factum esse a summo pontifice, ut opinor Stephano, qui Graecum Imperatorem, quod auxilium non ferret Italiae, privavit, Latinumque fecit; ita ut plura Imperator a papa quam papa ab Imperatore acciperet? Sane Troianas opes quibusdam pactionibus soli Achilles et Patroclus inter se partiti sunt! Quod etiam mihi videntur indicare Ludovici^[348] verba, cum ait; “Ego Ludovicus, Imperator Romanus Augustus, statuo et concedo per hoc pactum confirmationis nostrae tibi beato Petro, principi apostolorum, et per te vicario tuo domino Paschali^[349] summo pontifici et successoribus eius in perpetuum,^[350] sicut a

praedecessoribus^[351] nostris usque nunc in vestra potestate et ditione^[352] tenuistis, Romanam civitatem cum ducatu suo et suburbanis atque viculis omnibus et territoriis eius montanis atque maritimis litoribus et portubus, seu cunctis civitatibus, castellis, oppidis ac villis in Tusciae partibus.”^[353]

Tune, Ludovice, cum Paschale pacisceris? Si tua, id est Imperii Romani, sunt ista, cur alteri concedis? Si ipsius et ab eo^[354] possidentur, quid attinet te illa confirmare? Quantum etiam ex Imperio Romano tuum erit, si caput ipsum Imperii amisisti? A Roma dicitur Romanus Imperator. Quid, cetera quae possides tuane an Paschalis sunt? Credo tua dices. Nihil ergo valet donatio Constantini, si ab eo pontifici donata tu possides. Si valet, quo iure Paschalis tibi cetera remittit, retentis tantum sibi quae possidet? Quid sibi vult tanta, aut tua in illum, aut illius in te de Imperio Romano largitio? Merito igitur pactum appellas, quasi quandam collusionem.

[\[See English page\]](#)

“Sed quid faciam?” inquires. “Repetam armis quae papa occupat? At ipse iam factus est me potentior. Repetam iure? At ius meum tantum est quantum ille esse voluit;^[355] non enim hereditario nomine ad Imperium veni, sed pacto, ut, si Imperator esse volo, haec et haec invicem papae promittam. Dicam nihil donasse ex Imperio Constantinum? At isto modo causam agerem Graeci Imperatoris et me omni fraudare Imperii dignitate. Hac enim ratione papa se dicit facere Imperatorem me, quasi quendam vicarium suum, et nisi promittam, non facturum; et nisi paream, me abdicaturum. Dummodo mihi det, omnia fatebor, omnia paciscar. Mihi tantum^[356] crede, si Romam ego ac^[357] Tusciam possiderem, tantum abest ut facerem quae facio; ut etiam frustra mihi Paschalis donationis, sicut reor falsae,^[358] caneret cantilenam. Nunc concedo quae nec teneo nec habiturum esse me spero. De iure papae inquirere non ad me pertinet, sed ad Constantinopolitanum illum^[359] Augustum.”

Iam apud me excusatus es, Ludovice, et quisquis alius princeps^[360] es Ludovici similis. Quid de aliorum Imperatorum cum summis pontificibus pactione suspicandum est, cum sciamus quid Sigismundus fecerit, princeps

alioqui^[361] optimus ac fortissimus, sed iam affecta aetate minus fortis, quem per Italiam paucis stipatoribus saeptum in diem vivere vidimus Romae etiam fame periturum, nisi eum, sed non gratis—extorsit enim donationem—Eugenius pavisset! Is cum Romam venisset ut pro Imperatore Romanorum coronaretur, non aliter a papa coronari potuit, quam^[362] Constantini donationem ratam haberet eademque omnia de integro donaret. Quid magis contrarium quam pro Imperatore Romano^[363] coronari qui Romae ipsi renuntiasset, et coronari ab illo quem et confiteatur et, quantum in se est, dominum Romani Imperii faciat, ac ratam [\[See English page\]](#) habere donationem, quae vera si sit, nihil Imperatori de Imperio reliqui fiat? Quod, ut arbitror, nec pueri fecissent. Quominus mirum si papa sibi arrogat Caesaris coronationem, quae populi Romani esse deberet.

Si tu, papa, et potes Graecum Imperatorem privare Italia provinciisque^[364] occidentis, et Latinum Imperatorem facis, cur pactionibus uteris; cur bona Caesaris partiris; cur in te Imperium^[365] transfers?

Quare sciat, quisquis est qui dicitur^[366] Imperator Romanorum, me iudice se non esse nec Augustum, nec Caesarem, nec Imperatorem, nisi Romae imperium teneat; et nisi operam det ut urbem Romam recuperet, plane esse periurum. Nam Caesares illi priores, quorum fuit primus Constantinus, non adigebantur iusiurandum interponere quo nunc Caesares obstringuntur, sed quantum humana ope praestari potest, nihil imminuturos esse de amplitudine Imperii Romani, eamque sedulo adaucturos.

Non ea re tamen vocati^[367] Augusti, quod Imperium augere deberent, ut aliqui sentiunt Latinae linguae imperiti, est enim Augustus quasi sacer ab avium gustu dictus, quae in auspiciis adhiberi solebant, Graecorum quoque testante lingua, apud quos Augustus σεβαστός^[368] dicitur, unde Sebastia vocata. Melius summus pontifex ab augendo Augustus diceretur, nisi quod dum temporalia auget, spiritualia minuit. Itaque videas ut quisque pessimus est summorum pontificum, ita maxime defendendae huic donationi incumbere; qualis Bonifacius octavus, qui Caelestinum tubis parieti insertis decepit. Hic et de donatione Constantini scribit et regem Franciae^[369] privavit, regnumque ipsum, quasi donationem Constantini [\[See English page\]](#) exsequi vellet, ecclesiae Romanae fuisse et esse subiectum iudicavit; quod

statim successores eius, Benedictus et Clemens, ut improbum iniustumque revocarunt.

Verum quid sibi vult ista vestra, pontifices Romani, sollicitudo quod a singulis Imperatoribus donationem Constantini exigitis confirmari, nisi quod iuri diffiditis vestro? Sed laterem lavatis, ut dicitur; nam neque illa umquam fuit, et quod non est confirmari non potest; et quicquid donant Caesares, decepti exemplo Constantini faciunt, et donare Imperium nequeunt.

Age vero, demus Constantinum donasse Silvestrumque aliquando possedisse, sed postea vel ipsum, vel aliquem ipsorum^[370] a possessione deiectum. (Loquor nunc de his quae papa non possidet; postea loquar de his quae possidet.) Quid possum vobis magis dare quam ut ea quae nec fuerunt nec esse potuerunt fuisse concedam? Tamen^[371] dico vos nec iure divino nec iure humano ad recuperationem agere posse. In lege veteri Hebraeus supra sextum annum Hebraeo servire vetabatur, et quinquagesimo^[372] quoque anno omnia redibant ad pristinum dominum. Tempore gratiae Christianus a vicario Christi, redemptoris nostrae servitutis, premetur servitio aeterno? Quid dicam! Revocabitur ad servitutem postquam liber factus est diuque potitus libertate?

Sileo quam saevus, quam vehemens, quam barbarus dominatus frequenter est sacerdotum; quod si antea ignorabatur, nuper est cognitum ex monstro illo atque portento, Ioanne Vitellesco, cardinale et patriarcha, qui gladium Petri quo auriculam Malcho abscidit in Christianorum sanguine lassavit; quo gladio et ipse [\[See English page\]](#) periit. An vero populis Israel a domo David et Salomonis, quos prophetae a Deo missi unxerant, tamen propter graviora onera desciscere licuit, factumque eorum Deus probavit; nobis ob tantam tyrannidem desciscere non licebit, ab his praesertim qui nec sunt reges, nec esse possunt, et qui de pastoribus ovium, id est animarum, facti sunt fures ac latrones?

Et, ut ad ius humanum veniam, quis ignorat nullum ius esse bellorum; aut si quod est, tamdiu valere quamdiu possideas quae bello parasti? Nam cum possessionem perdis, et ius perdidisti; ideoque captivos, si fugerint, nemo ad iudicem repetere solet; etiam nec praedas,^[373] si eas priores domini

receperint. Apes et quaedam alia volucrum genera, si e privato meo longius evolaverint et in alieno desederint, repeti non queunt. Tu homines, non modo liberum animal, sed dominum ceterorum, si se in libertatem manu et armis asserant, non manu et armis repetes, sed iure, quasi tu homo sis, illi pecudes.

Neque est quod dicas: Romani iuste bella nationibus intulerunt, iusteque libertate illas exuerunt. Noli me ad istam vocare quaestionem,^[374] ne quid in Romanos meos cogar dicere; quamquam nullum crimen tam grave esse potuit ut aeternam mererentur populi servitutem; cum eo quod saepe culpa principis, magnive alicuius in republica civis, bella gesserunt, et victi immerita servitutis poena affecti sunt; quorum exemplis plena sunt omnia.

Neque vero lege naturae comparatum est, ut populus sibi populum subigat. Praecipere aliis eosque exhortari possumus; imperare illis ac vim afferre non possumus, nisi relictam humanitatem velimus ferociores beluas imitari, quae sanguinarium in infirmiores imperium exercent, ut leo in quadrupedes, aquila in volucres, delphinus in pisces. Verumtamen hae beluae non in suum genus [\[See English page\]](#) sibi ius vindicant,^[375] sed in inferius. Quod quanto magis faciendum nobis est, et homo homini religioni habendus, cum, ut M. Fabius inquit, nulla supra terras adeo rabiosa belua, cui non imago sua sancta sit.

Itaque quattuor fere causae sunt ob quas bella inferuntur: aut ob ulciscendam iniuriam defendendosque amicos; aut timore accipiendae postea calamitatis, si vires aliorum augeri sinantur; aut spe praedae; aut gloriae cupiditate; quarum prima nonnihil honesta, secunda parum, duae posteriores nequaquam honestae sunt. Et Romanis quidem illata fuere bella frequenter, sed postquam se defenderant, et illis et aliis ipsi intulerunt; nec ulla gens est quae ditioni eorum cesserit, nisi bello victa et domita, quam recte aut qua causa, ipsi viderint. Eos ego nolim nec damnare, tamquam iniuste pugnaverint, nec absolvere tamquam iuste; tantum dicam eadem ratione Romanos ceteris bella intulisse qua reliqui populi regesque, atque ipsis qui hello lacessiti victique sunt licuisse deficere a Romanis, ut ab aliis dominis defecerunt; ne forte, quod nemo diceret, imperia omnia ad vetustissimos illos, qui primi domini fuere, id est, qui primi praeripere aliena, referantur.

Et tamen melius in victis bello nationibus populo Romano quam Caesaribus rempublicam opprimentibus ius est. Quocirca si fas erat gentibus a Constantino, et quod multo plus est a populo Romano desciscere, profecto et ab eo ius erit cuicumque cesserit ille ius suum. Atque, ut audacius agam, si Romanis licebat Constantinum aut exigere ut Tarquinium, aut occidere ut Iulium Caesarem, multo magis eum vel Romanis vel provinciis licebit occidere qui in locum Constantini utcumque successit. Hoc etsi verum, tamen ultra causam meam est, et idcirco^[376] me reprimere volo nec aliud ex his colligere quae dixi, nisi ineptum esse, ubi [\[See English page\]](#) armorum vis est, ibi ius quemque afferre verborum; quia quod armis acquiritur, idem rursus armis amittitur.

Eo quidem magis, quod aliae novae gentes, ut de Gothis accepimus, quae numquam sub imperio Romano fuerunt, fugatis veteribus incolis, Italiam et multas provincias occuparunt, quas in servitutem revocari in qua numquam fuerunt, quae tandem aequitas est, praesertim victrices, et fortasse a victis? Quo tempore, si quae urbes ac nationes, ut factum fuisse scimus, ab Imperatore desertae ad barbarorum adventum necesse habuerunt deligere sibi regem, sub cuius auspiciis victoriam reportarunt, numquid hunc postea a principatu deponerent; aut eius filios, tum commendatione patris, tum propria virtute favorabiles iuberent esse privatos, ut iterum sub Romano principe essent, maxime cum eorum opera assidue indigerent, et nullum aliunde auxilium sperarent? Hos^[377] si Caesar ipse, aut Constantinus ad vitam reversus, aut etiam senatus populusque Romanus ad commune iudicium, quale in Graecia Amphictyonum^[378] fuit, vocaret, prima statim actione repelleretur, quod a se olim custode desertos, quod tamdiu^[379] sub alio principe degentes, quod numquam alienigenae regi subditos, quod denique homines libertati natos et in libertatem robore animi corporisque assertos, ad famulatum servitiumque reposceret. Ut appareat, si Caesar, si populus Romanus a repetendo exclusus est, multo vehementius papam esse exclusum! Et si licet aliis nationibus quae sub Roma fuerunt, aut regem sibi creare, aut rempublicam tenere, multo magis id licere populo Romano, praecipue adversus novam papae tyrannidem.

Exclusi a defendenda donatione adversarii, quod nec umquam fuit et si qua fuisset iam temporum conditione intercidisset, confugiunt ad alterum

genus defensionis, et velut relictæ urbe in [\[See English page\]](#) arcem se recipiunt, quam statim deficientibus cibariis dedere cogentur. Praescripsit, inquiunt, Romana ecclesia in iis^[380] quae possidet. Cur ergo, quae maior pars est, ea reposcit, in quibus non praescripsit, et in quibus alii praescripserunt? Nisi id non licet aliis in hanc, quod huic licet in alios.

Praescripsit Romana ecclesia! Cur ergo ab Imperatoribus totiens curat sibi ius confirmandum? Cur donationem confirmationemque Caesarum iactat? Si hoc unum satis est, iniuriam ei facis si de altero quoque iure non sileas. Cur igitur de altero non siles? Nempe quia hoc sibi non sufficit.

Praescripsit Romana ecclesia! Et quomodo potest praescripsisse ubi de nullo titulo sed de malefidei^[381] possessione constat; aut, si malefidei possessionem neges, profecto stultae fidei negare non possis? An in tanta re tamque aperta excusata debet esse et iuris et facti ignorantia? Facti quidem, quod Romam provinciasque non dedit Constantinus, quod ignorare idiotae hominis est, non summi pontificis; iuris autem, quod illa nec donari potuere nec accipi, quod nescire vix Christiani est. Itane stulta credulitas dabit tibi ius in his quae, si prudentior fores, tua numquam fuissent? Quid! Nonne nunc saltem, postquam te per ignorantiam atque stultitiam possedis docui, ius istud, si quod erat, amittes, et quod inscitia male contulerat tibi, nonne id rursum cognitio bene adimet, mancipiumque ab iniusto ad iustum dominum revertetur, fortassis etiam cum usufructu? Quod si adhuc possidere pergis, iam inscitia in malitiam^[382] fraudemque conversa est, planeque effectus es^[383] malefidei possessor.

Praescripsit Romana ecclesia! O imperiti, O divini iuris ignari! [\[See English page\]](#) Nullus quantusvis^[384] annorum numerus verum abolere titulum potest. An vero captus ego a barbaris, creditusque perisse,^[385] post centum annos quibus captivus fui, postliminio reversus paternae hereditatis repetitor excludar? Quid hac re inhumanius? Atque, ut aliquod afferam exemplum, num Jephthe, dux Israel, reposcentibus filiis Ammon terram “a finibus Arnon usque in Iaboc atque in Iordanem” respondit, “Praescripsit Israel iam per trecentos annos?” An quod numquam illorum, sed Amorreorum fuisset terra quam reposcerent ostendit; et hoc argumentum esse, ad Ammonitas^[386] illam non pertinere, quod numquam intra tot annorum curriculum repoposcissent?

Praescripsit Romana ecclesia! Tace, nefaria lingua! Praescriptionem, quae fit de rebus mutis et irrationabilibus, ad hominem transfers, cuius quo diuturnior in servitute possessio eo est detestabilior? Aves ac ferae in se praescribi nolunt, sed quantolibet tempore possessae, cum libuerit et oblata fuerit occasio, abeunt: homini ab homine possesso abire non licebit?^[387]

Accipe unde magis fraus dolusque quam ignorantia Romanorum pontificum appareat utentium iudice bello non iure; cui simile quiddam primos pontifices in occupanda urbe ceterisque oppidis credo fecisse. Parum ante me natum, testor eorum memoriam qui interfuerunt, per inauditum genus fraudis Roma papale accepit imperium seu tyrannidem potius, cum diu libera fuisset. Is fuit Bonifacius nonus, octavo in fraude ut^[388] in nomine par, si modo Bonifacii^[389] dicendi sunt qui pessime faciunt. Et cum Romani deprehenso dolo apud se indignarentur, bonus^[390] papa in morem Tarquinii summa quaeque papavera virga decussit. Quod cum postea, qui ei successit, Innocentius imitari vellet, urbe fugatus [\[See English page\]](#) est. De aliis pontificibus nolo dicere, qui Romam vi semper oppressam armisque tenuerunt; licet, quotiens potuit, rebellavit; ut sexto abhinc anno, cum pacem ab Eugenio obtinere non posset, nec par^[391] esset hostibus qui eam obsidebant, et ipsa papam intra aedes obsedit, non permissura illum abire priusquam aut pacem cum hostibus faceret aut administrationem civitatis relegaret ad cives. At ille maluit urbem deserere dissimulato habitu uno fugae comite, quam civibus gratificari iusta et aequa petentibus. Quibus si des electionem, quis ignorat libertatem magis quam servitium electuros?

Idem suspicari libet de ceteris urbibus quae a summo pontifice in servitute retinentur, per quem a servitute liberari debuissent. Longum esset recensere quot urbes ex hostibus captas populus Romanus olim liberas fecit, adeo ut Titus Flaminus omnem Graeciam, quae sub Antiocho fuisset, liberam esse et suis uti legibus iuberet. At papa, ut videre licet, insidiatur sedulo libertati populorum; ideoque vicissim illi quotidie oblata facultate (ad Bononiam modo respice) rebellant. Qui si quando sponte, quod evenire potest aliquo aliunde periculo urgente, in papale imperium concenserunt, non ita accipiendum est concensisse, ut servos se facerent; ut numquam subtrahere a iugo colla possent; ut postea nati non et ipsi arbitrium sui habeant; nam hoc iniquissimum foret.

“Sponte ad te, summe pontifex, ut nos gubernares venimus; sponte nunc rursus abs te ne gubernes diutius recedimus. Si qua [\[See English page\]](#) tibi a nobis debentur, ponatur calculus datorum et acceptorum. At tu gubernare invitos vis, quasi pupilli simus, qui te ipsum forsitan sapientius gubernare possemus. Adde huc iniurias quae aut abs te aut a tuis magistratibus huic civitati frequentissime inferuntur. Deum testamur, iniuria cogit nos rebellare, ut olim Israel a Roboam fecit. Et quae tanta fuit illi [\[392\]](#) iniuria? Quanta portio nostrae calamitatis graviora solvere tributa? Quid enim si rempublicam nostram exhaurias? Exhausisti. [\[393\]](#) Si templa spoliēs? Spoliasti. Si virginibus matribusque familias stuprum inferas? Intulisti. Si urbem sanguine civili perfundas? Perfudisti. Haec nobis sustinenda sunt? An potius, cum tu pater nobis esse desieris, nos quoque filios esse [\[394\]](#) obliviscemur? Pro patre, summe pontifex, aut si te hoc magis iuvat, pro domino hic te populus advocavit, non pro hoste atque carnifice: patrem agere aut dominum non vis, sed hostem ac carnificem. Nos saevitiam tuam impietatemque, etsi iure offensae poteramus, tamen quia Christiani sumus, non imitabimur, nec in tuum caput ultorem stringemus gladium, sed te abdicato atque summoto, alterum patrem dominumve adoptabimus. Filiis a malis parentibus a quibus geniti sunt fugere licet; nobis a te, non vero patre sed adoptivo et pessime nos tractante, non licebit? Tu vero, quae sacerdotii operis sunt, cura, et noli tibi ponere sedem ad Aquilonem et illinc tonando [\[395\]](#) fulgurantia fulmina in hunc populum ceterosque vibrare.”

Sed quid plura opus est in re apertissima dicere? Ego non modo Constantinum non donasse tanta, non modo non potuisse Romanum pontificem in eisdem praescribere, sed etiam si utrumque esset, tamen utrumque ius sceleribus possessorum extinctum esse contendo, cum videamus totius Italiae multarumque provinciarum cladem ac vastitatem [\[396\]](#) ex hoc uno fonte fluxisse. Si fons [\[See English page\]](#) amarus est, et rivus; si radix immunda, et rami; si delibatio sancta non est, nec massa. Ita e diverso, si rivus amarus, fons obstruendus est; si rami immundi, e radice vitium venit; si massa sancta non est, delibatio quoque abominanda [\[397\]](#) est. An

possumus principium potentiae papalis pro iure proferre, quod tantorum scelerum tantorumque omnis generis malorum cernimus esse causam?

Quamobrem dico, et exclamo, neque enim timebo homines, Deo fretus; neminem mea aetate in summo pontificatu fuisse aut fidelem dispensatorem aut prudentem; qui tantum abest ut dederit familiae Dei cibum, ut devorarit illam velut cibum et escam panis.^[398] Papa et ipse bella pacatis populis infert, et inter civitates principesque discordias ferit. Papa et alienas sitit opes, et suas exsorbet,^[399] ut Achilles in Agamemnonem, Δημοβόρος βασιλεύς,^[400] id est populi vexator rex.^[401] Papa non modo rempublicam, quod non Verres, non Catilina, non quispiam peculator auderet, sed etiam rem ecclesiasticam et Spiritum Sanctum quaestui^[402] habet, quod Simon ille Magus etiam detestaretur. Et cum horum admonetur, et a quibusdam bonis viris reprehenditur, non negat, sed palam fatetur, atque gloriatur licere enim^[403] quavis ratione patrimonium ecclesiae a Constantino donatum ab occupantibus extorquere; quasi eo recuperato religio Christiana futura sit beata,—et non magis omnibus flagitiis, luxuriis libidinibusque oppressa, si modo opprimi magis potest, et ullus est sceleri ulterior locus!

Ut igitur recuperet cetera membra donationis, male ereptas a bonis viris pecunias peius effundit, militumque equestres pedestresque copias, quibus omnia infestantur, alit, cum Christus in tot millibus pauperum fame ac nuditate moriatur. Nec intelligit, O [\[See English page\]](#) indignum facinus! cum ipse saecularibus auferre^[404] quae ipsorum sunt laborat, illos vicissim sive pessimo exemplo induci, sive necessitate cogi, licet non est vera necessitas, ad auferenda quae sunt ecclesiasticorum. Nulla itaque usquam religio, nulla sanctitas, nullus Dei timor; et quod referens quoque horresco, omnium scelerum impii homines a papa sumunt excusationem. In illo enim comitibusque eius est^[405] omnis facinoris exemplum, ut cum Esaia et Paulo, in papam et papae proximos dicere possumus: “Nomen Dei per vos blasphematur inter gentes. Qui alios docetis, vos ipsos non docetis; qui praedicatis non furandum, latrocinamini; qui abominamini idola, sacrilegium facitis; qui in lege et in pontificatu gloriamini, per praevaricationem legis Deum verum pontificem inhonoratis.”

Quod si populus Romanus ob nimias opes veram illam Romanitatem perdidit, si Salomon ob eandem causam in idolatriam amore feminarum lapsus est, nonne idem putamus fieri in summo pontifice ac reliquis

clericis? Et postea putamus Deum fuisse permissurum ut materiam peccandi Silvester acciperet? Non patiar hanc iniuriam fieri sanctissimo viro; non feram hanc contumeliam fieri^[406] pontifici optimo, ut dicatur imperia, regna, provincias accepisse, quibus renuntiare^[407] etiam solent qui clerici fieri volunt. Pauca possedit Silvester, pauca ceterique sancti pontifices, quorum aspectus apud hostes quoque erat sacrosanctus; veluti illius Leonis, qui trucem barbari regis animum terruit ac fregit, quem Romanae vires nec^[408] frangere nec terrere potuerant. Recentes vero summi pontifices, id est divitiis ac deliciis^[409] affluentes, id videntur laborare, ut quantum prisci fuere sapientes et sancti, tantum ipsi et impii sint et stulti, et illorum egregias laudes omnibus probris [\[See English page\]](#) vincant. Haec quis Christiani nominis queat aequo animo ferre?

Verum ego in hac prima nostra oratione nolo exhortari principes ac populos, ut papam effrenato cursu volitantem inhibeant eumque intra suos fines consistere compellant, sed tantum admoneant, qui forsitan iam edoctus veritatem, sua sponte ab aliena domo in suam, et ab insanis fluctibus saevisque tempestatibus in portum se recipiet. Sin recuset, tunc ad alteram orationem multo truculentiorē accingemur. Utinam, utinam aliquando videam, nec enim mihi quicquam est longius quam hoc videre, et praesertim meo consilio effectum, ut papa tantum vicarius Christi sit, et non etiam Caesaris; nec amplius horrenda vox audiat: “Partes ecclesiae,” “Partes contra ecclesiam,” “Ecclesia contra Perusinos pugnat,” “contra Bononienses!” Non contra Christianos pugnat ecclesia, sed papa; illa pugnat contra spiritualia nequitiae in caelestibus. Tunc papa et dicetur et erit Pater Sanctus, pater omnium, pater ecclesiae; nec bella inter Christianos excitabit, sed ab aliis excitata censura apostolica et papali maiestate sedabit.^[410]

FOOTNOTES

^[8] Corpus Iuris Canonici, ed. Aemilius Friedberg, Leipsic, 1879, vol. I, p. 342.

^[9] The subject of cc. xi and xii is; Imperatores debent Pontificibus subesse, non preesse. [Ed.]

^[10] De falso credita et ementita Constantini donatione is the title Valla gave his work; cf. letter to Guarini from Naples in November, 1443; Epistolae

principum (Venice, 1574), p. 356; also Barozzi e Sabbadini, *Studii sul Panormita e sul Valla* (Florence, 1891), p. 93. In L. Valla *Opera* (Basle, 1543), p. 762, the title runs, *Contra Donationis, quae Constantini dicitur, privilegia, ut falso creditum declamatio*.

No title appears with the text of Codex Vaticanus Lat. 5314. The title in Ulrich von Hutten's edition inserts *patricii Romani* after *Vallensis*. The treatise is also frequently entitled *libellus* or *oratio* instead of *declamatio*.

[11] principum; Cod. Vat. Urb. 337 (containing a few fragments of this treatise). Hutten.

[12] execratione; Cod. Vat. Lat. 5314, so throughout.

[13] Cod. Vat. Urb. 337. *relinquit*; Cod. Vat. Lat. 5314. *reliquerit*; Hutten.

[14] sacerdotem; Cod. Vat. Urb. 337, Hutten.

[15] caeteri; Cod. Vat. Lat. 5314 (hereafter referred to as MS.), so throughout.

[16] obverberari (instead of *os verberari*); Hutten.

[17] quippiam; Hutten.

[18] coelestem; MS., so throughout.

[19] Hutten. *sit*; MS.

[20] Omit *eum*; Hutten.

[21] heretico; MS.

[22] quempiam; Hutten.

[23] nunquis; MS., so throughout.

[24] expectare; MS., Hutten, so throughout.

[25] quodnam ... crimen; Hutten.

[26] vero; Hutten.

[27] commentitiam; MS.

[28] minis; Hutten.

[29] *Hyspanias*; MS., so throughout.

[30] *accaepturus*; MS., so throughout.

[31] Pontifici a quo baptismum; Bonneau.

[32] Hutten. MS. omits *in*.

[33] *quorumdam*; MS., so throughout.

[34] *posse*; Hutten.

[35] *in in*; MS. error.

[36] Hutten. *concione*; MS., so throughout.

[37] *nunquid*; MS., so throughout.

[38] Omit *duobus*; Hutten.

[39] *iocundius*; MS., so throughout.

- [40] diesque; Hutten.
- [41] charissima; MS., so throughout.
- [42] detestantibusque; Hutten.
- [43] coelum; MS., so throughout.
- [44] quottidie; MS.
- [45] amicis; Hutten.
- [46] hi; Hutten.
- [47] his; Hutten.
- [48] Hebreis; MS., so throughout.
- [49] minorem; Hutten.
- [50] Neeman; MS., so throughout.
- [51] altero; MS. error.
- [52] Insert loquar; Bonneau.
- [53] coepit; MS.
- [54] lavatum; Hutten.
- [55] lachrimisque; MS., so throughout.
- [56] exhaeredas; MS.
- [57] relegamur; MS.
- [58] phana; MS.
- [59] destituimur; Hutten.
- [60] provintiis; MS.
- [61] praefuturi fuimus; Hutten. praefecturi sumus; Bonneau. praefecturi fuimus; Schard.
- [62] insert vel; Hutten.
- [63] extirpatam; MS., so throughout.
- [64] partum; Hutten.
- [65] qui; Hutten.
- [66] es; Hutten.
- [67] praesidiis; Hutten.
- [68] comunes; MS., so throughout.
- [69] provinciae; MS.
- [70] initium; Hutten.
- [71] tribunitii; MS.
- [72] tanquam; MS., so throughout.
- [73] Omit nostrae; Hutten.

- [74] Carthaginenses; MS.
- [75] foeminae; MS.
- [76] provintias; MS.
- [77] Bonneau. praefecimus; MS., Hutten.
- [78] coges; Hutten.
- [79] Insert occupavit; Hutten. Insert occupanti; Bonneau.
- [80] tibi; Hutten.
- [81] Tarquinum; MS.
- [82] videtur; Hutten.
- [83] suspitio; MS.
- [84] discedere; Hutten.
- [85] unquam; MS., so throughout.
- [86] Apparently se was omitted, or it has dropped out of the text.
- [87] ovem; Hutten, Bonneau.
- [88] assentiar; Hutten.
- [89] possum; Hutten.
- [90] Ihesum; MS., so throughout.
- [91] Insert a; Hutten.
- [92] Omit reges; MS., an error.
- [93] praecaepa; MS., so throughout.
- [94] negotiorum; MS., so throughout.
- [95] haec; Hutten.
- [96] Blank space for the Greek word, followed apparently by its transcription, clerus; MS. Hutten reads dominatus for clerus, and terrenus for terrena in the following line. Bonneau has divina after the Greek word.
- [97] idem; Hutten.
- [98] reliquerunt; MS.
- [99] Eius; Hutten.
- [100] prophanum; MS., so throughout.
- [101] frequenter; Hutten.
- [102] haec; Hutten.
- [103] ipsius; Hutten. suum; Bonneau.
- [104] Omit in; Hutten.
- [105] duriciam; MS.
- [106] de rebus controversis; Hutten.
- [107] quodcunque; MS., so throughout.

- [108] dignationem; Hutten.
- [109] ferri; Hutten.
- [110] blasfement; MS., so throughout.
- [111] charissimos; MS.
- [112] Insert est; Bonneau (as in Vulgate).
- [113] Omit ut iam; Hutten. in hoc, instead of ut iam; Bonneau.
- [114] in; Hutten.
- [115] acceptatam; Hutten.
- [116] Bonneau omits acceptatum ... non fuisse.
- [117] iuste; Hutten.
- [118] avariciam; MS.
- [119] tabulis; Hutten.
- [120] haec ... solent; Hutten.
- [121] circunduxit; MS.
- [122] Hispanias; Hutten.
- [123] Hutten. gratulabantur; MS.
- [124] hi; Hutten.
- [125] This sentence is omitted by Hutten.
- [126] aliquis; Hutten.
- [127] sedicionem; MS.
- [128] fecem; MS.
- [129] ulcionem; MS.
- [130] hybernis; MS.
- [131] ediles; MS.
- [132] Moedorum; MS.
- [133] enim; Hutten.
- [134] at; Hutten.
- [135] Hutten. sufficiet; MS.
- [136] diaconus; Hutten.
- [137] imperatorque; Hutten.
- [138] The clauses, qui fuit ... idolorum cultu, are not in the original text of Eutropius.
- [139] Eutropius, Bonneau. Claudium propontum, thelesium; MS. Claudium propontum Telesinum; Hutten. Caudium Propontum Telesinum; Schard. Valla makes omissions in this and in the preceding sentence from Eutropius.
- [140] Insert qui; Hutten.

- [141] Omit licet; Hutten.
- [142] Faelicis; MS.
- [143] Archadium; MS.
- [144] Proho; MS. Proh; Hutten.
- [145] laetale; MS., Hutten.
- [146] Hutten. Constantino; MS. error.
- [147] Ruffinus; MS.
- [148] pene; MS., Hutten.
- [149] insert ad; Hutten.
- [150] Insert sub; Hutten.
- [151] Bonneau. non; MS. qui non in dubium vocari; Hutten. qui in dubium vocari; Schard.
- [152] codicibus; Hutten.
- [153] Lodoici; MS.
- [154] ad; Hutten.
- [155] ut; Hutten.
- [156] nauci; Hutten, Bonneau.
- [157] utimini; Hutten.
- [158] Gelatium; MS., so throughout.
- [159] Omit Is ... legi; Hutten, evidently copyist's error.
- [160] secuntur; MS.
- [161] duntaxat; MS.
- [162] Sybillini; MS.
- [163] collumnis; MS.
- [164] Hutten. christianos; MS.
- [165] in; Hutten, Bonneau.
- [166] papiro; MS.
- [167] committis; Hutten.
- [168] in urbe Roma; Hutten. in tota urbe Romana; Bonneau.
- [169] incipit; Bonneau.
- [170] satrapas; Hutten, so throughout.
- [171] adiuncto (instead of aut iuncto); Hutten, Bonneau.
- [172] quatuor; MS., so throughout.
- [173] nominantur; Hutten.
- [174] Bonneau omits Romane ... populos.

- [175] pontifex; Hutten, Bonneau.
- [176] non; Hutten, Bonneau.
- [177] hi; Hutten, Bonneau.
- [178] infaelix; MS., so throughout.
- [179] exaltare; Hutten.
- [180] Formiane; MS.
- [181] elegis; Hutten, Bonneau.
- [182] exaltare; Hutten.
- [183] dignitatem; Hutten.
- [184] Hutten, Bonneau. disponatur; MS. error.
- [185] Bizantium; MS., so in many places.
- [186] Hutten, Bonneau. confitentur; MS. error.
- [187] Atqui; Hutten. Atque; Bonneau.
- [188] Hutten omits Byzantium ... nomine.
- [189] Trachia; MS., so throughout.
- [190] extruxerat; MS.
- [191] comunem; MS.
- [192] Getulos; MS.
- [193] Hutten. nominetur; MS.
- [194] Siccine; MS.
- [195] exequitur; MS., so throughout.
- [196] extinctis; MS., so throughout.
- [197] igitur, instead of tu ideo; Hutten. te omnino omisisse; Bonneau.
- [198] circundare; MS.
- [199] Hutten. clamydem; MS.
- [200] revendissimis; MS., an error.
- [201] patritios; MS.
- [202] Hutten. hostiariorum; MS.
- [203] adornatur; Hutten.
- [204] decrevimus; Hutten.
- [205] blasphemiam; MS.
- [206] paciens; MS., so throughout.
- [207] convertentur; Hutten, Bonneau.
- [208] Pharisei; MS.
- [209] Hutten, Bonneau. Omit cum; MS.

- [210] patescet; MS.
- [211] cognosceret; Hutten, Bonneau.
- [212] solitudinibus; MS.
- [213] Menechinis; MS.
- [214] Hutten. frygionem; MS.
- [215] Correct form is phrygionias. Bonneau omits this whole sentence.
- [216] fuerunt; Hutten.
- [217] significet; Hutten.
- [218] loro circumdari collum; Bonneau.
- [219] Insert aut canem; Hutten, Bonneau.
- [220] chlamidem; MS., so below.
- [221] porphiritum; MS.
- [222] amethisto; MS.
- [223] si; Hutten.
- [224] dilabatur; Hutten, Bonneau.
- [225] mendatio; MS.
- [226] loqueris; Hutten, Bonneau.
- [227] crescentis; MS.
- [228] Insert summum; Hutten.
- [229] patritii; MS.
- [230] patritius; MS.
- [231] Hutten, Bonneau. iis; MS.
- [232] fiant; Hutten. faciunt; Bonneau. Add aut militaria ornamenta; Hutten, Bonneau.
- [233] scenici; MS.
- [234] ociosum; MS.
- [235] Hutten, Bonneau. Salomon; MS.
- [236] inpraesentiarum; MS.
- [237] Bonneau. Cilicini; MS., Hutten.
- [238] Bonneau. Cyniphio; MS., Hutten.
- [239] terrestria; Hutten, Bonneau. The quotation, to correspond with Valla's earlier citation, should be "ita caelestia sicut terrena ad laudem Dei decorantur."
- [240] deficiet; Hutten, Bonneau. Insert alias deficient; Bonneau.
- [241] prae; Hutten, Bonneau.
- [242] concessimus; Bonneau, Zeumer's text of the Constitutum Constantini.
- [243] preciosis; MS., so below.

[244] Hutten. admistum; MS.

[245] nanque; MS.

[246] loqutus; MS., so throughout.

[247] Decrevimus hoc ut ... uti debeant, is the correct quotation from the Constitutum Constantini. Decrevimus quod uti debeant; Hutten.

[248] decrevimus; MS., Hutten.

[249] eodo; MS.

[250] representari; MS.

[251] Hutten. misteria; MS. ministeria; Bonneau.

[252] libris; Bonneau.

[253] qui; Bonneau.

[254] Moysem; MS.

[255] Omit ut; Hutten, Zeumer's text of the Constitutum Constantini.

[256] provincias; MS.

[257] calceo; MS., an error.

[258] Insert ornamenta; Hutten.

[259] provincias; MS., so below.

[260] Omit non; Bonneau.

[261] Omit Nam ... erant; Bonneau.

[262] numero; MS., an error.

[263] cathalogo; MS.

[264] descirptos; MS.

[265] permanendas in the passage as quoted above by Valla. The form used varies in different texts of the Donation; permansurum, permanenda, permanendam, permanendas.

[266] Bonneau includes as part of this quotation the next quoted passage below, quoniam ... potestatem. He repeats it in its proper place without quotation marks.

[267] Schard. Italiam; MS., Hutten.

[268] urbis; Hutten, Bonneau.

[269] desisti; MS.

[270] Insert scripturam; Hutten, Bonneau.

[271] firmavimus; Hutten. confirmamus; Bonneau. confirmavimus; Zeumer's text of the Constitutum Constantini.

[272] et; MS.

[273] coeno; MS.

[274] peribit; Hutten.

- [275] quod tu summo Deo; Hutten. quod tu Summo Pontifici; Bonneau.
- [276] Hutten, Bonneau. praecipit; MS.
- [277] Omit obtestamur; MS., an error.
- [278] nunc instead of nec non; Bonneau, Zeumer's text of the Constitutum Constantini.
- [279] imposterum; MS.
- [280] Hutten, Bonneau, Zeumer's text of the Constitutum Constantini. Omit non; MS.
- [281] insert Caesaris aut; Hutten, Bonneau.
- [282] existimat; Hutten.
- [283] quemdam; MS.
- [284] maliciamque; MS.
- [285] sepulchro; MS.
- [286] sanctae; Hutten, Bonneau.
- [287] custoditis; Hutten, Bonneau.
- [288] Hutten's text omits two sentences, "Nemo ... exemplar."
- [289] glosatoris; MS.
- [290] Kalendarum; Bonneau. Kalendarum Apriliarum; Zeumer's text of the Constitutum Constantini.
- [291] Joathan; Bonneau.
- [292] Omit hoc; Hutten, Bonneau.
- [293] Omit ad illum vero ... is cui mittuntur; Hutten, Bonneau.
- [294] ne; MS.
- [295] senserunt; Hutten.
- [296] tamen; Hutten.
- [297] Omit mihi; Hutten.
- [298] malicia; MS.
- [299] Hutten. angusto; MS.
- [300] Insert veritatis; Hutten.
- [301] tacite; Hutten.
- [302] bybliae; MS.
- [303] luminaribus; Hutten.
- [304] Hutten, Bonneau. dicant; MS.
- [305] Hutten, Bonneau. est; MS.
- [306] prumptissima; MS.
- [307] satyrica; MS.

- [308] ullum sociorum ac comitum suorum; Hutten.
- [309] Bonneau. Bragadae; MS., Hutten.
- [310] Insert olim and omit illum; Hutten, Bonneau.
- [311] quin; Hutten, Bonneau.
- [312] Instead of the two preceding sentences, Bonneau has; Volant enim dracones; imperite eum cuius genus illud sit excogitaverat.
- [313] foeminas; MS., so throughout.
- [314] prodiisset; MS.
- [315] fuit; Hutten.
- [316] mimicae; Bonneau.
- [317] impudentissimi; Hutten.
- [318] demonum; MS.
- [319] seduceretur; Hutten, Bonneau.
- [320] iniusticiae; MS.
- [321] Hutten, Bonneau. illius; MS.
- [322] Omit haec; Hutten.
- [323] hec; MS.
- [324] opereprecium; MS. operepretium; Hutten.
- [325] Hutten. Genutius; MS. Bonneau omits this sentence Terentius Varro ... M. Genutius.
- [326] dedistis; Valerius Maximus, factorum et dictorum memorabilium, lib. i, viii, 4.
- [327] Bonneau. istos; MS., Hutten.
- [328] nescirent; Bonneau.
- [329] inficior; Bonneau.
- [330] synapis; MS.
- [331] horum; Bonneau.
- [332] aemulationem si non scientiam; Bonneau.
- [333] Omit improba quaedam et; Bonneau.
- [334] Insert nisi; Bonneau.
- [335] abiicimus; MS.
- [336] Omit ut; Hutten. ingenuam; Hutten, Bonneau.
- [337] illo; Hutten. eo; Bonneau.
- [338] Bonneau inserts Transeo quod cruorem puerorum ad curationem leprae facere dicunt, quod medicina non confitetur.
- [339] iusissent; MS.

- [340] Hutten, Bonneau. ἀπὸ τοῦ κεφαλῆ; MS.
- [341] sed; Hutten, Bonneau.
- [342] κηφας; MS. κηφύς; Hutten. Κεφάς; Bonneau.
- [343] Hutten, Bonneau. distingunt; MS.
- [344] Bonneau. Metropolis sed Mitropolis; MS. metropolis, sed μητροπόλις; Hutten.
- [345] civitatis sive urbis; Hutten, Bonneau.
- [346] Insert ita legendum Simonem; Hutten.
- [347] commentitiam; MS.
- [348] Lodoici; MS., so throughout.
- [349] Pascali; MS., so throughout.
- [350] imperpetuum; MS.
- [351] predecessores; MS.
- [352] ditione; MS.
- [353] Insert et cetera; Hutten.
- [354] ipso; Hutten.
- [355] voluerit; Hutten, Bonneau.
- [356] tamen; Hutten, Bonneau.
- [357] aut; Hutten, Bonneau.
- [358] false; MS.
- [359] Omit illum; Hutten, Bonneau.
- [360] Omit princeps; Hutten.
- [361] alioquin; MS.
- [362] Insert ut; Hutten, Bonneau.
- [363] Omit Romano; Hutten.
- [364] provinciisque; MS.
- [365] Insert non; Bonneau.
- [366] Omit qui dicitur; Hutten.
- [367] vocantur; Bonneau.
- [368] MS. leaves blank. σεβασός; Hutten.
- [369] Insert regno; Bonneau.
- [370] ipsius successorum; Bonneau.
- [371] tantum; MS.
- [372] quinquagesimo; MS.
- [373] predas; MS., so throughout.

- [374] questionem; MS.
- [375] vendicant; MS.
- [376] iccirco; MS.
- [377] hoc; Hutten, Bonneau.
- [378] Amphitrionum; MS., Hutten.
- [379] tandiu; MS., Hutten.
- [380] his; Hutten, Bonneau.
- [381] malae fidei; Hutten, Bonneau, so below.
- [382] maliciam; MS.
- [383] est; MS.
- [384] quantumvis; Hutten, Bonneau, so throughout.
- [385] periisse; Hutten, Bonneau, so throughout.
- [386] Amonitas; MS.
- [387] licet; Hutten.
- [388] et, instead of ut in; Hutten, Bonneau.
- [389] bonifatii; MS.
- [390] Bonifacius; Hutten, Bonneau.
- [391] pax; Hutten, Bonneau.
- [392] illa; Hutten, Bonneau.
- [393] exhausti; MS.
- [394] non must have dropt out of the text.
- [395] Hutten, Bonneau. tonantem; MS.
- [396] vastitate; MS.
- [397] abhominanda; MS., so throughout.
- [398] ut dederit familiae cibum, et escam panis; Hutten. donaret, instead of devorarit; Bonneau.
- [399] exorbet; MS.
- [400] MS. leaves blank space for the Greek words.
- [401] Omit id est populi vexator rex; Hutten. populi vorator, omitting id est and rex; Bonneau.
- [402] questui; MS.
- [403] ei; Bonneau.
- [404] auferre; MS.
- [405] esse; MS.
- [406] Bonneau omits sanctissimo ... fieri.
- [407] renunciare; MS.

[\[408\]](#) Hutten, Bonneau. Omit nec; MS.

[\[409\]](#) delitiis; MS.

[\[410\]](#) MS. bears postscript; Finis septimo Idus Decembris, Mccccli. Laus Deo.

[\[See Latin page\]](#)

**THE DONATION OF CONSTANTINE
AS GIVEN IN PART ONE, DIVISION XCVI, CHAPTERS
XIII AND XIV OF GRATIAN’S DECRETUM, OR
HARMONY OF THE CANONS.**

PART ONE. DIVISION XCVI.

[PALEA [\[411\]](#)

CHAPTER XIII. CONCERNING THE SAME. [\[412\]](#)

The Emperor Constantine yielded his crown, and all his royal prerogatives in the city of Rome, and in Italy, and in western parts to the Apostolic [See]. For in the Acts of the Blessed Sylvester (which the Blessed Pope Gelasius in the Council of the Seventy Bishops recounts as read by the catholic, and in accordance with ancient usage many churches he says follow this example) occurs the following:]

[PALEA.

C. XIV. CONCERNING THE SAME.

The Emperor Constantine the fourth day after his baptism conferred this privilege on the Pontiff of the Roman church, that in the whole Roman world priests should regard him as [\[See Latin page\]](#) their head, as judges do the king. In this privilege among other things is this: “We—together with all our satraps, and the whole senate and my nobles, and also all the people subject to the government of glorious Rome—considered it advisable, that as the Blessed Peter is seen to have been constituted vicar of the Son of God on the earth, so the Pontiffs who are the representatives of that same chief of the apostles, should obtain from us and our empire the power of a

supremacy greater than the clemency of our earthly imperial serenity is seen to have conceded to it, choosing that same chief of the apostles and his vicars to be our constant intercessors with God. And to the extent of our earthly imperial power, we have decreed that his holy Roman church shall be honored with veneration, and that more than our empire and earthly throne the most sacred seat of the Blessed Peter shall be gloriously exalted, we giving to it power, and dignity of glory, and vigor, and honor imperial. And we ordain and decree that he shall have the supremacy as well over the four principal seats, Alexandria, Antioch, Jerusalem, and Constantinople, as also over all the churches of God in the whole earth. And the Pontiff, who at the time shall be at the head of the holy Roman church itself, shall be more exalted than, and chief over, all the priests of the whole world, and according to his judgment everything which is provided for the service of God and for the stability of the faith of Christians is to be administered. *And below:* §. 1. On the churches of the blessed apostles Peter and Paul, for the providing of the lights, we have conferred landed estates of possessions, and have enriched them with different objects, and through our sacred imperial mandate we have granted him of our property in the east as well as in the west, and even in the northern and the southern quarter; namely, in Judea, Greece, Asia, Thrace, Africa, and Italy and the various islands; under this condition indeed, that all shall be administered by the hand of our most blessed father the supreme Pontiff, Sylvester, and his successors. *And below:* §. 2. And to our Father, the Blessed Sylvester, supreme Pontiff and Pope universal, of the city of Rome, and to all the Pontiffs, his successors, who shall sit [\[See Latin page\]](#) in the seat of the Blessed Peter even unto the end of the world, we by this present do give our imperial Lateran palace, then the diadem, that is, the crown of our head, and at the same time the tiara and also the shoulder-band,—that is, the strap that usually surrounds our imperial neck; and also the purple mantle and scarlet tunic, and all the imperial raiment; and also the same rank as those presiding over the imperial cavalry, conferring also even the imperial scepters, and at the same time all the standards, and banners, and the different ornaments, and all the pomp of our imperial eminence, and the glory of our power. §. 3. We decree moreover, as to the most reverend men, the clergy of different orders who serve that same holy Roman church, that they have that same eminence, distinction, power and excellence, by the glory of which it seems proper for our most illustrious senate to be adorned; that is, that they be made

patricians and consuls, and also we have proclaimed that they be decorated with the other imperial dignities. And even as the imperial militia is adorned, so also we decree that the clergy of the holy Roman church be adorned. And even as the imperial power is adorned with different offices, of chamberlains, indeed, and door-keepers, and all the guards, so we wish the holy Roman church also to be decorated. And in order that the pontifical glory may shine forth most fully, we decree this also; that the horses of the clergy of this same holy Roman church be decorated with saddle-cloths and linens, that is, of the whitest color, and that they are to so ride. And even as our senate uses shoes with felt socks, that is, distinguished by white linen, so the clergy also should use them, so that, even as the celestial orders, so also the terrestrial may be adorned to the glory of God. §. 4. Above all things, moreover, we give permission to that same most holy one our Father Sylvester and to his successors, from our edict, that he may make priest whomever he wishes, according to his own pleasure and counsel, and enroll him in the number of the religious clergy [i.e., regular, or monastic, clergy; or, perhaps, the cardinals], let no one whomsoever presume to act in a domineering way in this. §. 5. We also therefore decreed this, that he himself and his successors [\[See Latin page\]](#) might use and bear upon their heads—to the praise of God for the honor of the Blessed Peter—the diadem, that is, the crown which we have granted him from our own head, of purest gold and precious gems. But since he himself, the most blessed Pope, did not at all allow that crown of gold to be used over the clerical crown which he wears to the glory of the Blessed Peter, we placed upon his most holy head, with our own hands, a glittering tiara of dazzling white representing the Lord's resurrection, and holding the bridle of his horse, out of reverence for the Blessed Peter, we performed for him the duty of groom, decreeing that all his successors, and they alone, use this same tiara in processions in imitation of our power. §. 6. Wherefore, in order that the supreme pontificate may not deteriorate, but may rather be adorned with glory and power even more than is the dignity of an earthly rule; behold, we give over and relinquish to the aforesaid our most blessed Pontiff, Sylvester, the universal Pope, as well our palace, as has been said, as also the city of Rome, and all the provinces, places and cities of Italy and the western regions, and we decree by this our godlike and pragmatic sanction that they are to be controlled by him and by his successors, and we grant that they shall remain under the law of the holy Roman church. §. 7. Wherefore we

have perceived it to be fitting that our empire and the power of our kingdom should be transferred in the regions of the East, and that in the province of Byzantia, in the most fitting place, a city should be built in our name, and that our empire should there be established, for where the supremacy of priests and the head of the Christian religion has been established by the heavenly Emperor, it is not right that there an earthly emperor should have jurisdiction. §. 8. We decree, moreover, that all these things, which through this our sacred imperial [charter] and through other godlike decrees we have established and confirmed, remain inviolate and unshaken unto the end of the world. Wherefore, before the living God who commanded us to reign, and in the face of his terrible judgment, we entreat, through this our imperial sanction, all the emperors our successors, and all the nobles, the satraps also, the most glorious senate, and all the [\[See Latin page\]](#) people in the whole world, now and in all times still^[413] to come subject to our rule, that no one of them in any way be allowed either to break these [decrees], or in any way overthrow them. If any one, moreover,—which we do not believe—prove a scorner or despiser in this matter, he shall be subject and bound over to eternal damnation, and shall feel the holy ones of God, the chief of the apostles, Peter and Paul, opposed to him in the present and in the future life, and he shall be burned in the lower hell and shall perish with the devil and all the impious. The page, moreover, of this our imperial decree, we, confirming it with our own hands, did place above the venerable body of the Blessed Peter, chief of the apostles. Given at Rome on the third day before the Kalends of April, our master the august Flavius Constantine, for the fourth time, and Gallicanus, most illustrious men, being consuls.”]

[\[See Latin page\]](#)

THE DISCOURSE OF LORENZO VALLA ON THE FORGERY OF THE ALLEGED DONATION OF CONSTANTINE

I have published many books, a great many, in almost every branch of learning. Inasmuch as there are those who are shocked that in these I disagree with certain great writers already approved by long usage, and charge me with rashness and sacrilege, what must we suppose some of them will do now! How they will rage against me, and if opportunity is afforded how eagerly and how quickly they will drag me to punishment! For I am writing against not only the dead, but the living also, not this man or that, but a host, not merely private individuals, but the authorities. And what authorities! Even the supreme pontiff, armed not only with the temporal sword as are kings and princes, but with the spiritual also, so that even under the very shield, so to speak, of any prince, you cannot protect yourself from him; from being struck down by excommunication, anathema, curse. So if he was thought to have both spoken and acted prudently who said, “I will not write against those who can write ‘Proscribed,’” how much more would it seem that I ought to follow [\[See Latin page\]](#) the same course toward him who goes far beyond proscription, who would pursue me with the invisible darts of his authority, so that I could rightly say, “Whither shall I go from thy spirit, or whither shall I flee from thy presence?”^[414] Unless perhaps we think the supreme pontiff would bear these attacks more patiently than would others. Far from it; for Ananias, the high priest, in the presence of the tribune who sat as judge, ordered Paul when he said he lived in good conscience to be smitten on the mouth; and Pashur, holding the same rank, threw Jeremiah into prison for the boldness of his speech. The tribune and the governor, indeed, were able and willing to protect the former, and the king the latter, from priestly violence. But what tribune, what governor, what king, even if he wanted to, could snatch me from the hands of the chief priest if he should seize me?

But there is no reason why this awful, twofold peril should trouble me and turn me from my purpose; for the supreme pontiff may not bind nor loose any one contrary to law and justice. And to give one's life in defense of truth and justice is the path of the highest virtue, the highest honor, the highest reward. Have not many undergone the hazard of death for the defense of their terrestrial fatherland? In the attainment of the celestial fatherland (they attain it who please God, not men), shall I be deterred by the hazard of death? Away then with trepidation, let fears far remove, let doubts pass away. With a brave soul, with utter fidelity, with good hope, the cause of truth must be defended, the cause of justice, the cause of God.

Nor is he to be esteemed a true orator who knows how to speak well, unless he also has the courage to speak. So let us have the courage to accuse him, whoever he is, that commits crimes calling for accusation. And let him who sins against all be called to account by the voice of one speaking for all. Yet perhaps I ought not to reprove my brother in public, but by himself. Rather, "Them that sin" and do not accept private admonition "rebuke before all, that others also may fear."^[415] Or did not Paul, whose [\[See Latin page\]](#) words I have just used, reprove Peter to his face in the presence of the church because he needed reproof? And he left this written for our instruction. But perhaps I am not a Paul that I should reprove a Peter. Yea, I am a Paul because I imitate Paul. Just as, and this is far greater, I become one in spirit with God when I diligently observe his commandments. Nor is any one made immune from chiding by an eminence which did not make Peter immune, and many others possessed of the same rank; for instance, Marcellus,^[416] who offered a libation to the gods, and Celestine [I] who entertained the Nestorian heresy, and certain even within our own memory whom we know were reproved, to say nothing of those condemned, by their inferiors, for who is not inferior to the Pope?^[417]

It is not my aim to inveigh against any one and write so-called Philippics against him—be that villainy far from me—but to root out error from men's minds, to free them from vices and crimes by either admonition or reproof. I would not dare to say [that my aim is] that others, taught by me, should prune with steel the papal see, which is Christ's vineyard, rank with overabundant shoots, and compel it to bear rich grapes instead of meager wildings. When I do that, is there any one who will want to close either my mouth or his own ears, much less propose punishment and death? If one

should do so, even if it were the Pope, what should I call him, a good shepherd, or a deaf viper which would not choose to heed the voice of the charmer, but to strike his limbs with its poisonous bite?

I know that for a long time now men's ears are waiting to hear the offense with which I charge the Roman pontiffs. It is, indeed, an enormous one, due either to supine ignorance, or to gross avarice which is the slave of idols, or to pride of empire of which cruelty is ever the companion. For during some centuries now, either they have not known that the Donation of Constantine is spurious and forged, or else they themselves forged it, and their successors walking in the same way of deceit as their elders [\[See Latin page\]](#) have defended as true what they knew to be false, dishonoring the majesty of the pontificate, dishonoring the memory of ancient pontiffs, dishonoring the Christian religion, confounding everything with murders, disasters and crimes. They say the city of Rome is theirs, theirs the kingdom of Sicily and of Naples, [\[418\]](#) the whole of Italy, the Gauls, the Spains, the Germans, the Britons, indeed the whole West; for all these are contained in the instrument of the Donation itself. [\[419\]](#) So all these are yours, supreme pontiff? And it is your purpose to recover them all? To despoil all kings and princes of the West of their cities or compel them to pay you a yearly tribute, is that your plan?

I, on the contrary, think it fairer to let the princes despoil you of all the empire you hold. For, as I shall show, that Donation whence the supreme pontiffs will have their right derived was unknown equally to Sylvester and to Constantine.

But before I come to the refutation of the instrument of the Donation, which is their one defense, not only false but even stupid, the right order demands that I go further back. And first, I shall show that Constantine and Sylvester were not such men that the former would choose to give, would have the legal right to give, or would have it in his power to give those lands to another, or that the latter would be willing to accept them or could legally have done so. In the second place, if this were not so, though it is absolutely true and obvious, [I shall show that in fact] the latter did not receive nor the former give possession of what is said to have been granted, but that it always remained under the sway and empire of the Caesars. In the third place, [I shall show that] nothing was given to Sylvester by

Constantine, but to an earlier Pope (and Constantine had received baptism even before that pontificate), and that the grants were inconsiderable, [\[See Latin page\]](#) for the mere subsistence of the Pope. Fourth, that it is not true either that a copy of the Donation is found in the Decretum [of Gratian], or that it was taken from the History of Sylvester; for it is not found in it or in any history, and it is comprised of contradictions, impossibilities, stupidities, barbarisms and absurdities. Further, I shall speak of the pretended or mock donation of certain other Caesars. Then by way of redundancy I shall add that even had Sylvester taken possession, nevertheless, he or some other pontiff having been dispossessed, possession could not be resumed after such a long interval under either divine or human law. Last [I shall show] that the possessions which are now held by the supreme pontiff could not, in any length of time, be validated by prescription.

And so to take up the first point, let us speak first of Constantine, then of Sylvester.

It would not do to argue a public and quasi imperial case without more dignity of utterance than is usual in private cases. And so speaking as in an assembly of kings and princes, as I assuredly do, for this oration of mine will come into their hands, I choose to address an audience, as it were, face to face. I call upon you, kings and princes, for it is difficult for a private person to form a picture of a royal mind; I seek your thought, I search your heart, I ask your testimony. Is there any one of you who, had he been in Constantine's place, would have thought that he must set about giving to another out of pure generosity the city of Rome, his fatherland, the head of the world, the queen of states, the most powerful, the noblest and the most opulent of peoples, the victor of the nations, whose very form is sacred, and betaking himself thence to an humble little town, Byzantium; giving with Rome Italy, not a province but the mistress of provinces; giving the three Gauls; giving the two Spains; the Germans; the Britons; the whole West; depriving himself of one of the two eyes of his empire? That any one in possession of his senses would do this, I cannot be brought to believe.

What ordinarily befalls you that is more looked forward to, [\[See Latin page\]](#) more pleasing, more grateful, than for you to increase your empires and

kingdoms, and to extend your authority as far and wide as possible? In this, as it seems to me, all your care, all your thought, all your labor, night and day is expended. From this comes your chief hope of glory, for this you renounce pleasures; for this you subject yourselves to a thousand dangers; for this your dearest pledges, for this your own flesh you sacrifice with serenity. Indeed, I have neither heard nor read of any of you having been deterred from an attempt to extend his empire by loss of an eye, a hand, a leg, or any other member. Nay, this very ardor and this thirst for wide dominion is such that whoever is most powerful, him it thus torments and stirs the most. Alexander, not content to have traversed on foot the deserts of Libya, to have conquered the Orient to the farthest ocean, to have mastered the North, amid so much bloodshed, so many perils, his soldiers already mutinous and crying out against such long, such hard campaigns, seemed to himself to have accomplished nothing unless either by force or by the power of his name he should have made the West also, and all nations, tributary to him. I put it too mildly; he had already determined to cross the ocean, and if there was any other world, to explore it and subject it to his will. He would have tried, I think, last of all to ascend the heavens. Some such wish all kings have, even though not all are so bold. I pass over the thought how many crimes, how many horrors have been committed to attain and extend power, for brothers do not restrain their wicked hands from the stain of brothers' blood, nor sons from the blood of parents, nor parents from the blood of sons. Indeed, nowhere is man's recklessness apt to run riot further nor more viciously. And to your astonishment, you see the minds of old men no less eager in this than the minds of young men, childless men no less eager than parents, kings than usurpers.

But if domination is usually sought with such great resolution, how much greater must be the resolution to preserve it! For it is by no means so discreditable not to increase an empire as to impair it, nor is it so shameful not to annex another's kingdom to your own as for your own to be annexed to another's. And when [\[See Latin page\]](#) we read of men being put in charge of a kingdom or of cities by some king or by the people, this is not done in the case of the chief or the greatest portion of the empire, but in the case of the last and least, as it were, and that with the understanding that the recipient should always recognize the donor as his sovereign and himself as an agent.

Now I ask, do they not seem of a base and most ignoble mind who suppose that Constantine gave away the better part of his empire? I say nothing of Rome, Italy, and the rest, but the Gauls where he had waged war in person, where for a long time he had been sole master, where he had laid the foundations of his glory and his empire! A man who through thirst for dominion had waged war against nations, and attacking friends and relatives in civil strife had taken the government from them, who had to deal with remnants of an opposing faction not yet completely mastered and overthrown; who waged war with many nations not only by inclination and in the hope of fame and empire but by very necessity, for he was harassed every day by the barbarians; who had many sons, relatives and associates; who knew that the Senate and the Roman people would oppose this act; who had experienced the instability of conquered nations and their rebellions at nearly every change of ruler at Rome; who remembered that after the manner of other Caesars he had come into power, not by the choice of the Senate and the consent of the populace, but by armed warfare; what incentive could there be so strong and urgent that he would ignore all this and choose to display such prodigality?

They say, it was because he had become a Christian. Would he therefore renounce the best part of his empire? I suppose it was a crime, an outrage, a felony, to reign after that, and that a kingdom was incompatible with the Christian religion! Those who live in adultery, those who have grown rich by usury, those who possess goods which belong to another, they after baptism are wont to restore the stolen wife, the stolen money, the stolen goods. If this be your idea, Constantine, you must restore your cities to liberty, not change their master. But that did not enter into the [\[See Latin page\]](#) case; you were led to do as you did solely for the glory of your religion. As though it were more religious to lay down a kingdom than to administer it for the maintenance of religion! For so far as it concerns the recipients, that Donation will be neither honorable nor useful to them. But if you want to show yourself a Christian, to display your piety, to further the cause, I do not say of the Roman church, but of the Church of God, now of all times act the prince, so that you may fight for those who cannot and ought not to fight, so that by your authority you may safeguard those who are exposed to plots and injuries. To Nebuchadnezzar, to Cyrus, to Ahasuerus, and to many other princes, by the will of God, the mystery of the truth was revealed; but of none of them did God demand that he should resign his government, that

he should give away part of his kingdom, but only that he should give the Hebrews their liberty and protect them from their aggressive neighbors. This was enough for the Jews; it will be enough for the Christians also. You have become a Christian, Constantine? Then it is most unseemly for you now as a Christian emperor to have less sovereignty than you had as an infidel. For sovereignty is an especial gift of God, to which even the gentile sovereigns are supposed to be chosen by God.

But he was cured of leprosy! Probably, therefore, he would have wished to show his gratitude and give back a larger measure than he had received. Indeed! Naaman the Syrian, cured by Elisha, wished merely to present gifts, not the half of his goods, and would Constantine have presented the half of his empire? I regret to reply to this shameless story as though it were undoubted and historical, for it is a reflection of the story of Naaman and Elisha; just as that other story about the dragon is a reflection of the fabulous dragon of Bel.^[420] But yielding this point, is [\[See Latin page\]](#) there in this story any mention made of a “donation”? Not at all. But of this, more later.

He was cured of leprosy? He took on therefore a Christian spirit; he was imbued with the fear of God, with the love of God; he wished to honor him. Nevertheless I cannot be persuaded that he wished to give away so much; for, so far as I see, no one, either pagan, in honor of the gods, or believer, in honor of the living God, has resigned his empire and given it to priests. In sooth, of the kings of Israel none could be brought to permit his people to go, according to the former custom, to sacrifice at the temple in Jerusalem; for fear lest, moved by that solemn religious ceremony and by the majesty of the temple, they should return to the king of Judah from whom they had revolted. And how much more is Constantine represented to have done! And that you may not flatter yourself with the cure of leprosy, [let me say that] Jeroboam was the first one chosen by God to be king of Israel and indeed from a very low estate, which to my mind is more than being healed of leprosy; nevertheless he did not presume to entrust his kingdom to God. And will you have Constantine give to God a kingdom which he had not received from him, and that, too, when he would offend his sons (which was not the case with Jeroboam), humiliate his friends, ignore his relatives, injure his country, plunge everybody into grief, and forget his own interests!

But if, having been such a man as he was, he had been transformed as it were into another man, there would certainly not have been lacking those who would warn him, most of all his sons, his relatives, and his friends. Who does not think that they would have gone at once to the emperor? Picture them to yourself, when the purpose of Constantine had become known, trembling, hastening to fall with groans and tears at the feet of the prince, and saying:

“Is it thus that you, a father hitherto most affectionate toward your sons, despoil your sons, disinherit them, disown them? We do not complain of the fact that you choose to divest yourself of the best and largest part of the empire so much as we wonder at [\[See Latin page\]](#) it. But we do complain that you give it to others to our loss and shame. Why do you defraud your children of their expected succession to the empire, you who yourself reigned in partnership with your father? What have we done to you? By what disloyalty to you, to our country, to the Roman name or the majesty of the empire, are we deemed to deserve to be deprived of the chiefest and best part of our principality; that we should be banished from our paternal home, from the sight of our native land, from the air we are used to, from our ancient ties! Shall we leave our household gods, our shrines, our tombs, exiles, to live we know not where, nor in what part of the earth?

“And we, your kindred, your friends, who have stood so often with you in line of battle, who have seen brothers, fathers, sons, pierced and writhing under hostile sword, and have not been dismayed at the death of others, but were ourselves ready to seek death for your sake, why are we now deserted one and all by you! We who hold the public offices of Rome, who govern or are destined to govern the cities of Italy, the Gauls, the Spains, and the other provinces, are all of us to be deposed? Are all of us to be ordered into private life? Or will you compensate us elsewhere for this loss? And how can you, when such a large part of the world has been given to another? Will your majesty put the man who had charge of a hundred peoples over one? How could you have conceived such a plan? How is it that you have suddenly become

oblivious of your subjects, so that you have no consideration for your friends, nor your kindred, nor your sons? Would that it had been our lot, your Majesty, while your honor and your victory were unimpaired, to fall in battle, rather than to see this!

“You have the power, indeed, to do with your empire what you will, and even with us, one thing however excepted, which we will resist to the death; we will not give up the worship of the immortal gods,—just for the sake of a conspicuous example to others, that you may know how much that bounty of yours will be worth to the Christian religion. For if you do not give your empire to Sylvester, we are willing to be Christians with you, and many will imitate us. But if you do give it, not only will we not [\[See Latin page\]](#) endure to become Christians, but you will make the name hateful, detestable, execrable to us, and you will put us in such a position that at last you will pity our life and our death, nor will you accuse us, but only yourself, of obstinacy.”

Would not Constantine, unless we would have him totally devoid of humanity, if he were not moved of his own accord, have been moved by this speech? But if he had not been willing to listen to these men, would there not have been those who would oppose this act with both word and deed? Or would the Senate and the Roman people have thought that they had no obligation to do anything in a matter of such importance? Would it not have put forward some orator “distinguished in character and service,” as Virgil says, who would hold forth to Constantine as follows:

“Your Majesty, if you are heedless of your subjects and of yourself, nor care to give your sons an inheritance, nor your kindred riches, nor your friends honors, nor to keep your empire intact, the Senate and the Roman people at least cannot be heedless of its rights and its dignity. How come you to take such liberties with the Roman Empire, which has been built up, not from your blood, but from ours! Will you cut one body into two parts, and out of one kingdom make two kingdoms, two heads, two wills, and, as it were, reach out to two brothers swords with which to fight over their inheritance! We give to states which have deserved well of this city

the rights of citizenship, so that they may be Roman citizens; you take away from us the half of the empire, so that they will not know this city as their mother. In beehives, if two kings are born, we kill the weaker one; but in the hive of the Roman Empire, where there is one prince, and that the best, you think that another must be introduced, and that the weakest one, not a bee, but a drone. [\[421\]](#)

“We see a sore lack of prudence on your part, your Majesty. For what will happen, if either during your life or after your death, war should be waged by barbarian tribes against the part of the empire which you are alienating, or against the other, [\[See Latin page\]](#) which you leave for yourself? With what military force, with what resources can we go to meet them? Even now with the troops of the whole empire we have scarcely enough power; shall we have enough then? Or will this part be forever at peace with that? In my opinion it cannot be, for Rome will want to rule and the other part will not want to be subject. Nay, even in your lifetime, shortly, when the old officials are removed and new ones put in their places, when you withdraw to your kingdom and fare far forth and another is ruling here, will not all interests be different, that is, diverse and contrary? Usually when a kingdom is divided between two brothers, at once the hearts of the people also are divided, and war arises from within sooner than from foreign enemies. That that will happen in this empire, who does not see it? Or do you not know that it was chiefly on this ground that the patricians once said that they would rather die before the eyes of the Roman people than allow the motion to be carried that part of the Senate and part of the plebeians should be sent to live at Veii and that the Roman people should have two cities in common; for if in one city there were so many dissensions, how would it be in two cities? So in our time, if there are so many disorders in one empire, your own knowledge and your labors are a witness, how will it be in two empires!

“Come now, do you think that when you are engaged in wars, there will be men here willing or able to bear you aid? Those who will be in command of our soldiers and cities will always shrink from arms and warfare, as will he who appoints them. Indeed, will not either the Roman legions or the provinces themselves try to

despoil this man, so inexperienced in ruling and so inviting to violence, hoping that he will neither fight back nor seek revenge? By Hercules! I believe they will not remain in allegiance a single month, but immediately, at the first news of your departure they will rebel. What will you do? What plan will you follow when you are pressed with a twofold and even a manifold war? The nations which we have conquered we can scarcely hold; how can we withstand them if in addition we have war with free peoples?

[\[See Latin page\]](#)

“As for your interests, your Majesty, that is for you to see to. But this ought to concern us no less than you. You are mortal; the Empire of the Roman people ought to be immortal, and so far as in us lies, it will be, and not the Empire alone but respect for it as well. Shall we, forsooth, accept the government of those whose religion we despise; shall we, rulers of the world, serve this altogether contemptible being! When the city was captured by the Gauls the aged Romans did not suffer their beards to be stroked by the victors. Will all these men of senatorial, praetorian, tribunician, consular and triumphal rank now suffer those to rule them, upon whom as upon guilty slaves they themselves have heaped every kind of contumely and punishment! Will those men create magistrates, govern provinces, wage war, pass sentences of death upon us? Will the Roman nobility take wages under them, hope for honors and receive rewards at their hands? What greater, what deeper wound can we receive? Do not think, your Majesty, that the Roman blood has so degenerated as to endure this with equanimity and not deem it a thing to be avoided by fair means or foul. By my faith, not even our women would suffer it, but they would rather burn themselves with their dear children and their household gods, for Carthaginian women should not be braver than Roman.

“To be sure, your Majesty, if we had chosen you king, you would have a great measure of control over the Roman Empire indeed, yet not such that you could in the least diminish its greatness, for then we who should have made you king, by that same token would order you to abdicate your kingdom. How much less then could you divide the kingdom, alienate so many provinces, and deliver even

the capital of the kingdom over to a man who is a stranger and altogether base. We put a watch-dog over the sheepfold, but if he tries rather to act like a wolf, we either drive him out or kill him. Now will you, who have long been the watch-dog of the Roman fold and defended it, at the last in unprecedented manner turn into a wolf?

“But you must know, since you compel us to speak harshly in defense of our rights, that you have no right over the Empire of [\[See Latin page\]](#) the Roman people, for Caesar seized the supreme power by force; Augustus was the heir of his wrongdoing and made himself master by the ruin of the opposing factions; Tiberius, Gaius, Claudius, Nero, Galba, Otho, Vitellius, Vespasian, and the rest, in the same way or nearly so, made spoil of our liberty; and you also became ruler by expelling or killing others. I say nothing of your being born out of wedlock.

“Wherefore, to speak our mind, your Majesty; if you do not care to keep the government of Rome, you have sons, and by the law of nature, with our permission, also, and on our motion, you may substitute one of them in your place. If not, it is our purpose to defend the public honor and our personal dignity. For this is no less an act of violence against the Quirites than was once the rape of Lucretia, nor will there fail us a Brutus to offer himself to this people as a leader against Tarquinius for the recovery of liberty. We will draw our swords first upon those whom you are putting over us, and then upon you, as we have done against many emperors, and for lighter reasons.”

This would surely have prevailed on Constantine, unless we deem him made of stone or wood. And if the people would not have said this, it could be believed that they spoke among themselves and vented their rage in about these words. Let me go on a step and say that Constantine wished to benefit Sylvester, the one whom he would subject to the hatred and the swords of so many men that he, Sylvester, would scarcely have survived, I think, a single day. For it seemed that when he and a few others had been removed all trace of such a cruel outrage and insult would have been obliterated from the breasts of the Romans.

Let us suppose, however, if possible, that neither prayers, nor threats, nor any argument availed aught, and that still Constantine persisted and was not willing to yield through persuasion the position he had taken. Who would not acknowledge himself moved by the speech of Sylvester, that is, if the event had ever actually occurred? It would doubtless have been something like this:

[\[See Latin page\]](#)

“Most worthy prince and son, Caesar, though I cannot but like and embrace your piety, so abject and effusive, nevertheless you have fallen somewhat into error in offering gifts to God and immolating victims, and I am not at all surprised at it, for you are still a novice in the Christian service. As once it was not right for the priest to sacrifice every sort of beast and animal and fowl, so now he is not to accept every sort of gift. I am a priest and pontiff, and I ought to look carefully at what I permit to be offered on the altar, lest perchance there be offered, I do not say an unclean animal, but a viper or a serpent. And this is what you would do. But if it were your right to give a part of the Empire including Rome, queen of the world, to another than your sons, a thing I do not at all approve; if this people, if Italy, if the other nations, should suffer themselves to be willing to submit to the government of those whom they hate and whose religion, snared by the enticements of this world, they have hitherto spit upon,—an impossible supposition; if you nevertheless think I am to be given anything, my most loving son, I could not by any argument be brought to give you my assent, unless I were to be false to myself, to forget my station, and well-nigh deny my Lord Jesus. For your gifts, or if you wish, your payments, would tarnish and utterly ruin my honor and purity and holiness and that of all my successors, and would close the way to those who are about to come to the knowledge of the truth.

“Elisha was not willing, was he, to accept a reward when Naaman the Syrian was cured of the leprosy? Should I accept one when you are cured? He rejected presents; should I allow kingdoms to be given to me? He was unwilling to obscure the prophetic office; could I obscure the office of Christ, which I bear in me? But why

did he think that the prophetic office would be obscured by his receiving gifts? Doubtless because he might seem to sell sacred things, to put the gift of God out at usury, to want the patronage of men, to lower and lessen the worth of his benefaction. He preferred, therefore, to make princes and kings his beneficiaries rather than to be himself their beneficiary, or even to allow mutual benefactions. For, as says the Lord, 'It is more [\[See Latin page\]](#) blessed to give than to receive.'^[422] I am in the same case, only more so, whom the Lord taught, saying, 'Heal the sick, cleanse the lepers, raise the dead, cast out devils: freely ye have received, freely give.'^[423] Shall I commit such a disgrace, your Majesty, as not to follow the precepts of God; as to tarnish my glory? 'It were better,' says Paul, 'for me to die than that any man should make my glorying void.'^[424] Our glory is to honor our ministry in the sight of God, as Paul also said; 'I speak to you Gentiles, inasmuch as I am the apostle of the Gentiles, I magnify mine office.'^[425]

"Your Majesty, should even I be both an example and a cause for the apostasy of others, I, a Christian, a priest of God, pontiff of Rome, vicar of Christ? For how, indeed, will the blamelessness of priests remain untouched amid riches, magistracies, and the management of secular business? Do we renounce earthly possessions in order to attain them more richly, and have we given up our own property in order to possess another's and the public's? Shall we have cities, tributes, tolls? How then can you call us 'clergy' if we do this? Our portion, or our lot, which in Greek is called *kleros*, is not earthly, but celestial. The Levites, also clergy, were not allotted a portion with their brethren, and do you command us to take even our brothers' portion!

"What are riches and dominions to me who am commanded by the voice of the Lord not to be anxious for the morrow, and to whom he said; 'Lay not up for yourselves treasures upon earth, possess not gold nor silver nor money in your purses,'^[426] and 'It is harder for a rich man to enter into the kingdom of heaven, than for a camel to go through the eye of a needle.'^[427] Therefore he chose poor men as his ministers, and those who left all to follow him, and was himself

an example of poverty. Even so is the handling of riches and of money, not merely their possession and ownership, the enemy of uprightness. Judas alone, he that had the [\[See Latin page\]](#) purses and carried the alms, was a liar, and for the love of money, to which he had become accustomed, chided and betrayed his Master, his Lord, his God. So I fear, your Majesty, lest you change me from a Peter into a Judas.

“Hear also what Paul says: ‘We brought nothing into this world, and it is certain we can carry nothing out. And having food and raiment, let us be therewith content. But they that will be rich fall into temptation and a snare of the devil, and into many foolish and hurtful lusts, which drown men in destruction and perdition. For the love of money is the root of all evil, which while some coveted after, they erred from the faith, and pierced themselves through with many sorrows. But thou, O man of God, flee these things.’[\[428\]](#) And you command me, your Majesty, to accept what I ought to shun as poison!

“And consider besides, for prudence’ sake, your Majesty, what chance would there be in all this for divine service? To certain who complained that their destitute were neglected in the daily distribution, the apostles answered that it was not reason that they should leave the word of God, and serve tables.[\[429\]](#) Yet to feed widows, how different is that from exacting tolls, running the treasury, hiring soldiers, and engaging in a thousand other cares of this sort! ‘No man that warreth for God entangleth himself with the affairs of this life,’[\[430\]](#) says Paul. Did Aaron and others of the tribe of Levi take care of anything except the tabernacle of the Lord? And his sons, because they had put strange fire in their censers, were consumed by fire from heaven. And you order us to put the fire of worldly riches, forbidden and profane, in our sacred censers, that is, our priestly duties! Did Eleazar, did Phinehas, did the other priests and ministers, either of the tabernacle or of the temple, administer anything except what pertained to the divine service? I say did they administer, nay, could they have administered anything, if they wished to fulfil their own duty? And if they did not wish to, they would hear the curse of the Lord, saying, ‘Cursed be they that do the

work of the Lord [\[See Latin page\]](#) deceitfully.’^[431] And this curse, though it impends over all, yet most of all it impends over the pontiffs.

“Oh what a responsibility is the pontifical office! What a responsibility it is to be head of the church! What a responsibility to be appointed over such a great flock as a shepherd at whose hand is required the blood of every single lamb and sheep lost; to whom it is said, ‘If thou lovest me more than these, as thou sayest, feed my lambs.’ Again, ‘If thou lovest me, as thou sayest, feed my sheep.’ And a third time, ‘If thou lovest me, as thou sayest, feed my sheep.’^[432] And you order me, your Majesty, to shepherd also goats and swine, which cannot be herded by the same shepherd!

“What! you want to make me king, or rather Caesar, that is ruler of kings! When the Lord Jesus Christ, God and man, king and priest, affirmed himself king, hear of what kingdom he spoke: ‘My kingdom,’ he said, ‘is not of this world; if my kingdom were of this world, then would my servants fight.’^[433] And what was his first utterance and the oft-repeated burden of his preaching, but this: ‘Repent, for the kingdom of heaven is at hand.’^[434] ‘The kingdom of God is at hand for him for whom the kingdom of heaven is prepared.’ When he said this, did he not make clear that he had nothing to do with secular sovereignty? And not only did he not seek a kingdom of this sort, but when it was offered him, he would not accept it. For once when he learned that the people planned to take him and make him king, he fled to the solitude of the mountains. He not only gave this to us who occupy his place as an example to be imitated, but he taught us by precept: ‘The princes of the Gentiles exercise dominion over them, and they that are great exercise authority upon them. But it shall not be so among you; but whosoever will be great among you, let him be your minister; and whosoever will be chief among you, let him be your servant; even as the Son of man came not to be ministered unto, but to minister, and to give his life a ransom for many.’^[435]

[\[See Latin page\]](#)

“Know this, your Majesty; God formerly established judges over Israel, not kings; and he hated the people for demanding a king for themselves. And he gave them a king on account of the hardness of their hearts, but only because he permitted their rejection, which he revoked in the new law. And should I accept a kingdom, who am scarcely permitted to be a judge? ‘Or do ye not know,’ says Paul, ‘that the saints shall judge the world? and if the world shall be judged by you, you are not the ones to judge the smallest matters. Know ye not that we shall judge angels? How much more things that pertain to this life! If then ye have judgments of things pertaining to this life, set them to judge who are least in the church.’^[436] But judges merely gave judgment concerning matters in controversy, they did not levy tribute also. Should I do it, with the knowledge that when Peter was asked by the Lord, ‘Of whom do the kings of the earth take custom or tribute? of their own children or of strangers?’ and answered ‘Of strangers,’ the Lord said, ‘Then are the children free.’^[437] But if all men are my children, your Majesty, as they certainly are, then will all be free; nobody will pay anything. Therefore your Donation will be no good to me, and I shall get nothing out of it but labor which I am least able to do, as also I am least justified in doing it.

“Nay more, I should have to use my authority to shed blood in punishing offenders, in waging wars, in sacking cities, in devastating countries with fire and sword. Otherwise I could not possibly keep what you have given me. And if I do this am I a priest, a pontiff, a vicar of Christ? Rather I should hear him thunder out against me, saying, ‘My house shall be called of all nations the house of prayer, but ye have made it a den of thieves.’^[438] ‘I am not come into the world,’ said the Lord, ‘to judge the world, but to save it.’^[439] And shall I who have succeeded him be the cause of [\[See Latin page\]](#) men’s death, I to whom in the person of Peter it was said, ‘Put up again thy sword into his place, for all they that take the sword shall perish with the sword’?^[440] It is not permitted us even to defend ourselves with the sword, for Peter wished only to defend his Lord, when he cut off the servant’s ear. And do you command us to use the sword for the sake of either getting or keeping riches?

“Our authority is the authority of the keys, as the Lord said, ‘I will give unto thee the keys of the kingdom of heaven: and whatsoever thou shalt bind on earth shall be bound in heaven: and whatsoever thou shalt loose on earth shall be loosed in heaven.’^[441] ‘And the gates of hell shall not prevail against it.’^[442] Nothing can be added to this authority, nor to this dignity, nor to this kingdom. He who is not contented therewith, seeks something more from the devil, who dared even to say to the Lord, ‘I will give thee all the kingdoms of the world, if thou wilt fall to the earth and worship me.’^[443] Wherefore, your Majesty, by your leave let me say it, do not play the part of the devil to me by ordering Christ, that is, me, to accept the kingdoms of the world at your hand. For I prefer rather to scorn than to possess them.

“And, to speak of the unbelievers, future believers though, I hope, do not transform me for them from an angel of light into an angel of darkness. I want to win their hearts to piety, not impose a yoke upon their necks; to subject them to me with the sword of the word of God, not with a sword of iron, that they should not be made worse than they are, nor kick, nor gore me, nor, angered by my mistake, blaspheme the name of God. I want to make them my most beloved sons, not my slaves; to adopt them, not cast them out; to have them born again, not to seize them out of hand; to offer their souls a sacrifice to God, not their bodies a sacrifice to the devil. ‘Come unto me,’ says the Lord, ‘for I am meek and lowly in heart. Take my yoke upon you, and ye shall find rest for your souls. For my yoke is easy and my burden is light.’^[444]

“Finally, to come to an end at last, in this matter accept that [\[See Latin page\]](#) sentence of his, which he spoke as though to me and to you; ‘Render unto Caesar the things which are Caesar’s; and unto God, the things that are God’s.’^[445] Accordingly, therefore, your Majesty, you must not surrender the things that are yours, and I must not accept the things that are Caesar’s; nor will I ever accept them, though you offer them a thousand times.”

To this speech of Sylvester's, worthy of an apostolic hero, what could there be further for Constantine to bring out in opposition? Since the case stands thus, do not they who say that the Donation took place do violence to Constantine when they would have him rob his own family and tear the Roman Empire asunder? Do they not do violence to the Senate and the Roman people, to Italy, and to the whole West, which according to them allowed the government to be changed contrary to law and justice? Do they not do violence to Sylvester, who according to them accepted a gift not befitting a holy man? violence to the supreme pontificate, when they think that it would take charge of earthly kingdoms and rule over the Roman Empire? Verily, all this tends to show plainly that Constantine, in the face of so many obstacles, would never have thought of giving practically the whole Roman state to Sylvester, as they say he did.

Proceed to the next point; to make us believe in this "donation" which your document recites, something ought still to be extant concerning Sylvester's acceptance of it. There is nothing concerning it extant. But it is believable, you say, that he recognized this "donation." I believe so, too; that [if it was given] he not only recognized it, but sought it, asked for it, extorted it with his prayers; that is believable. But why do you reverse the natural conjecture and then say it is believable? For the fact that there is mention of the donation in the document of the deed is no reason for inferring that it was accepted; but on the contrary, the fact that there is no mention [anywhere] of an acceptance is reason for saying that there was no donation. So you have stronger proof [\[See Latin page\]](#) that Sylvester refused the gift than that Constantine wished to give it, and a benefaction is not conferred upon a man against his will. Indeed, we must suspect not so much that Sylvester refused the grants as that he tacitly disclosed that neither could Constantine legally make them nor could he himself legally accept.

O avarice, ever blind and ill-advised! Let us suppose that you may be able to adduce even genuine documents for the assent of Sylvester, not tampered with, authentic: even so, were the grants actually made which are found in such documents? Where is any taking possession, any delivery? For if Constantine gave a charter only, he did not want to befriend Sylvester, but to mock him. It is likely, you say, that any one who makes a grant, gives possession of it, also. See what you are saying; for it is certain

that possession was not given, and the question is whether the title was given! It is likely that one who did not give possession did not want to give the title either.

Or is it not certain that possession was never given? To deny it is the sheerest impudence. Did Constantine ever lead Sylvester in state to the Capitol amid the shouts of the assembled Quirites, heathen as they were? Did he place him on a golden throne in the presence of the whole Senate? Did he command the magistrates, each in the order of his rank, to salute their king and prostrate themselves before him? This, rather than the giving of some palace such as the Lateran, is customary in the creation of new rulers. Did he afterwards escort him through all Italy? Did he go with him to the Gauls? Did he go to the Spains? Did he go to the Germans, and the rest of the West? Or if they both thought it too onerous to traverse so many lands, to whom did they delegate such an important function, to represent Caesar in transferring possession and Sylvester in receiving it? Distinguished men, and men of eminent authority, they must have been: and nevertheless we do not know who they were. And how much weight there is here in these two words, *give* and *receive*! To pass by ancient instances, I do not remember to have seen any other procedure when any one was made lord of a city, a country, or a province; for we do not count possession as given [\[See Latin page\]](#) until the old magistrates are removed and the new ones substituted. If then Sylvester had not demanded that this be done, nevertheless the dignity of Constantine required that he show that he gave possession not in words but in fact, that he ordered his officers to retire and others to be substituted by Sylvester. Possession is not transferred when it remains in the hands of those who had it before, and the new master dares not remove them.

But grant that this also does not stand in the way, that, notwithstanding, we assume Sylvester to have been in possession, and let us say that the whole transaction took place though not in the customary and natural way. After Constantine went away, what governors did Sylvester place over his provinces and cities, what wars did he wage, what nations that took up arms did he subdue, through whom did he carry on this government? We know none of these circumstances, you answer. So! I think all this was done in the nighttime, and no one saw it at all!

Come now! Was Sylvester ever in possession? Who dispossessed him? For he did not have possession permanently, nor did any of his successors, at least till Gregory the Great, and even he did not have possession. One who is not in possession and cannot prove that he has been disseized certainly never did have possession, and if he says he did, he is crazy. You see, I even prove that you are crazy! Otherwise, tell who dislodged the Pope? Did Constantine himself, or his sons, or Julian, or some other Caesar? Give the name of the expeller, give the date, from what place was the Pope expelled first, where next, and so in order. Was it by sedition and murder, or without these? Did the nations conspire together against him, or which first? What! Did not one of them give him aid, not one of those who had been put over cities or provinces by Sylvester or another Pope? Did he lose everything in a single day, or gradually and by districts? Did he and his magistrates offer resistance, or did they abdicate at the first disturbance? What! Did not the victors use the sword on those dregs of humanity, whom they thought unworthy of the Empire, to revenge their outrage, to make sure of the newly won mastery, to [\[See Latin page\]](#) show contempt for our religion, not even to make an example for posterity? Did not one of those who were conquered take to flight at all? Did no one hide? Was no one afraid? O marvellous event! The Roman Empire, acquired by so many labors, so much bloodshed, was so calmly, so quietly both won and lost by Christian priests that no bloodshed, no war, no uproar took place; and not less marvellous, it is not known at all by whom this was done, nor when, nor how, nor how long it lasted! You would think that Sylvester reigned in sylvan shades, among the trees, not at Rome nor among men, and that he was driven out by winter rains and cold, not by men!

Who that is at all widely read, does not know what Roman kings, what consuls, what dictators, what tribunes of the people, what censors, what aediles were chosen? Of such a large number of men in times so long past, none escapes us. We know also what Athenian commanders there were, and Theban, and Lacedemonian; we know all their battles on land and sea. Nor are the kings of the Persians unknown to us; of the Medes; of the Chaldeans; of the Hebrews; and of very many others; nor how each of these received his kingdom, or held it, or lost it, or recovered it. But how the Roman Empire, or rather the Sylvestrian, began, how it ended, when, through whom, is not known even in the city of Rome itself. I ask whether you can adduce any witnesses of these events, any writers. None, you

answer. And are you not ashamed to say that it is likely that Sylvester possessed—even cattle, to say nothing of men!

But since you cannot [prove anything], I for my part will show that Constantine, to the very last day of his life, and thereafter all the Caesars in turn, did have possession [of the Roman Empire], so that you will have nothing left even to mutter. But it is a very difficult, and, I suppose, a very laborious task, forsooth, to do this! Let all the Latin and the Greek histories be unrolled, let the other authors who mention those times be brought in, and you will not find a single discrepancy among them on this point. Of a thousand witnesses, one may suffice; Eutropius, who saw Constantine, who saw the three sons of Constantine who were left [\[See Latin page\]](#) masters of the world by their father, and who wrote thus in connection with Julian, the son of Constantine's brother: "This Julian, who was subdeacon in the Roman church and when he became Emperor returned to the worship of the gods, seized the government, and after elaborate preparations made war against the Parthians; in which expedition I also took part."^[446] He would not have kept silent about the donation of the Western Empire [had it been made], nor would he have spoken as he did a little later about Jovian, who succeeded Julian: "He made with Sapor a peace which was necessary, indeed, but dishonorable, the boundaries being changed and a part of the Roman Empire being given up, a thing which had never before happened since the Roman state was founded; no, not even though our legions, at the Caudine [Forks] by Pontius Telesinus, and in Spain at Numantia, and in Numidia, were sent under the yoke, were any of the frontiers given up."^[447]

Here I would like to interrogate you, most recent, though deceased, Popes, and you, Eugenius, who live, thanks only to Felix.^[448] Why do you parade the Donation of Constantine with a great noise; and all the time, as though avengers of a stolen Empire, threaten certain kings and princes; and extort some servile confession or other from the Emperor when he is crowned, and from some other princes, such as the king of Naples and Sicily? None of the early Roman pontiffs ever did this, Damasus in the case of Theodosius, nor Syricius in the case of Arcadius, nor Anastasius in the case of Honorius, nor John in the case of Justinian, nor the other most holy Popes respectively in the case of the other most excellent Emperors: rather they always regarded Rome and Italy and the provinces I have named as belonging to the Emperors. And so, to say nothing of other monuments and

temples in the city of Rome, there are extant gold coins of Constantine's after he became a Christian, with inscriptions, [\[See Latin page\]](#) not in Greek, but in Latin letters, and of almost all the Emperors in succession. There are many of them in my possession with this inscription for the most part, under the image of the cross, "Concordia orbis [The Peace of the World]." What an infinite number of coins of the supreme pontiffs would be found if you ever had ruled Rome! But none such are found, neither gold nor silver, nor are any mentioned as having been seen by any one. And yet whoever held the government at Rome at that time had to have his own coinage: doubtless the Pope's would have borne the image of the Savior or of Peter.

Alas for man's ignorance! You do not see that if the Donation of Constantine is authentic nothing is left to the Emperor, the Latin Emperor, I mean. Ah, what an Emperor, what a Roman king, he would be, when if any one had his kingdom and had no other, he would have nothing at all! But if it is thus manifest that Sylvester did not have possession, that is, that Constantine did not give over possession, then there will be no doubt that he [Constantine], as I have said, did not give even the right to possess. That is, unless you say that the right was given, but that for some reason possession was not transferred. In that case he manifestly gave what he knew would never in the least exist; he gave what he could not transfer; he gave what could not come into the possession of the recipient until after it was nonexistent; he gave a gift which would not be valid for five hundred years, or never would be valid. But to say or to think this is insanity.

But it is high time, if I am not to be too prolix, to give the adversaries' cause, already struck down and mangled, the mortal blow and to cut its throat with a single stroke. Almost every history worthy of the name speaks of Constantine as a Christian from boyhood, with his father Constantius, long before the pontificate of Sylvester; as, for instance, Eusebius, author of the Church History, which Rufinus, himself a great scholar, translated into Latin, adding two books on his own times. [\[449\]](#) Both of these [\[See Latin page\]](#) men were nearly contemporary with Constantine. Add to this also the testimony of the Roman pontiff who not only took part, but the leading part in these events, who was not merely a witness but the prime mover, who narrates, not another's doings, but his own. I refer to Pope Melchiades, Sylvester's immediate predecessor. He says: "The church reached the point

where not only the nations, but even the Roman rulers who held sway over the whole world, came together into the faith of Christ and the sacraments of the faith. One of their number, a most devout man, Constantine, the first openly to come to belief in the Truth, gave permission to those living under his government, throughout the whole world, not only to become Christians, but even to build churches, and he decreed that landed estates be distributed among these. Finally also the said ruler bestowed immense offerings, and began the building of the temple which was the first seat of the blessed Peter, going so far as to leave his imperial residence and give it over for the use of the blessed Peter and his successors.”^[450] You see, incidentally, that Melchiades does not say that anything was given by Constantine except the Lateran palace, and landed estates, which Gregory mentions very frequently in his register. Where are those who do not permit us to call into question whether the Donation of Constantine is valid, when the “donation” both antedated Sylvester and conferred private possessions alone?

[\[See Latin page\]](#)

But though it is all obvious and clear, yet the deed of gift itself, which those fools always put forward, must be discussed.

And first, not only must I convict of dishonesty him who tried to play Gratian and added sections to the work of Gratian, but also must convict of ignorance those who think a copy of the deed of gift is contained in Gratian; for the well-informed have never thought so, nor is it found in any of the oldest copies of the Decretum. And if Gratian had mentioned it anywhere, he would have done so, not where they put it, breaking the thread of the narrative, but where he treats of the agreement of Louis [the Pious]. Besides, there are two thousand passages in the Decretum which forbid the acceptance of this passage; for example, that where the words of Melchiades, which I have cited above, are given. Some say that he who added this chapter [the Donation of Constantine] was called Palea,^[451] either because that was his real name or because what he added of his own, compared with Gratian, is as straw [palea] beside grain. However that may be, it is monstrous to believe that the compiler of the Decretum either did not know what was interpolated by this man, or esteemed it highly and held it for genuine. Good! It is enough! We have won! First, because Gratian

does not say what they lyingly quote; and more especially because on the contrary, as can be seen in innumerable passages, he denies and disproves it; and last, because they bring forward only a single unknown individual, of not the least authority, so very stupid as to affix to Gratian what cannot be harmonized with his other statements. This then is the author you bring forward? On his sole testimony you rely? His charter, in a matter of such importance, you recite as confirmation against hundreds of kinds of proof? But I should have expected you to show gold seals, marble inscriptions, a thousand authors.

But, you say, Palea himself adduces his author, shows the [\[See Latin page\]](#) source of his narrative, and cites Pope Gelasius and many bishops as witnesses; it is, he says, “from the Acts of Sylvester (which the blessed Pope Gelasius in the Council of the Seventy Bishops recounts as read by the catholic, and in accordance with ancient usage many churches he says follow this example) which reads: ‘Constantine ..., etc.’”^[452] Considerably earlier, where books to be read and books not to be read are treated, he had said also; “The Acts of the blessed Sylvester, chief priest, though we know not the name of him who wrote it, we know to be read by many of the orthodox of the city of Rome, and in accordance with ancient usage the churches follow this example.”^[453] Wonderful authority this, wonderful evidence, irrefutable proof! I grant you this, that Gelasius in speaking of the Council of the Seventy Bishops said that. But did he say this, that the deed of gift is to be read in the Acts of the most blessed Sylvester? He says, indeed, only that the Acts of Sylvester are read, and that in Rome, and that many other churches follow her authority. I do not deny this, I concede it, I admit it, I also stand up with Gelasius as a witness to it. But what advantage is this to you, except that you may be shown to have deliberately lied in adducing your witnesses? The name of the man who interpolated this [“Donation” of yours] is not known, and he is the only one who says this [that the Donation is in the Acts of Sylvester]; the name of the man who wrote the history of Sylvester is not known, and he is the only one cited as witness, and that erroneously. And good men and prudent as you are, you think this is enough and more than enough evidence for such an important transaction! Well! how your judgment differs from mine! Even if this grant were contained in the Acts of Sylvester, I should not think it was to be considered genuine, for that history is not history, but fanciful and most

shameful fiction, as I shall later show; nor does any one else of any authority whatever make mention of this grant. And [\[See Latin page\]](#) even James of Voragine, though as an archbishop disposed to favor the clergy, yet in his Acts of the Saints^[454] preserved silence on the Donation of Constantine as fictitious and not fit to figure in the Acts of Sylvester; a conclusive judgment, in a way, against those, if there were any, who would have committed it to writing.

But I want to take the forger himself, truly a “straw” man without wheat, by the neck, and drag him into court. What do you say, you forger? Whence comes it that we do not read this grant in the Acts of Sylvester? This book, forsooth, is rare, difficult to get, not owned by the many but rather kept as the Fasti once were by the pontifices, or the Sibylline books by the Decemvirs! It was written in Greek, or Syriac, or Chaldee! Gelasius testifies that it was read by many of the orthodox; Voragine mentions it; we also have seen thousands of copies of it, and written long ago; and in almost every cathedral it is read when Sylvester’s Day comes around.^[455] Yet nevertheless no one says that he has read there what you put in it; no one has heard of it; no one has dreamt of it. Or is there perhaps some other history of Sylvester? And what can that be? I know no other, nor do I understand that any other is referred to by you, for you speak of the one which Gelasius says is read in many churches. In this, however, we do not find your grant. But if it is not found in the Life of Sylvester, why do you declare that it is? How did you dare to jest in a matter of such importance, and to make sport of the cupidity of silly men?

But I am foolish to inveigh against the audacity of this [forger], instead of inveighing against the insanity of those who give him credence. If any one should say that this had been recorded for remembrance among the Greeks, the Hebrews, the barbarians, would you not bid him name his author, produce his book, and the passage, to be explained by a reliable translator, before you would believe it? But now your own language, and a [\[See Latin page\]](#) very well-known book are involved, and either you do not question such an incredible occurrence, or when you do not find it written down you have such utter credulity as to believe that it is written down and authentic! And, satisfied with this title, you move heaven and earth, and, as though no doubt existed, you pursue with the terrors of war and with other threats those who do not believe you! Blessed Jesus, what power, what divinity

there is in Truth, which unaided defends itself without any great struggle from all falsehoods and deceits; so that not undeservedly, when contention had arisen at the court of king Darius as to what was most powerful, and one said one thing and another another, the palm was awarded to Truth.^[456]

Since I have to do with priests and not with laymen, I suppose I must seek ecclesiastical precedents. Judas Maccabaeus, when he had sent ambassadors to Rome and obtained a friendly alliance from the Senate, took pains to have the terms of the alliance engraved on brass and carried to Jerusalem. I pass by the stone tables of the Decalogue, which God gave to Moses. And this Donation of Constantine, so magnificent and astounding, cannot be proved by any copies, in gold, in silver, in brass, in marble, or even in books, but only, if we believe it, on paper, or parchment. According to Josephus, Jubal, the inventor of music, when the elders expressed the opinion that the world was to be destroyed, once by water, and again by fire, inscribed his teaching on two columns, one of brick against the fire, and one of stone against the flood, which columns still remained at the time of Josephus, as he himself writes, so that his benefaction to men might always continue. And among the Romans, while still rustic and country bred, when writing was inadequate and rare, the laws of the Twelve Tables nevertheless were engraved on brass, and though the city was stormed and burned by the Gauls they were afterwards found unharmed. Thus careful foresight overcomes the two mightiest forces known to man, namely, long lapse ^[See Latin page] of time and the violence of fortune. Yet Constantine signed a donation of the world on paper alone and with ink, though the very inventor of the fabulous story makes him say that he thought there would not be lacking those who with unholy greed would set aside this Donation! Do you have this fear, Constantine, and do you take no precaution lest those who would snatch Rome from Sylvester should also steal the charter?

Why does Sylvester do nothing for himself? Does he leave everything thus to Constantine? Is he so careless and lazy in such an important matter? Does he not look ahead at all for himself, for his church, for posterity? See to whom you commit the administration of the Roman Empire; in the midst of such an important transaction, fraught with so much either of gain or of peril, he goes sound asleep! For let the charter ever be lost, he will not be able, at least as time goes on, to prove the granting of the “privilege.”^[457]

“The page of the privilege” this crazy man calls it [i.e., the Donation of Constantine]. And do you (let me controvert him as though he were present) call the gift of the earth a “privilege”; do you want it written thus in the document; and do you want Constantine to use that kind of language? If the title is ridiculous, what shall we think the rest of it is?

“The Emperor Constantine the fourth day after his baptism conferred this privilege on the pontiff of the Roman church, that in the whole Roman world priests should regard him as their head, as judges do the king.” This sentence is part of the History [Life] of Sylvester, ^[458] and it leaves no doubt where [nor why] the document gets its title “privilege.” But, in the manner of those who fabricate lies, he begins with the truth for the purpose of winning confidence in his later statements, which are false, as Sinon says in Virgil:

[\[See Latin page\]](#)

“... Whate’er
My fate ordains, my words shall be sincere:
I neither can nor dare my birth disclaim;
Greece is my country, Sinon is my name.”^[459]

This first; then he put in his lies. So our Sinon does here; for when he had begun with the truth, he adds:

“In this privilege, among other things, is this: ‘We—together with all our satraps and the whole Senate and the nobles also, and all the people subject to the government of the Roman church^[460]—considered it advisable that, as the blessed Peter is seen to have been constituted vicar of God on the earth, so the pontiffs who are the representatives of that same chief of the apostles, should obtain from us and our Empire the power of a supremacy greater than the clemency of our earthly imperial serenity is seen to have conceded to it.’”

O thou scoundrel, thou villain! The same history [the Life of Sylvester] which you allege as your evidence, says that for a long time none of

senatorial rank was willing to accept the Christian religion, and that Constantine solicited the poor with bribes to be baptized. And you say that within the first days, immediately, the Senate, the nobles, the satraps, as though already Christians, with the Caesar passed decrees for the honoring of the Roman church! What! How do you want to have satraps come in here? Numskull, blockhead! Do the Caesars speak thus; are Roman decrees usually drafted thus? Whoever heard of satraps being mentioned in the councils of the Romans?^[461] I do not remember ever to have read of any Roman satrap being mentioned, or even of a satrap in any of the Roman provinces. But this fellow ^[See Latin page] speaks of the Emperor's satraps, and puts them in before the Senate, though all honors, even those bestowed upon the ruling prince, are decreed by the Senate alone, or with the addition "and the Roman people." Thus we see carved on ancient stones or bronze tablets or coins two letters, "S. C.," that is "By decree of the Senate," or four, "S. P. Q. R.," that is, "The Senate and the Roman People." And according to Tertullian, when Pontius Pilate had written to Tiberius Caesar and not to the Senate concerning the wonderful deeds of Christ, inasmuch as magistrates were supposed to write concerning important matters to the Senate, the Senate gave way to spite and opposed Tiberius' proposal that Jesus be worshipped as a God, merely on account of its secret anger at the offense to senatorial dignity.^[462] And, to show how weighty was the authority of the Senate, Jesus did not obtain divine worship.

What now! Why do you say "nobles" ["optimates"]? Are we to understand that these are leading men in the republic; then why should they be mentioned when the other magistrates are passed by in silence? Or are they the opposite of the "popular" party which curries favor with the people; the ones who seek and champion the welfare of every aristocrat and of the "better" elements, as Cicero shows in one of his orations? Thus we say that Caesar before the overthrow of the republic had been a member of the "popular" party, Cato of the "optimates." The difference between them Sallust explained. But the "optimates" are not spoken of as belonging to the [Emperor's] council, any more than the "popular" party, or other respectable men are.

But what wonder that the "optimates" belonged to the council, when, if we believe this fellow, "all the people," and the people "subject to the Roman church" at that, acted officially with the Senate and the Caesar!^[463]

And what people are these? The Roman [\[See Latin page\]](#) people? But why not say the Roman people, rather than the “people subject”? What new insult is this to the Quirites of whom the great poet sings:

“Do thou, O Roman, take care to rule the peoples with imperial sway!”[\[464\]](#)

Can those who rule other peoples, themselves be called a subject people? It is preposterous! For in this, as Gregory in many letters testifies, the Roman ruler differs from the others, that he alone is ruler of a free people. But be this as it may. Are not other peoples also subject? Or do you mean others also? How could it be brought to pass in three days that all the people subject to the government of the Roman church gave assent to that decree? Though did every Tom, Dick, and Harry give his judgment? What! would Constantine, before he had subjected the people to the Roman pontiff, call them subject? How is it that those who are called subjects are said to have been in authority in the making of the decree? How is it that they are said to have decreed this very thing, that they should be subject and that he to whom they are already subject should have them as his subjects? What else do you do, you wretch, other than admit that you have the will to commit forgery, but not the ability?

“Choosing that same prince of the apostles, or his vicars, to be our constant intercessors with God. And, to the extent of our earthly imperial power, we have decreed that his holy Roman church shall be honored with veneration: and that more than our empire and earthly throne, the most sacred seat of the blessed Peter shall be gloriously exalted; we giving to it power and glory, and dignity, and vigor and honor imperial.”

Come back to life for a little while, Firmianus Lactantius, stop this ass who brays so loudly and outrageously. So delighted is he with the sound of swelling words, that he repeats the same terms [\[See Latin page\]](#) and reiterates what he has just said. Is it thus that in your age the secretaries of the Caesars spoke, or even their grooms? Constantine chose them not “as his intercessors” but “to be his intercessors.” The fellow inserted that “to be”

[esse] so as to get a more elegant rhythm. A fine reason! To speak barbarously so that your speech may run along more gracefully, as if indeed, anything can be graceful in such filthiness. “Choosing the prince of the apostles, or his vicars”: you do not choose Peter, and then his vicars, but either him, excluding them, or them, excluding him.^[465] And he calls the Roman pontiffs “vicars” of Peter, either as though Peter were living, or as though they were of lower rank than was Peter. And is not this barbarous; “from us and our empire”?^[466] As if the empire had a mind to give grants, and power! Nor was he content to say “should obtain,” without also saying “conceded,” though either one would have sufficed. And that “constant intercessors,”^[466] is very elegant indeed! Doubtless he wants them “constant” so that they may not be corrupted by money nor moved by fear. And “earthly imperial power”; two adjectives without a conjunction. And “be honored with veneration”: and “clemency of our imperial serenity”;^[467] it smacks of Lactantian eloquence to speak of “serenity” and “clemency,” instead of grandeur and majesty, when the power of the Empire is concerned! And how inflated he is with puffed-up pride; as in that phrase “gloriously exalted” by “glory, and power, and dignity, and vigor, and imperial honor”! This seems to be taken from the Apocalypse, where it says, “Worthy is the Lamb that was slain, to receive power, and divinity and wisdom, and strength, and honor and blessing.”^[468] Frequently, as will be shown later, Constantine is made to arrogate to himself the titles of God, and to try [\[See Latin page\]](#) to imitate the language of the sacred scriptures, which he had never read.

“And we ordain and decree that he shall have the supremacy as well over the four seats, Alexandria, Antioch, Jerusalem, and Constantinople, as also over all the churches of God in the whole earth. And the pontiff also, who at the time shall be at the head of the holy Roman church itself, shall be more exalted than, and chief over, all the priests of the whole world; and, according to his judgment everything which is to be provided for the service of God, and for the faith or the stability of the Christians is to be administered.”

I will not speak here of the barbarisms in [the forger's] language when he says "chief over the priests" instead of chief of the priests; when he puts in the same sentence "extiterit" and "existat" [confusing meanings, moods and tenses]; when, having said "in the whole earth," he adds again "of the whole world," as though he wished to include something else, or the sky, which is part of the world, though a good part of the earth even was not under Rome; when he distinguishes between providing for "the faith" of Christians and providing for their "stability," as though they could not coexist;^[469] when he confuses "ordain" and "decree," and when, as though Constantine had not already joined with the rest in making the decree, he has him now ordain it, and as though he imposes a punishment, decree [confirm] it, and confirm it together with the people. [That, I pass by.] But what Christian could endure this [other thing], and not, rather, critically and severely reprove a Pope who endures it, and listens to it willingly and retails it; namely, that the Roman See, though it received its primacy from Christ, as the Eighth Synod declared according to the testimony of Gratian and many of the Greeks, [\[See Latin page\]](#) should be represented as having received it from Constantine, hardly yet a Christian, as though from Christ? Would that very modest ruler have chosen to make such a statement, and that most devout pontiff to listen to it? Far be such a grave wrong from both of them!

How in the world—this is much more absurd, and impossible in the nature of things—could one speak of Constantinople as one of the patriarchal sees, when it was not yet a patriarchate, nor a see, nor a Christian city, nor named Constantinople, nor founded, nor planned! For the "privilege" was granted, so it says, the third day after Constantine became a Christian; when as yet Byzantium, not Constantinople, occupied that site. I am a liar if this fool does not confess as much himself. For toward the end of the "privilege" he writes:

"Wherefore we have perceived it to be fitting that our empire and our royal power should be transferred in the regions of the East; and that in the province of Bizantia [*sic*], in the most fitting place, a city should be built in our name; and that our empire should there be established."

But if he was intending to transfer the empire, he had not yet transferred it; if he was intending to establish his empire there, he had not yet established it; if he was planning to build a city, he had not yet built it. Therefore he could not have spoken of it as a patriarchal see, as one of the four sees, as Christian, as having this name, nor as already built. According to the history [the Life of Sylvester] which Palea cites as evidence, he had not yet even thought of founding it. And this beast, whether Palea or some one else whom Palea follows, does not notice that he contradicts this history, in which it is said that Constantine issued the decree concerning the founding of the city, not on his own initiative, but at a command received in his sleep from God, not at Rome but at Byzantium, not within a few days [of his conversion] but several years after, and that he learned its name by revelation in a dream. ^[470] Who then does not see that the man who [\[See Latin page\]](#) wrote the “privilege” lived long after the time of Constantine, and in his effort to embellish his falsehood forgot that earlier he had said that these events took place at Rome on the third day after Constantine was baptized? So the trite old proverb applies nicely to him, “Liars need good memories.”

And how is it that he speaks of a province of “Byzantia,” when it was a town, Byzantium by name? The place was by no means large enough for the erection of so great a city; for the old city of Byzantium was included within the walls of Constantinople. And this man says the [new] city is to be built on the most fitting place in it! Why does he choose to put Thrace, in which Byzantium lies, in the East, when it lies to the north? I suppose Constantine did not know the place which he had chosen for the building of the city, in what latitude it was, whether it was a town or a province, nor how large it was!

“On the churches of the blessed apostles Peter and Paul, for the providing of the lights, we have conferred landed estates of possessions, and have enriched them with different objects; and through our sacred imperial mandate, we have granted them of our property in the east as well as in the west; and even in the north and in the southern quarter; namely, in Judea, Greece, Asia, Thrace, Africa and Italy and the various islands; under this condition indeed, that all shall be administered by the hand of our most blessed father the supreme pontiff, Sylvester, and his successors.”

O you scoundrel! Were there in Rome churches, that is, temples, dedicated to Peter and Paul? Who had constructed them? Who would have dared to build them, when, as history tells us, the Christians had never had anything but secret and secluded meeting-places? And if there had been any temples at Rome dedicated to these apostles, they would not have called for such great lights as these to be set up in them; they were little chapels, not sanctuaries; little shrines, not temples; oratories in private houses, not public places of worship. So there was no need to care for the temple lights, before the temples themselves were provided.

[\[See Latin page\]](#)

And what is this that you say? You make Constantine call Peter and Paul blessed, but Sylvester, still living, “most blessed”; and call his own mandate, pagan as he had been but a little while before, “sacred”! Is so much to be donated “for the providing of the lights” that the whole world would be impoverished? And what are these “landed estates,” particularly “landed estates of possessions”? The phrase “possessions of landed estates” is good usage; “landed estates of possessions” is not. You give landed estates, and you do not explain which landed estates. You have enriched “with different objects,” and you do not show when nor with what objects. You want the corners of the earth to be administered by Sylvester, and you do not explain how they are to be administered. You say these were granted earlier? Then why do you say that you have now begun to honor the Roman church, and to grant it a “privilege”? Do you make the grant now; do you enrich it now? Then why do you say “we have granted” and “we have enriched”? What are you talking about; what is in your mind, you beast? (I am speaking to the man who made up the story, not to that most excellent ruler, Constantine.)

But why do I ask for any intelligence in you, any learning, you who are not endowed with any ability, with any knowledge of letters, who say “lights” for lamps, and “be transferred in the regions of the east” instead of “be transferred to the regions of the east,” as it should be? And what next? Are these “quarters” of yours really the four quarters of the world? What do you count as eastern? Thrace? It lies to the north, as I have said. Judea? It looks rather toward the south, for it is next to Egypt. And what do you count as western? Italy? But these events occurred in Italy and no one living there calls it western; for we say the Spains are in the west; and Italy extends, on

one hand to the south and on the other to the north, rather than to the west. What do you count as north? Thrace? You yourself choose to put it in the east. Asia? This alone includes the whole east, but it includes the north also, like Europe. What do you count as southern? Africa, of course. But why do you not specify some province? Perhaps you think even the Ethiopians were subject to the Roman [\[See Latin page\]](#) Empire! And anyway Asia and Africa do not come into consideration when we divide the earth into four parts and enumerate the countries of each, but when we divide it into three, Asia, Africa, Europe; that is, unless you say Asia for the province of Asia, and Africa for that province which is next to the Gaetuli, and I do not see why they, especially, should be mentioned.

Would Constantine have spoken thus when he was describing the four quarters of the earth? Would he have mentioned these countries, and not others? Would he have begun with Judea, which is counted as a part of Syria and was no longer “Judea” after the destruction of Jerusalem (for the Jews were driven away and almost exterminated, so that, I suppose, scarcely one then remained in his own country, but they lived among other nations)? Where then was Judea? It was no longer called Judea, and we know that now that name has perished from the earth. Just as after the driving out of the Canaanites the region ceased to be called Canaan and was renamed Judea by its new inhabitants, so when the Jews were driven out and mixed tribes inhabited it, it ceased to be called Judea.

You mention Judea, Thrace, and the islands, but you do not think of mentioning the Spains, the Gauls, the Germans, and while you speak of peoples of other tongues, Hebrew, Greek, barbarian, you do not speak of any of the provinces where Latin is used. I see: you have omitted these for the purpose of including them afterwards in the Donation. And why were not these many great provinces of the East sufficient to bear the expense of providing the lights without the rest of the world contributing!

I pass over the fact that you say these are granted as a gift, and therefore not, as our friends say, in payment for the cure of the leprosy. Otherwise,—well, any one who classes a gift as a payment is ill-bred.

“To the blessed Sylvester, his [Peter’s] vicar, we by this present do give our imperial Lateran palace, then the diadem, that is, the

crown of our head, and at the same time the tiara and also the shoulder-band,—that is, the strap that usually surrounds [\[See Latin page\]](#) our imperial neck; and also the purple mantle and scarlet tunic, and all the imperial raiment; and the same rank as those presiding over the imperial cavalry; conferring also on him the imperial scepters, and at the same time all the standards and banners and the different imperial ornaments, and all the pomp of our imperial eminence, and the glory of our power.

“And we decree also, as to these men of different rank, the most reverend clergy who serve the holy Roman church, that they have that same eminence of distinguished power and excellence, by the glory of which it seems proper for our most illustrious Senate to be adorned; that is, that they be made patricians, consuls,—and also we have proclaimed that they be decorated with the other imperial dignities. And even as the imperial militia stands decorated, so we have decreed that the clergy of the holy Roman church be adorned. And even as the imperial power is ordered with different offices, of chamberlains, indeed, and door-keepers and all the bed-watchers, so we wish the holy Roman church also to be decorated. And, in order that the pontifical glory may shine forth most fully, we decree also that the holy clergy of this same holy Roman church may mount mounts adorned with saddle-cloths and linens, that is, of the whitest color; and even as our Senate uses shoes with felt socks, that is, they [the clergy] may be distinguished by white linen, and that the celestial [orders] may be adorned to the glory of God, just as the terrestrial are adorned.”

O holy Jesus! This fellow, tumbling phrases about in his ignorant talk,—will you not answer him from a whirlwind? Will you not send the thunder? Will you not hurl avenging lightnings at such great blasphemy? Will you endure such wickedness in your household? Can you hear this, see this, let it go on so long and overlook it? But you are long-suffering and full of compassion. Yet I fear lest this your long-suffering may rather be wrath and condemnation, such as it was against those of whom you said, “So I gave them up unto their own hearts’ lust: and they walked [\[See Latin page\]](#) in their own counsels,”^[471] and elsewhere, “Even as they did not like to retain me

in their knowledge, I gave them over to a reprobate mind, to do those things which are not convenient.”^[472] Command me, I beseech thee, O Lord, that I may cry out against them, and perchance they may be converted.

O Roman pontiffs, the model of all crimes for other pontiffs! O wickedest of scribes and Pharisees, who sit in Moses’ seat and do the deeds of Dathan and Abiram! Will the raiment, the habiliments, the pomp, the cavalry, indeed the whole manner of life of a Caesar thus befit the vicar of Christ? What fellowship has the priest with the Caesar? Did Sylvester put on this raiment; did he parade in this splendor; did he live and reign with such a throng of servants in his house? Depraved wretches! They did not know that Sylvester ought to have assumed the vestments of Aaron, who was the high priest of God, rather than those of a heathen ruler.

But this must be more strongly pressed elsewhere. For the present, however, let us talk to this sycophant about barbarisms of speech; for by the stupidity of his language his monstrous impudence is made clear, and his lie.

“We give,” he says, “our imperial Lateran palace”: as though it was awkward to place the gift of the palace here among the ornaments, he repeated it later where gifts are treated. “Then the diadem;” and as though those present would not know, he interprets, “that is, the crown.” He did not, indeed, here add “of gold,” but later, emphasizing the same statements, he says, “of purest gold and precious gems.” The ignorant fellow did not know that a diadem was made of coarse cloth or perhaps of silk; whence that wise and oft-repeated remark of the king, who, they say, before he put upon his head the diadem given him, held it and considered it long and exclaimed, “O cloth more renowned than happy! If any one knew you through and through, with how many anxieties and dangers and miseries you are fraught, he would not [\[See Latin page\]](#) care to pick you up; no, not even if you were lying on the ground!” This fellow does not imagine but that it is of gold, with a gold band and gems such as kings now usually add. But Constantine was not a king, nor would he have dared to call himself king, nor to adorn himself with royal ceremony. He was Emperor of the Romans, not king. Where there is a king, there is no republic. But in the republic there were many, even at the same time, who were “imperatores” [generals]; for Cicero frequently writes thus, “Marcus Cicero, imperator, to

some other imperator, greeting”: though, later on, the Roman ruler, as the highest of all, is called by way of distinctive title the Emperor.

“And at the same time the tiara and also the shoulder-band,—that is the strap that usually surrounds our imperial neck.” Who ever heard “tiara” [phrygium] used in Latin? You talk like a barbarian and want it to seem to me to be a speech of Constantine’s or of Lactantius’. Plautus, in the *Menaechmi*, applied “phrygionem” to a designer of garments; Pliny calls clothes embroidered with a needle “phrygiones” because the Phrygians invented them; but what does “phrygium” mean? You do not explain this, which is obscure; you explain what is quite clear. You say the “shoulder-band” is a “strap,” and you do not perceive what the strap is, for you do not visualize a leather band, which we call a strap, encircling the Caesar’s neck as an ornament. [It is of leather], hence we call harness and whips “straps”: but if ever gold straps are mentioned, it can only be understood as applying to gilt harness such as is put around the neck of a horse or of some other animal. But this has escaped your notice, I think. So when you wish to put a strap around the Caesar’s neck, or Sylvester’s, you change a man, an Emperor, a supreme pontiff, into a horse or an ass.

“And also the purple mantle and scarlet tunic.” Because Matthew says “a scarlet robe,” and John “a purple robe,”^[473] this fellow tries to join them together in the same passage. But if they are the same color, as the Evangelists imply, why are you not content, as they were, to name either one alone; unless, like ignorant folk today, you use “purple” for silk goods of a whitish color? The [\[See Latin page\]](#) “purple” [pupura], however, is a fish in whose blood wool is dyed, and so from the dye the name has been given to the cloth, whose color can be called red, though it may rather be blackish and very nearly the color of clotted blood, a sort of violet. Hence by Homer and Virgil blood is called purple, as is porphyry, the color of which is similar to amethyst; for the Greeks call purple “porphyra.” You know perhaps that scarlet is used for red; but I would swear that you do not know at all why he makes it “coccineum” when we say “coccum,” or what sort of a garment a “mantle” [chlamys] is.

But that he might not betray himself as a liar by continuing longer on the separate garments, he embraced them all together in a single word, saying, “all the imperial raiment.” What! even that which he is accustomed to wear

in war, in the chase, at banquets, in games? What could be more stupid than to say that all the raiment of the Caesar befits a pontiff!

But how gracefully he adds, “and the same rank as those presiding over the imperial cavalry.” He says “seu” [“or” for “and”].^[474] He wishes to distinguish between these two in turn, as if they were very like each other, and slips along from the imperial raiment to the equestrian rank, saying—I know not what! He wants to say something wonderful, but fears to be caught lying, and so with puffed cheeks and swollen throat, he gives forth sound without sense.

“Conferring also on him the imperial sceptres.” What a turn of speech! What splendor! What harmony! What are these imperial sceptres? There is one sceptre, not several; if indeed the Emperor carried a sceptre at all. Will now the pontiff carry a sceptre in his hand? Why not give him a sword also, and helmet and javelin?

“And at the same time all the standards and banners.” What do you understand by “standards” [signa]? “Signa” are either statues (hence frequently we read “signa et tabulas” for pieces ^[See Latin page] of sculpture and paintings;—for the ancients did not paint on walls, but on tablets) or military standards (hence that phrase “Standards, matched eagles”^[475]). In the former sense small statues and sculptures are called “sigilla.” Now then, did Constantine give Sylvester his statues or his eagles? What could be more absurd? But what “banners” [banna^[476]] may signify, I do not discover. May God destroy you, most depraved of mortals who attribute barbarous language to a cultured age!

“And different imperial ornaments.” When he said “banners,” he thought he had been explicit long enough, and therefore he lumped the rest under a general term. And how frequently he drives home the word “imperial,” as though there were certain ornaments peculiar to the Emperor over against the consul, the dictator, the Caesar!

“And all the pomp of our imperial eminence, and the glory of our power.” “He discards bombast and cubit-long words,”^[477] “This king of kings, Darius, the kinsman of the gods,”^[478] never speaking save in the plural! What is this imperial “pomp”; that of the cucumber twisted in the grass, and growing at the belly? Do you think the Caesar celebrated a

triumph whenever he left his house, as the Pope now does, preceded by white horses which servants lead saddled and adorned? To pass over other follies, nothing is emptier, more unbecoming a Roman pontiff than this. And what is this “glory”? Would a Latin have called pomp and paraphernalia “glory,” as is customary in the Hebrew language? And instead of “soldiers” [milites] you say soldiery [militia^[479]] which we have borrowed from the Hebrews, whose books neither Constantine nor his secretaries had ever laid eyes on!

But how great is your munificence, O Emperor, who deem it not sufficient to have adorned the pontiff, unless you adorn all the clergy also! As an “eminence of distinguished power and excellence,” [\[See Latin page\]](#) you say, they are “made patricians and consuls.” Who has ever heard of senators or other men being made patricians? Consuls are “made,” but not patricians. The senators, the conscript fathers, are from patrician (also called senatorial), equestrian, or plebeian families as the case may be. It is greater, also, to be a senator than to be a patrician; for a senator is one of the chosen counsellors of the Republic, while a patrician is merely one who derives his origin from a senatorial family. So one who is a senator, or of the conscript fathers, is not necessarily forthwith also a patrician. So my friends the Romans are now making themselves ridiculous when they call their praetor “senator,” since a senate cannot consist of one man and a senator must have colleagues, and he who is now called “senator” performs the function of praetor. But, you say, the title of patrician is found in many books.^[480] Yes; but in those which speak of times later than Constantine; therefore the “privilege” was executed after Constantine.

But how can the clergy become consuls?^[481] The Latin clergy have denied themselves matrimony; and will they become consuls, make a levy of troops, and betake themselves to the provinces allotted them with legions and auxiliaries? Are servants and slaves made consuls? And are there to be not two, as was customary; but the hundreds and thousands of attendants who serve the Roman church, are they to be honored with the rank of general? And I was stupid enough to wonder at what was said about the Pope’s transformation! The attendants will be generals; but the clergy soldiers. Will the clergy become soldiers or wear military insignia, unless you share the imperial insignia with all the clergy? [I may well ask,] for I do not know what you are saying. And who does not see that this fabulous tale

was concocted by those who wished to have every possible license in the [\[See Latin page\]](#) attire they were to wear? If there are games of any kind played among the demons which inhabit the air I should think that they would consist in copying the apparel, the pride and the luxury of the clergy, and that the demons would be delighted most by this kind of masquerading.

Which shall I censure the more, the stupidity of the ideas, or of the words? You have heard about the ideas; here are illustrations of his words. He says, “It seems proper for our Senate to be adorned” (as though it were not assuredly adorned), and to be adorned forsooth with “glory.” And what is being done he wishes understood as already done; as, “we have proclaimed” for “we proclaim”: for the speech sounds better that way. And he puts the same act in the present and in the past tense; as, “we decree,” and “we have decreed.” And everything is stuffed with these words, “we decree,” “we decorate,” “imperial,” “imperial rank,” “power,” “glory.” He uses “extat” for “est,” though “extare” means to stand out or to be above; and “nempe” for “scilicet” [that is, “indeed” for “to wit”]; and “concubitores” [translated above, bed-watchers] for “contubernales” [companions or attendants]. “Concubitores” are literally those who sleep together and have intercourse; they must certainly be understood to be harlots. He adds those with whom he may sleep, I suppose, that he may not fear nocturnal phantoms.^[482] He adds “chamberlains”; he adds “door-keepers.”

It is not an idle question to ask why he mentions these details. He is setting up, not an old man, but a ward or a young son, and like a doting father, himself arranges for him everything of which his tender age has need, as David did for Solomon! And that the story may be filled in in every respect, horses are given the clergy,—lest they sit on asses’ colts in that asinine way of Christ’s! And they are given horses, not covered nor saddled with coverings of white, but decorated with white color. And what coverings! Not horse-cloths, either Babylonian or any other kind, but “mappulae” [translated above, saddle-cloths] and [\[See Latin page\]](#) “linteamina” [linen cloths or sheets, translated above, linen]. “Mappae” [serviettes] go with the table, “linteamina” with the couch. And as though there were doubt as to their color, he explains, “that is to say, of the whitest color.” Talk worthy of Constantine; fluency worthy of Lactantius; not only in the other phrases, but also in that one, “may mount mounts”!

And when he had said nothing about the garb of senators, the broad stripe, the purple, and the rest, he thought he had to talk about their shoes; nor does he specify the crescents [which were on their shoes], but “socks,” or rather he says “with felt socks,” and then as usual he explains, “that is, with white linen,” as though socks were of linen! I cannot at the moment think where I have found the word “udones” [socks], except in Valerius Martial, whose distich inscribed “Cilician Socks” runs:

“Wool did not produce these, but the beard of an ill-smelling goat.
Would that the sole in the gulf of the Cinyps might lie.”^[483]

So the “socks” are not linen, nor white, with which this two-legged ass says, not that the feet of senators are clad, but that senators are distinguished.

And in the phrase “that the terrestrial orders may be adorned to the glory of God, just as the celestial,” what do you call celestial, what terrestrial? How are the celestial orders adorned?^[484] You may have seen what glory to God this is. But I, if I believe anything, deem nothing more hateful to God and to the rest of humanity than such presumption of clergy in the secular sphere. But why do I attack individual items? Time would fail me if I should try, I do not say to dwell upon, but to touch upon them all.

“Above all things, moreover, we give permission to the blessed Sylvester and his successors, from our edict, that he may make priest whomever he wishes, according to his own pleasure and counsel, and enroll him in the pious number of the religious clergy ^[See Latin page] [i.e., regular clergy; or perhaps cardinals]: let no one whomsoever presume to act in a domineering way in this.”^[485]

Who is this Melchizedek that blesses the patriarch Abraham? Does Constantine, scarcely yet a Christian, give to the man by whom he was baptized and whom he calls blessed, authority to make priests? As though Sylvester had not and could not have done it before! And with what a threat he forbids any one to stand in the way! “Let no one, whomsoever, presume to act in a domineering way in this matter.” What elegant diction, too!

“Enroll in the pious number of the religious”; and “clericare,” “clericorum,” “indictu,” and “placatus”!

And again he comes back to the diadem:

“We also therefore decreed this, that he himself and his successors might use, for the honor of the blessed Peter, the diadem, that is the crown, which we have granted him from our own head, of purest gold and precious gems.”

Again he explains the meaning of diadem, for he was speaking to barbarians, forgetful ones at that. And he adds “of purest gold,” lest perchance you should think brass or dross was mixed in. And when he has said “gems,” he adds “precious,” again fearing lest you should suspect them of being cheap. Yet why did he not say most precious, just as he said “purest gold”? For there is more difference between gem and gem, than between gold and gold. And when he should have said “distinctum gemmis,” he said “ex gemmis.” Who does not see that this was taken from the passage, which the gentile ruler had not read, “Thou settest a crown of precious stone on his head”?^[486] Did the Caesar speak thus, with a certain vanity in bragging of his crown, if indeed the Caesars were crowned, but cheapening himself by fearing lest [\[See Latin page\]](#) people would think that he did not wear a crown “of purest gold and precious gems,” unless he said so?

Find the reason why he speaks thus: “for the honor of the blessed Peter.” As though, not Christ, but Peter, were the chief corner-stone on which the temple of the church is built; an inference he later repeats! But if he wanted to honor him so much, why did he not dedicate the episcopal temple at Rome to him, rather than to John the Baptist?

What? Does not that barbarous way of talking show that the rigmarole was composed, not in the age of Constantine, but later; “decernimus quod uti debeant”^[487] for the correct form “decernimus ut utantur”? Boors commonly speak and write that way now; “Iussi quod deberes venire” for “Iussi ut venires.” And “we decreed,” and “we granted,” as though it were not being done now, but had been done some other time!

“But he himself, the blessed Pope, did not allow that crown of gold to be used over the clerical crown which he wears to the glory of the most blessed Peter.”

Alas for your singular stupidity, Constantine! Just now you were saying that you put the crown on the Pope’s head for the honor of the blessed Peter; now you say that you do not do it, because Sylvester refuses it. And while you approve his refusal, you nevertheless order him to use the gold crown; and what he thinks he ought not to do, that you say his own successors ought to do!^[488] I pass over the fact that you call the tonsure a crown, and the Roman pontiff “Pope,” although that word had not yet begun to be applied to him as a distinctive title.

[\[See Latin page\]](#)

“But we placed upon his most holy head, with our own hands, a glittering tiara of the most dazzling white, representing the Lord’s resurrection. And holding the bridle of his horse, out of reverence for the blessed Peter, we performed for him the duty of squire; decreeing that all his successors, and they alone, use this same tiara in processions in imitation of our power.”

Does not this fable-fabricator seem to blunder, not through imprudence, but deliberately and of set purpose, and so as to offer handles for catching him? In the same passage he says both that the Lord’s resurrection is represented by the tiara, and that it is an imitation of Caesar’s power; two things which differ most widely from each other. God is my witness, I find no words, no words merciless enough with which to stab this most abandoned scoundrel; so full of insanity are all the words he vomits forth. He makes Constantine not only similar in office to Moses, who at the command of God honored the chief priest, but also an expounder of secret mysteries, a most difficult thing even for those long versed in the sacred books. Why did you not make Constantine supreme pontiff while you were about it, as many emperors have been, that he might more conveniently transfer his attire to the other high priest? But you did not know history. And I give thanks to God on this very score, that he did not permit this

utterly vicious scheme to be suggested save to an exceedingly stupid man. Subsequent considerations also show this. For he suggests the fact that Moses performed for Aaron, seated on a horse, the duty of squire [dextratoris], and that in the midst not of Israel, but of the Canaanites and the Egyptians, that is, of an heathen state, where there was not so much a secular government as one of demons and demon-worshipping peoples.

“Wherefore, in order that the supreme pontificate may not deteriorate, but may rather be adorned with glory and power even more than is the dignity of an earthly rule; behold, we give over and relinquish to the most blessed pontiff and universal Pope, Sylvester, as well our palace as also the city of Rome and all the provinces, places and cities of Italy or^[489] of the western [\[See Latin page\]](#) regions; and by our pragmatic sanction we have decreed that they are to be controlled by him and by his successors, and that they remain under the law of the holy Roman church.”

We have already, in the oration of the Romans and that of Sylvester, said a good deal about this.^[490] Here it is in place to say that no one would have thought of including all the nations in a single word of a grant; and that a man who had earlier followed out the minutest details of straps, the shoes, the linen horse-cloths, would not have thought of omitting to cite by name provinces which now have separate kings or rulers equal to kings, and more than one to each. But this forger, of course, did not know which provinces were under Constantine, and which were not. For certainly not all were under him. When Alexander died, we see all the countries enumerated one by one in the division among the generals. We see the lands and rulers which were under the government of Cyrus, whether voluntarily or by conquest, named by Xenophon. We see the names of the Greek and barbarian kings, their lineage, their country, their bravery, their strength, their excellence, the number of their ships and the approximate number of their men, included by Homer in his catalog. And not only did many Greeks follow his example, but our Latin authors also, Ennius, Virgil, Lucan, Statius, and others. By Joshua and Moses, in the division of the promised land, even all the little villages were described. And you refuse to enumerate even provinces! You name only the “western provinces.”^[491]

What are the boundaries of the west; where do they begin; where do they end? Are the frontiers of west and east, south and north, as definite and fixed as those of Asia, Africa and Europe? Necessary words you omit, you heap on superfluous ones. You say, “provinces, [\[See Latin page\]](#) places and cities.” Are not provinces and cities, “places”? And when you have said provinces you add cities, as though the latter would not be understood with the former. But it is not strange that a man who gives away so large a part of the earth should pass over the names of cities and of provinces, and as though overcome with lethargy not know what he says. “Of Italy or of the western regions,” as though he meant “either ... or” when he means “both”; [\[492\]](#) speaking of “provinces ... of the ... regions,” when it should rather be the regions of the provinces; and using the gerundive, “permanendas,” for the future infinitive (permansuras).

“Wherefore we have perceived it to be fitting that our empire and our royal power should be transferred in the regions of the East; and that in the province of Byzantia *[sic]*, in the most fitting place, a city should be built in our name; and that our empire should there be established.”

I pass over the fact that in saying “a city should be built” [he uses the word for “the state” instead of “the city”], and cities, not states, are built; and the fact that he says “the province of Byzantia.”[\[493\]](#) If you are Constantine, give the reason why you should choose that as the best place for founding your city. For that you should “transfer” yourself elsewhere after giving up Rome, was not so much “fitting” as necessary. You should neither call yourself Emperor when you have lost Rome and deserved least from the Roman name whose meaning you destroy; nor call yourself “royal,” for no one before you has done so,—unless you call yourself a king because you have ceased to be a Roman.[\[494\]](#) But you allege a reason sound and honorable:

“For where the chief of [all] priests and the head of the Christian religion has been established by the heavenly Emperor, it is not right that there an earthly Emperor should have jurisdiction.”

[\[See Latin page\]](#)

O stupid David, stupid Solomon, stupid Hezekiah, Josiah, and all the other kings, stupid all and irreligious, who persisted in dwelling in the city of Jerusalem with the chief priests, and did not yield them the whole city! Constantine in three days is wiser than they could be in their whole life. And you call [the Pope] a “heavenly Emperor” because he accepts an earthly empire; unless by that term you mean God (for you speak ambiguously) and mean that an earthly sovereignty of priests was by him established over the city of Rome and other places, in which case you lie.

“We decreed, moreover, that all these things which through this sacred imperial [charter] and through other godlike decrees we establish and confirm, remain inviolate and unshaken unto the end of the world.”

A moment ago, Constantine, you called yourself earthly; now you call yourself divine and sacred. You relapse into paganism and worse than paganism. You make yourself God, your words sacred, and your decrees immortal; for you order the world to keep your commands “inviolate and unshaken.” Do you consider who you are: just cleansed from the filthiest mire of wickedness, and scarcely fully cleansed? Why did you not add, “Till heaven and earth pass, one jot or one tittle shall in no wise pass from this ‘privilege’”?^[495] The kingdom of Saul, chosen by God, did not pass on to his sons; the kingdom of David was divided under his grandson, and afterward destroyed. And by your own authority you decree that the kingdom which you give over without God, shall remain even until the end of the world! Whoever taught you that the world is to pass away so soon? For I do not think that at this time you had faith in the poets, who alone bear witness to this. So you could not have said this, but some one else passed it off as yours.

However, he who spoke so grandly and loftily, begins to fear, and to distrust himself, and so takes to entreating:

[\[See Latin page\]](#)

“Wherefore, before the living God, who commanded us to reign, and in the face of his terrible judgment, we entreat all the emperors our successors, and all the nobles, the satraps also and the most glorious Senate, and all the people in the whole world, likewise also for the future, that no one of them, in any way, be allowed either to break this, or in any way overthrow it.”

What a fair, what a devout adjuration! It is just as if a wolf should entreat by his innocence and good faith the other wolves and the shepherds not to try to take away from him, or demand back, the sheep which he has taken and divided among his offspring and his friends. Why are you so afraid, Constantine? If your work is not of God it will be destroyed; but if it is of God it cannot be destroyed. But I see! You wished to imitate the Apocalypse, where it says: “For I testify unto every man that heareth all the words of the prophecy of this book, If any man shall add unto these things, God shall add unto him the plagues that are written in this book: And if any man shall take away from the words of the book of this prophecy, God shall take away his part out of the book of life, and out of the holy city.”^[496] But you had never read the Apocalypse; therefore these are not your words.

“If any one, moreover—which we do not believe—prove a scorner in this matter, he shall be condemned and shall be subject to eternal damnation; and shall feel the holy apostles of God, Peter and Paul, opposed to him in the present and in the future life. And he shall be burned in the lower hell and shall perish with the devil and all the impious.”

This terrible threat is the usual one, not of a secular ruler, but of the early priests and flamens, and nowadays, of ecclesiastics. And so this is not the utterance of Constantine, but of some fool of a priest who, stuffed and pudgy, knew neither what to say nor how to say it, and, gorged with eating and heated with wine, belched out these wordy sentences which convey nothing to [\[See Latin page\]](#) another, but turn against the author himself. First he says, “shall be subject to eternal damnation,” then as though more could be added, he wishes to add something else, and to eternal penalties he joins penalties in the present life; and after he frightens us with God’s

condemnation, he frightens us with the hatred of Peter, as though it were something still greater. Why he should add Paul, and why Paul alone, I do not know. And with his usual drowsiness he returns again to eternal penalties, as though he had not said that before. Now if these threats and curses were Constantine's, I in turn would curse him as a tyrant and destroyer of my country, and would threaten that I, as a Roman, would take vengeance on him. But who would be afraid of the curse of an overly avaricious man, and one saying a counterfeit speech after the manner of actors, and terrifying people in the rôle of Constantine? This is being a hypocrite in the true sense, if we press the Greek word closely; that is, hiding your own personality under another's.

“The page,^[497] moreover, of this imperial decree, we, confirming it with our own hands, did place above the venerable body of the blessed Peter.”^[498]

Was it paper or parchment, the “page” on which this was written? Though, in fact, we call one side of a leaf, as they say, a page; for instance, a pamphlet[?] has ten leaves, twenty pages.

But oh! the unheard of and incredible thing [that Constantine did]! I remember asking some one, when I was a youth, who wrote the book of Job; and when he answered, “Job himself,” I rejoined, “How then would he mention his own death?” And this can be said of many other books, discussion of which is not appropriate here. For how, indeed, can that be narrated which has not yet been done; and how can that which [the speaker] himself ^[See Latin page] admits was done after the burial, so to say, of the records, be contained in the records? This is nothing else than saying that “the page of the privilege” was dead and buried before it was born, and yet never returned from death and burial; and saying expressly that it was confirmed before it had been written, and not with one hand alone at that, but with both of the Caesar's hands! And what is this “confirming”? Was it done with the signature of the Caesar, or with his signet ring? Surely, hard and fast that,—more so by far than if he had entrusted it to bronze tablets! But there is no need of bronze inscription, when the charter is laid away above the body of the blessed Peter. But why do you here suppress Paul,

though he lies with Peter, and the two could guard it better than if the body of one alone were present?

You see the malicious artfulness of the cunning Sinon!^[499] Because the Donation of Constantine cannot be produced, therefore he said that the “privilege” is not on bronze but on paper records; therefore he said that it lies with the body of the most holy apostle, so that either we should not dare to seek it in the venerable tomb, or if we should seek it, we would think it rotted away. But where then was the body of the blessed Peter? Certainly it was not yet in the temple where it now is, not in a place reasonably protected and safe. Therefore the Caesar would not have put the “page” there. Or did he not trust the “page” to the most blessed Sylvester, as not holy enough, not careful nor diligent enough? O Peter! O Sylvester! O holy pontiffs of the Roman church! to whom the sheep of the Lord were entrusted, why did you not keep the “page” entrusted to you? Why have you suffered it to be eaten by worms, to rot away with mold? I presume that it was because your bodies also have wasted away. Constantine therefore acted foolishly. Behold the “page” reduced to dust; the right conferred by the “privilege” at the same time passes away into dust.

And yet, as we see, a copy of the “page” is shown. Who then was so bold as to take it from the bosom of the most holy apostle? No one did it, I think. Whence then the copy? By all means some ^[See Latin page] ancient writer ought to be adduced, one not later than the time of Constantine. However, none such is adduced, but as it happens some recent writer or other. Whence did he get it? For whoever composes a narrative about an earlier age, either writes at the dictation of the Holy Spirit, or follows the authority of former writers, and of those, of course, who wrote concerning their own age. So whoever does not follow earlier writers will be one of those to whom the remoteness of the event affords the boldness to lie. But if this story is to be read anywhere, it is not consistent with antiquity any more than that stupid narrative of the glossator Accursius about Roman ambassadors being sent to Greece to get laws agrees with Titus Livius and the other best writers.

“Given at Rome, on the third day before the Kalends of April, Constantine Augustus consul for the fourth time, and Gallicanus consul for the fourth time.”^[500]

He took the next to the last day of March so that we might feel that this was done in the season of holy days, which, for the most part, come at that time. And “Constantine consul for the fourth time, and Gallicanus consul for the fourth time.” Strange if each had been consul thrice, and they were colleagues in a fourth consulship! But stranger still that the Augustus, a leper, with elephantiasis (which disease is as remarkable among diseases, as elephants are among animals), should want to even accept a consulship, when king Azariah, as soon as he was affected with leprosy, kept himself secluded, while the management of the kingdom was given over to Jotham his son;^[501] and almost all lepers have acted similarly. And by this argument alone the whole “privilege” is confuted outright, destroyed, and overturned. And if any one disputes the fact that Constantine must have been leprous before he was consul, he should know that according to physicians this disease develops gradually, that according to the [\[See Latin page\]](#) known facts of antiquity the consulate is an annual office and begins in the month of January; and these events are said to have taken place the following March.

Nor will I here pass over the fact that “given” is usually written on letters, but not on other documents, except among ignorant people. For letters are said either to be given one (illi) or to be given to one (ad illum); in the former case [they are given to] one who carries them, a courier for instance, and puts them in the hand of the man to whom they are sent; in the latter case [they are given] to one in the sense that they are to be delivered to him by the bearer, that is [they are given to] the one to whom they are sent. But the “privilege,” as they call it, of Constantine, as it was not to be delivered to any one, so also it ought not to be said to be “given.” And so it should be apparent that he who spoke thus lied, and did not know how to imitate what Constantine would probably have said and done. And those who think that he has told the truth, and defend him, whoever they are, make themselves abettors and accessories in his stupidity and madness. However, they have nothing now with which to honorably excuse their opinion, not to speak of defending it.

Or is it an honorable excuse for an error, to be unwilling to acquiesce in the truth when you see it disclosed, because certain great men have thought otherwise? Great men, I call them, on account of their position, not on account of their wisdom or their goodness. How do you even know whether

those whom you follow, had they heard what you hear, would have continued in their belief, or would have given it up? And moreover it is most contemptible to be willing to pay more regard to man than to Truth, that is, to God. [I say this] for some men beaten at every argument are wont to answer thus: “Why, have so many supreme pontiffs believed this Donation to be genuine?” I call you to witness, that you urge me where I would not, and force me against my will to rail at the supreme pontiffs whose faults I would prefer to veil. But let us proceed to speak frankly, inasmuch as this case cannot be conducted in any other way.

Admitting that they did thus believe and were not dishonest; [\[See Latin page\]](#) why wonder that they believed these stories where so much profit allured them, seeing that they are led to believe a great many things, in which no profit is apparent, through their extraordinary ignorance? Do you not, at Ara Coeli, in that most notable temple and in the most impressive place see the fable of the Sibyl and Octavian^[502] depicted by the authority, they say, of Innocent III, who wrote it and who also left an account of the destruction of the Temple of Peace on the day of the Savior’s birth, that is, at the delivery of the Virgin?^[503] These stories tend rather to the destruction of faith, by their falsity, than to the establishment of faith, by their wonders. Does the vicar of Truth dare to tell a lie under the guise of piety, and consciously entangle himself in this sin? Or does he not lie? Verily, does he not see that in perpetrating this he contradicts the most holy men? Omitting others; Jerome cites the testimony of Varro that there were ten Sibyls, and Varro wrote his work before the time of Augustus. Jerome also writes thus of the Temple of Peace: “Vespasian and Titus, after the Temple of Peace was built at Rome, dedicated the vessels of the temple [of the Jews] and all manner of gifts in her shrine, as the Greek and Roman historians tell.” And this ignorant man, alone, wants us to believe his libel, barbarously written at that, rather than the most accurate histories of ancient and most painstaking authors!

Since I have touched on Jerome, I will not suffer the following insult to him to be passed by in silence. At Rome, by the authority of the Pope, with the candles ever burning, as though for a relic of the saints, is shown a copy of the Bible, which they say is written in the hand of Jerome. Do you seek proof? Why, there is “much embroidered cloth and gold,” as Virgil says, a thing which indicates rather that it was not written by the hand of Jerome.

When I inspected it more carefully, I found that it was written [\[See Latin page\]](#) by order of a king, Robert, I think, and in the handwriting of an inexperienced man.

Similarly,—there are indeed ten thousand things of this sort at Rome,—among sacred objects is shown the panel portrait of Peter and Paul, which, after Constantine had been spoken to by these apostles in his sleep, Sylvester produced in confirmation of the vision. I do not say this because I deny that they are portraits of the apostles (would that the letter sent in the name of Lentulus about the portrait of Christ were as genuine, instead of being no less vicious and spurious than this “privilege” which we have refuted), but because that panel was not produced for Constantine by Sylvester. At that story my mind cannot restrain its astonishment.

So I will briefly discuss the Sylvester legend, because the whole question hinges on this; and, since I have to do with Roman pontiffs, it will be in order to speak chiefly of the Roman pontiff so that from one example an estimate of the others may be formed. And of the many absurdities told in this [legend] I shall touch upon one alone, that of the serpent, [\[504\]](#) in order to show that Constantine had not been a leper. And verily the Life of Sylvester (*Gesta Silvestri*), according to the translator, was written by Eusebius, [\[505\]](#) a Greek, always the readiest people at lying, as Juvenal’s satirical judgment runs:

“Whatever in the way of history a lying Greek dares tell.”^[506]

Whence came that dragon? Dragons are not engendered in Rome. Whence, too, his venom? In Africa alone, on account of its hot climate, are there said to be pest-producing dragons. Whence, too, so much venom that he wasted with pestilence such ^[See Latin page] a spacious city as Rome; the more remarkable that the serpent was down in a cavern so deep that one descended to it by a hundred and fifty steps? Serpents, excepting possibly the basilisk, inject their poison and kill, not with their breath, but with their bite. Cato, fleeing from Caesar through the very midst of the African deserts with such a large force as he had, did not see any of his company slain by the breath of a serpent, either on the march or in camp; nor do the natives think the air pestilential on account of serpents. And if we believe at all in the stories, the Chimaera, the Hydra and Cerberus have all often been seen and touched without injury.

Why hadn't the Romans already slain it instead [of waiting for Sylvester]? They couldn't, you say? But Regulus killed a much larger serpent in Africa on the banks of the Bagradas. And it was very easy indeed to kill the one at Rome; for instance, by closing the mouth of the cavern. Or didn't they want to? Ah, they worshipped it as a god, I suppose, as the Babylonians did? Why then, as Daniel is said to have killed that serpent, ^[507] had not Sylvester killed this one when he had bound him with a hempen thread, and destroyed that brood forever? The reason the inventor of the legend did not want the dragon slain was that it might not be apparent that he had copied the narrative of Daniel. But if Jerome, a most learned and accurate translator, Apollinaris, Origen, Eusebius and others affirm the story of Bel to be apocryphal, if the Jews in their original of the Old Testament do not know it; that is, if all the most learned of the Latins, most of the Greeks, and certain of the Hebrews, condemn that as a legend, shall I not condemn this adumbration of it, which is not based on the authority of any writer, and which far surpasses its model in absurdity?

For who had built the underground home for the beast? Who had put it there and commanded it not to come out and fly away (for dragons fly, as some say; even though others deny it)? Who had thought out that kind of

food for him? Who had directed that women, virgins at that, devoted to chastity, go down to him, [\[See Latin page\]](#) and only on the Kalends? Or did the serpent remember what day was the Kalends? And was he content with such scant and occasional food? And did not the virgins dread such a deep cavern, and a beast so monstrous and greedy? I suppose the serpent wheedled them, as they were women, and virgins, and brought him his victuals; I suppose he even chatted with them. What if, pardon the expression, he even had intercourse with them; for both Alexander and Scipio are said to have been born by the embrace of a dragon, or a serpent, with their mothers! Why, if food were afterward denied him, would he not have come out then, or have died?

O the strange folly of men who have faith in these senile ravings! How long now had this been going on? When did the beginning occur? Before the advent of the Savior, or after? As to this, nothing is known. We should be ashamed! We should be ashamed of these silly songs, and this frivolity worse than dangerous! A Christian, who calls himself a son of truth and light, should blush to utter things which not only are not true, but are not credible.

But, they say, the demons obtained this power over the heathen, so as to mock them for serving the gods. Silence, you utter ignoramuses, not to call you utter rascals, you who always spread such a veil over your stories! True Christianity does not need the patronage of falsehood; it is maintained satisfactorily by itself, and by its own light and truth, without those lying and deceitful fables,—unmitigated insults to God, to Christ, and to the Holy Spirit. Would God thus have given the human race over into the power of demons, to be seduced by such evident, such imposing miracles, that he might well-nigh be accused of the injustice of turning sheep over to wolves, and that men should have good excuse for their errors? But if so much license was once given demons, even more would be given them now among infidels; which is by no means the case, nor are any legends of this sort told by them.

Passing by other peoples, I will speak of the Romans. Among them the miracles reported are few, and they early and obscure. [\[See Latin page\]](#) Valerius Maximus tells that that chasm in the middle of the forum, when Curtius, armed and spurring on his horse, plunged into it, closed again, and returned

forthwith to its former state.^[508] Again, the [effigy of] Juno Moneta, when it was asked, in jest, by a certain Roman soldier at the capture of Veii, whether it wanted to move to Rome, replied that it did.^[509]

Titus Livius, an earlier and more authoritative writer, knows neither of these stories. For he has it that the chasm was permanent, not a sudden opening but an old one, there before the founding of the city, and called Curtius' Pond, because Mettius Curtius, a Sabine, fleeing from an attack by the Romans, had hidden in it; and that the Juno did not reply, but nodded assent, and it was added to the story afterwards that she had spoken.^[510] And about the nod also, it is evident that they lied, either by interpreting the movement of the image when they pulled it away as made by its own accord, or by pretending in the same joking way in which they asked the question that the hostile, conquered, stone goddess nodded assent. Indeed, Livy does not say that she nodded, but that the soldiers exclaimed that she nodded. Such stories, too, good writers do not defend as facts, but excuse as tradition. For even as this same Livy says, "This indulgence is to be granted antiquity, that by mingling the human and the divine it may make the beginnings of cities more august."^[511] And elsewhere: "But in connection with events of such ancient times, if probabilities should be accepted as facts, no harm would be done. These stories are more suited to the display of a stage which delights in wonders, than to sober belief; it is not worth while either to affirm or to refute them."^[512]

Terentius Varro, an earlier, more learned and, I think, more authoritative writer than these two, says there were three accounts of Curtius' Pond given by as many writers; one by Proculus, that ^[See Latin page] this pond was so called for a Curtius who cast himself into it; another by Piso, that it was named for Mettius the Sabine; the third by Cornelius, and he adds Luctatius as his associate in the matter, that it was for Curtius the consul, whose colleague was Marcus Genutius.^[513]

Nor should I have concealed that Valerius cannot be altogether criticised for speaking as he does, since a little later he earnestly and seriously adds; "And I do not ignore the fact that as to human eyes and ears perceiving the movement and the voice of immortal gods, our judgment is rather confused by wavering opinion; but because what is said is not new but the repetition of traditions, the authors may lay claim to credence."^[514] He spoke of the

voice of the gods on account of the Juno Moneta,^[515] and on account of the statue of Fortune which is represented to have twice spoken in these words, “With due form have you seen me, matrons; with due form have you dedicated me.”^[516]

But our own story-tellers every once in a while bring in talking idols of which the heathen themselves, and the worshippers of the idols; do not speak; rather they deny them more earnestly than the Christians affirm them. Among the heathen the very few wonders which are told make their way not by the belief of writers, but by the sanction of their antiquity, as something sacred and venerable; among our writers wonders more recent are narrated, wonders of which the men of those times did not know.

I neither disparage admiration for the saints, nor do I deny their divine works, for I know that faith, as much of it as a grain of mustard seed, is able even to remove mountains. Rather I defend and uphold them, but I do not allow them to be confused with ridiculous legends. Nor can I be persuaded that these writers were other than either infidels, who did this to deride the Christians in case these bits of fiction handed out by crafty men to the [\[See Latin page\]](#) ignorant should be accepted as true, or else believers with a zeal for God, to be sure, but not according to knowledge, men who did not shrink from writing shameless accounts not only of the acts of the saints but even of the mother of God, and indeed of Christ himself, nor from writing pseudo-gospels. And the supreme pontiff calls these books apocryphal as though it were no blemish that their author is unknown, as though what was told were credible, as though they were sacred, tending to establish religion; so that now there is no less fault on his part in that he approves evils, than on the part of the one who devised them. We detect spurious coins, we pick them out and reject them; shall we not detect spurious teaching? Shall we retain it, confuse it with the genuine and defend it as genuine?

But I, to give my frank opinion, deny that the Acts of Sylvester is an apocryphal book; because, as I have said, a certain Eusebius is said to have been its author; but I think it is false and not worth reading, in other parts as well as in what it has to say about the serpent, the bull,^[517] and the leprosy, to refute which I have gone over so much ground. For even if Naaman was leprous, should we forthwith say that Constantine also was leprous? Many writers allude to it in Naaman’s case; that Constantine the head of the whole

earth had leprosy no one mentioned; at least none of his fellow citizens, but perhaps some foreigner or other, to be given no more credence than that other fellow who wrote about wasps building their nest in Vespasian's nostrils, and about the frog taken from Nero at birth, whence they say the place was called the Lateran, for the frog (rana) is concealed (latere) there in its grave. [\[518\]](#) Such stuff neither the wasps themselves, nor frogs, if they could speak, would have uttered! [I pass over the statement that boys' blood is a remedy for leprosy, which medical [\[See Latin page\]](#) science does not admit; [\[519\]](#)] unless they attribute this to the Capitoline gods, as though they were wont to talk and had ordered this to be done!

But why should I wonder that the pontiffs are not informed on these points, when they do not know about their own name! For they say that Peter is called Cephas because he was the head of the apostles, as though this noun were Greek, from κεφαλή, and not Hebrew, or rather Syriac; a noun which the Greeks write κηφᾶς, and which with them means rock (Petrus), and not head! For "petrus," "petra," (rock) is a Greek noun. And "petra" is stupidly explained by them through a Latin derivation, as from "pede trita" (trodden by foot)! And they distinguish "metropolitan" from "archbishop," and claim that the former is so called from the size of the city, though in Greek it is not called μετρόπολις but μητρόπολις, that is, the mother-state or city. And they explain "patriarch" as "pater patrum" (father of fathers); and "papa" (pope) from the interjection "pape" (indeed); and "orthodox" as from the words meaning "right glory"; and they pronounce "Simonem" (Simon) with a short middle vowel, though it should be read with a long one, as are "Platonem" (Plato) and "Catonem" (Cato). And there are many similar instances which I pass, lest for the fault of some of the supreme pontiffs I should seem to attack all. These instances had to be given so that no one should wonder that many of the Popes have been unable to detect that the Donation of Constantine was spurious; though, in my opinion, this deception originated with one of them.

But you say, "Why do not the Emperors, who were the sufferers from this forgery, deny the Donation of Constantine, instead of admitting it, confirming it and maintaining it?" A great argument! [\[See Latin page\]](#) a marvellous defense! For of which Emperor are you speaking? If of the

Greek one, who was the true Emperor, I will deny the admission; if of the Latin, I will confess it, and with pleasure. For who does not know that the Latin Emperor was gratuitously established by a supreme pontiff, Stephen I think, who robbed the Greek Emperor because he would not aid Italy, and established a Latin Emperor; so the Emperor thus received more from the Pope than the Pope from the Emperor?^[520] Oh, of course, Achilles and Patroclus divided the Trojan spoils between themselves alone on some such terms. The words of Louis [the Pious] seem to me to imply just this when he says, “I, Louis, Roman Emperor, Augustus, ordain and grant, by this compact of our confirmation, to you, blessed Peter, prince of the apostles, and through you to your vicar, the supreme pontiff, lord Paschal [I], and to his successors forever, to hold, just as from our predecessors until now you have held, under your authority and rule, the Roman state with its duchy, with all its towns and villages, its mountain districts, sea coasts and harbors, and all cities, forts, walled towns, and estates in the districts of Tuscany.”^[521]

Do you, Louis, make a pact with Paschal? If these are yours, that is, the Roman Empire’s, why do you grant them to another? If they are his and are held in his own possession, what sense is there in your confirming them? How little of the Roman Empire will be yours if you lose the very head of the Empire? From Rome the Roman Emperor takes his name. What! Are your other possessions yours or Paschal’s? Yours, you will say, I suppose. Therefore, the Donation of Constantine is not valid at all; that is, if you possess what was given by him to the pontiff. If it is valid, by what right does Paschal give you the rest [of the Empire], retaining for himself only what he possesses? What does your excessive prodigality toward him at the expense of the Roman Empire mean, or his toward you? Therefore, deservedly do you call it a “compact,” something like collusion.

[\[See Latin page\]](#)

“But what shall I do?” you will say. “Shall I try to recover by force what the Pope has in his possession? But he, alas, has now become more powerful than I. Shall I seek to regain it by law? But my right is only such as he is willing for it to be. For I came to the throne, not through an inherited title, but by a compact that if I wish to be Emperor I should promise the Pope in turn such and such

considerations. Shall I say that Constantine did not give away any of the Empire? But that way I should be arguing the cause of the Greek Emperor, and I should rob myself of all imperial dignity. For the Pope says he makes me Emperor with this very thing in view, as a kind of vicar of his; and unless I bind myself, he will not make me Emperor; and unless I obey I shall have to abdicate. If only he gives me the throne I will acknowledge everything, I will agree to everything. Only; take my word for it, if I had Rome and Tuscany in my possession, I would act quite differently and Paschal would sing me that old song of the Donation, spurious in my opinion, in vain. As things are, I yield what I neither have nor hope to have. To question the right of the Pope is not my concern but that of the Emperor yonder at Constantinople.”

I quite excuse you, Louis, and every other ruler similarly placed. What must we suspect of the compact of other Emperors with the supreme pontiffs, when we know what Sigismund did, a ruler otherwise most excellent and courageous, but at that time affected and weakened by age? We saw him, hedged in throughout Italy, with a few retainers, living from day to day at Rome, and he would, indeed, have perished with hunger, had not Eugenius fed him,—but not for nothing, for he extorted the Donation from him. When he had come to Rome to be crowned Emperor of the Romans, he could not get the Pope to crown him, except by confirming the Donation of Constantine and by granting anew all that it contained. What more contradictory than for him to be crowned Roman Emperor who had renounced Rome itself, and that by the man whom he both acknowledges and, so far as he can, makes master of the Roman Empire; and [for the [See Latin page](#) Emperor] to confirm the Donation which, if genuine, leaves none of the Empire for the Emperor! It is a thing which, as I think, not even children would have done. So it is not strange that the Pope arrogates to himself the coronation of the Caesar, which ought to belong to the Roman people.

If you, O Pope, on the one hand can deprive the Greek Emperor of Italy and the western provinces, and on the other you create a Latin Emperor, why do you resort to “compacts”? Why do you divide the Caesar’s estate? Why do you transfer the Empire to yourself?

Wherefore, let whoever is called Emperor of the Romans know that in my judgment he is not Augustus, nor Caesar, nor Emperor, unless he rules at Rome; and unless he takes up the recovery of the city of Rome, he will plainly be forsworn. For those earlier Caesars, and Constantine first of them, were not forced to take the oath by which the Caesars are now bound; but rather the oath that, so far as it lay in human power, they would not diminish the extent of the Roman Empire, but would diligently add to it.

Yet not for this reason are they called Augusti, namely that they ought to augment the Empire, as some think whose knowledge of Latin is imperfect; for he is called Augustus, as consecrated, from “avium gustus” (the taste, or appetite, of the birds), a customary step in consulting the omens: and this derivation is supported by the language of the Greeks, among whom the Augustus is called Σεβαστός, from which Sebastia gets its name. Better might the supreme pontiff be called Augustus from “augere” (to augment), except for the fact that when he augments his temporal he diminishes his spiritual power. Thus it is a fact that the worse the supreme pontiff is, the more he exerts himself to defend this Donation. Take the case of Boniface VIII, who deceived Celestine by means of pipes fixed in the wall.^[522] He both writes concerning the Donation of Constantine, and he despoils the French king; and, as though he wished to put the Donation [\[See Latin page\]](#) of Constantine in execution, he decrees that the kingdom itself belonged to and was subject to the Roman church. This decretal his successors, Benedict and Clement, revoked outright, as wicked and unjust.

But what is the significance of your anxiety, Roman pontiffs, in requiring each Emperor to confirm the Donation of Constantine, unless it be that you distrust its legality? But you are washing bricks [you labor in vain], as they say; for that Donation never existed, and since it does not exist it cannot be confirmed; and whatever the Caesars grant, their acts are due to deception as to the precedent of Constantine; and they cannot grant the Empire.

However, let us grant that Constantine made the Donation and that Sylvester was at one time in possession, but afterwards either he himself or another of the Popes lost possession. (I am speaking now of that of which the Pope is not in possession; later on I will speak of that of which he is in possession.) What more can I grant you than to concede the existence of

that which never was and never could be? But even so, I say that you cannot effect a recovery either by divine or by human law. In the ancient law it was forbidden that a Hebrew be a Hebrew's slave more than six years, and every fiftieth year also everything reverted to the original owner. Shall a Christian, in the dispensation of grace, be oppressed in eternal slavery by the vicar of the Christ who redeemed us from our servitude? What do I say! Shall he be recalled to servitude after he has been set free and has long enjoyed his freedom?

How brutal, how violent, how barbarous the tyranny of priests often is, I do not say. If this was not known before, it has lately been learned from that monster of depravity, John Vitelleschi, cardinal and patriarch, who wore out the sword of Peter, with which [the apostle] cut off the ear of Malchus, with the blood of Christians. By this sword he himself also perished.^[523] But is it true [\[See Latin page\]](#) that the people of Israel were permitted to revolt from the house of David and Solomon whom prophets sent by God had anointed, because their impositions were too heavy; and that God approved their act? May we not revolt on account of such great tyranny, particularly from those who are not kings, and cannot be; and who from being shepherds of the sheep, that is to say, of souls, have become thieves and brigands?

And to come to human law, who does not know that there is no right conferred by war, or if there is any, that it prevails just as long as you possess what you have gotten by war? For when you lose possession, you have lost the right. And so ordinarily, if captives have escaped no one summons them into court: and so also with plunder if the former owners have recovered it. Bees and any other kind of winged creatures, if they have flown away far from my property and have settled on another's, cannot be reclaimed. And do you seek to reclaim men, who are not only free creatures, but masters of others, when they set themselves free by force of arms, [reclaim them] not by force of arms, but by law, as though you were a man, and they sheep?

Nor can you say, "The Romans were [considered] just in waging wars against the nations, and just in depriving them of liberty." Do not drag me into that discussion, lest I be forced to speak against my fellow Romans. However, no fault could be so serious that people should merit everlasting servitude therefor. And in this connection [one must remember also] that people often waged a war for which a prince or some important citizen in

the Republic was to blame, and, being conquered, were undeservedly punished with servitude. There are everywhere abundant examples of this.

Nor in truth does the law of nature provide that one people should subjugate another people to itself. We can instruct others, we can urge them; we cannot rule them and do them violence, unless, leaving humanity aside, we wish to copy the more savage beasts which force their bloody rule upon the weaker, as the lion among quadrupeds, the eagle among birds, the dolphin among fish. Yet even these creatures do not vaunt authority over their [\[See Latin page\]](#) own kind, but over an inferior. How much more ought we to act thus, and as men have due regard for men, since in the words of Marcus Fabius there is no beast upon the earth so fierce that his own likeness is not sacred to him?

Now there are four reasons why wars are waged: either for avenging a wrong and defending friends; or for fear of incurring disaster later, if the strength of others is allowed to increase; or for hope of booty; or for desire of glory. Of these the first is rather honorable, the second less so, and the last two are far from honorable. And wars were indeed often waged against the Romans, but after they had defended themselves, they waged war against their assailants and against others. Nor is there any nation which yielded to their sway unless conquered in war and subdued; whether justly, or for what cause, they themselves could judge. I should be unwilling to condemn them as fighting unjustly or to acquit them as fighting in a just cause. I can only say that the Roman people waged wars against others for the same reason as other peoples and kings did, and that it was left open even to those who were attacked and conquered in war to revolt from the Romans just as they revolted from other masters; lest perchance (and none would agree to this) all authority should be imputed to the oldest people who were first masters; that is, to those who were the first to take possession of what belonged to others.

And yet the Roman people had a better right over nations conquered in war than had the Caesars in their overthrow of the Republic. Wherefore, if it was right for the nations to revolt from Constantine, and, what is far more, from the Roman people, purely it will be right to revolt from him to whom Constantine gave his authority. And to put the matter more boldly, if the Roman people were free either to drive Constantine out, as they did Tarquinius, or to slay him, as they did Julius Caesar, much more will the

Romans or the provinces be free to slay him, who at any time has succeeded Constantine. But though this is true, yet it is beyond the scope of my argument, and so I want to restrain myself and not press anything I have said further than this, that it is folly to adduce any verbal right, where the right of [\[See Latin page\]](#) arms prevails, because that which is acquired by arms, is likewise lost by arms.

This, indeed, the more, that other, new, peoples as we have heard in the case of the Goths, who were never subject to Roman rule, after putting to flight the earlier inhabitants, seized upon Italy and many provinces. What justice, pray, is there in restoring these to a servitude which they have never experienced; especially as they are the conquering peoples; and to servitude perchance under the conquered peoples? And if at this time any cities and nations, deserted by the Emperor at the arrival of the barbarians, as we know to have been the case, had been compelled to elect a king under whose leadership they then won victory, is there any reason why they should later depose this ruler? Or should they bid his sons, popular it may be for their father's praise, it may be for their own valor, become private citizens, that they might again become subjects of a Roman prince, even though they were greatly in need of their assistance and hoped for no aid elsewhere? If the Caesar himself, or Constantine, returned to life, or even the Senate and Roman people should call them before a general court such as the Amphictyony was in Greece, [the plaintiff] would at once be ruled out at his first plea because he was reclaiming to bondage and slavery those who once had been abandoned by him, their guardian, those who for a long time had been living under another ruler, those who had never been subject to a foreign-born king, men, in conclusion, who were free-born and proclaimed free by their vigor of mind and body. How clear it should be, that if the Caesar, if the Roman people, is thus debarred from recovering control, much more decidedly is the Pope! And if the other nations which have been subject to Rome are free either to appoint a king for themselves or to maintain a republic, far more are the Roman people themselves free to do this, especially against the innovation of papal tyranny.

Estopped from defending the Donation, since it never existed and, if it had existed, it would now have expired from lapse of time, our adversaries take refuge in another kind of defense; [\[See Latin page\]](#) figuratively speaking,

the city being given up for lost, they betake themselves to their citadel,—which forthwith they are constrained by lack of provisions to surrender. “The Roman church,” they say, “is entitled by prescription to what it possesses.” Why then does it lay claim to that, the greater part, to which it has no title by prescription, and to which others are entitled by prescription; unless others cannot act toward it as it can act toward them?

The Roman church has title by prescription! Why then does it so often take care to have the Emperors confirm its right? Why does it vaunt the Donation, and its confirmation by the Caesars? If this alone is sufficient, you seriously weaken it by not at the same time keeping silent about the other title [by prescription]. Why don’t you keep silent about that other? Obviously because this is not sufficient.

The Roman church has prescribed! And how can it have entered a prescription where no title is established but only possession through bad faith? Or if you deny that the possession was a case of bad faith, at least you cannot deny that the faith [in the Donation] was stupid. Or, in a matter of such importance and notoriety, ought ignorance of fact and of law to be excused? Of fact, because Constantine did not make a grant of Rome and the provinces; a fact of which a man of the common people might well be ignorant, but not the supreme pontiff. Of law, because they could not be granted; which any Christian ought to know. And so, will stupid credulity give you a right to that which, had you been more conscientious, would never have been yours? Well! Now, at least, after I have shown that you held possession through ignorance and stupidity, do you not lose that right, if it was such? and what ignorance unhappily brought you, does not knowledge happily take away again? and does not the property revert from the illegal to the legal master, perchance even with interest? But if you continue to keep possession in the future, your ignorance is henceforth changed into malice aforethought and into deceit, and you become a fraudulent holder.

The Roman church has entered a prescription! O simpletons, O ignoramuses in divine law! No length of years whatever can [\[See Latin page\]](#) destroy a true title. Or indeed, if I were captured by barbarians and supposed to have perished, and should return again home after a hundred years of captivity, as a claimant of my paternal inheritance, should I be excluded? What could be more inhuman! And, to give another example, did

Jephthah, the leader of Israel, when the Ammonites demanded back the land from “the borders of Arnon even unto Jabbok and unto Jordan,” reply, “Israel has prescribed this now through three hundred years’ occupation”? Or did he not show that the land which they demanded as theirs, had never been theirs, but had been the Amorites’? And the proof that it did not belong to the Ammonites was that they had never in the course of so many years claimed it. [\[524\]](#)

The Roman church has prescribed! Keep still, impious tongue! You transfer “prescription,” which is used of inanimate, senseless objects, to man; and holding man in servitude is the more detestable, the longer it lasts. Birds and wild animals do not let themselves be “prescribed,” but however long the time of captivity, when they please and occasion is offered, they escape. And may not man, held captive by man, escape?

Let me tell why the Roman pontiffs show fraud and craft rather than ignorance in using war instead of law as their arbiter,—and I believe that the first pontiffs to occupy the city [of Rome] and the other towns did about the same. Shortly before I was born, Rome was led by an incredible sort of fraud, I call those then present there to witness, to accept papal government or rather usurpation, after it had long been free. [\[525\]](#) The Pope was Boniface IX, fellow of Boniface VIII in fraud as in name,—if they are to be called Boniface (benefactor) at all, who are the worst malefactors. And when the Romans, after the treachery had been detected, stirred up trouble, the good Pope, after the manner of Tarquinius, struck off all the tallest poppies with his stick. [\[526\]](#) When his successor, Innocent [VII], afterwards tried to [\[See Latin page\]](#) imitate this procedure he was driven out of the city. I will not speak of other Popes; they have always held Rome down by force of arms. Suffice it to say that as often as it could it has rebelled; as for instance, six years ago, [\[527\]](#) when it could not obtain peace from Eugenius, and it was not equal to the enemies which were besieging it, it besieged the Pope within his house, and would not permit him to go out before he either made peace with the enemy or turned over the administration of the city to the citizens. But he preferred to leave the city in disguise, with a single companion in flight, rather than to gratify the citizens in their just and fair demands. If you give them the choice, who does not know that they would choose liberty rather than slavery?

We may suspect the same of the other cities, which are kept in servitude by the supreme pontiff, though they ought rather to be liberated by him from servitude. It would take too long to enumerate how many cities taken from their enemies the Roman people once set free; it went so far that Titus Flaminus [Flamininus] set free the whole of Greece, which had been under Antiochus, [\[528\]](#) and directed that it enjoy its own laws. But the Pope, as may be seen, lies in wait assiduously against the liberty of countries; and therefore one after another, they daily, as opportunity affords, rebel. (Look at Bologna just now.) And if at any time they have voluntarily accepted papal rule, as may happen when another danger threatens them from elsewhere, it must not be supposed that they have accepted it in order to enslave themselves, so that they could never withdraw their necks from the yoke, so that neither themselves nor those born afterwards should have control of their own affairs; for this would be utterly iniquitous.

“Of our own will we came to you, supreme pontiff, that you might govern us; of our own will we now leave you again, that you may govern us no more. If you have any claim against us, let [\[See Latin page\]](#) the balance of debit and credit be determined. But you want to govern us against our will, as though we were wards of yours, we who perhaps could govern you more wisely than you do yourself! Add to this the wrongs all the time being committed against this state either by you or by your magistrates. We call God to witness that our wrong drives us to revolt, as once Israel did from Rehoboam. And what great wrong did they have? What [a small] part of our calamity is the [mere] payment of heavier taxes! What then if you impoverish the Republic? You *have* impoverished it. What if you despoil our temples? You *have* despoiled them. What if you outrage maidens and matrons? You *have* outraged them. What if you drench the city with the blood of its citizens? You *have* drenched it. Must we endure all this? Nay, rather, since you have ceased to be a father to us, shall we not likewise forget to be sons? This people summoned you, supreme pontiff, to be a father, or if it better pleases you, to be their lord, not to be an enemy and a hangman; you do not choose to act the father or the lord, but the enemy and the hangman. But, since we are Christians, we will not

imitate your ferocity and your impiety, even though by the law of reprisal we might do so, nor will we bare the avenging sword above your head; but first your abdication and removal, and then we will adopt another father or lord. Sons may flee from vicious parents who brought them into the world; may we not flee from you, not our real father but an adopted one who treats us in the worst way possible? But do you attend to your priestly functions; and don't take your stand in the north, and thundering there hurl your lightning and thunderbolts against this people and others."

But why need I say more in this case, absolutely self-evident as it is? I contend that not only did Constantine not grant such great possessions, not only could the Roman pontiff not hold them by prescription, but that even if either were a fact, nevertheless either right would have been extinguished by the crimes of the possessors, for we know that the slaughter and devastation of all Italy and of many of the provinces has flowed from this [\[See Latin page\]](#) single source. If the source is bitter, so is the stream; if the root is unclean, so are the branches; if the first fruit is unholy, so is the lump. ^[529] And *vice versa*, if the stream is bitter, the source must be stopped up; if the branches are unclean, the fault comes from the root; if the lump is unholy, the first fruit must also be accursed. Can we justify the principle of papal power when we perceive it to be the cause of such great crimes and of such great and varied evils?

Wherefore I declare, and cry aloud, nor, trusting God, will I fear men, that in my time no one in the supreme pontificate has been either a faithful or a prudent steward, but they have gone so far from giving food to the household of God that they have devoured it as food and a mere morsel of bread! And the Pope himself makes war on peaceable people, and sows discord among states and princes. The Pope both thirsts for the goods of others and drinks up his own: he is what Achilles calls Agamemnon, Δημοβόρος βασιλεύς, "a people-devouring king." The Pope not only enriches himself at the expense of the republic, as neither Verres nor Catiline nor any other embezzler dared to do, but he enriches himself at the expense of even the church and the Holy Spirit as old Simon Magus himself would abhor doing. And when he is reminded of this and is reproved by good people occasionally, he does not deny it, but openly admits it, and

boasts that he is free to wrest from its occupants by any means whatever the patrimony given the church by Constantine; as though when it was recovered Christianity would be in an ideal state,—and not rather the more oppressed by all kinds of crimes, extravagances and lusts; if indeed it can be oppressed more, and if there is any crime yet uncommitted!

And so, that he may recover the other parts of the Donation, money wickedly stolen from good people he spends more wickedly, and he supports armed forces, mounted and foot, with which all places are plagued, while Christ is dying of hunger and nakedness in so many thousands of paupers. Nor does he know, [\[See Latin page\]](#) the unworthy reprobate, that while he works to deprive secular powers of what belongs to them, they in turn are either led by his bad example, or driven by necessity (granting that it may not be a real necessity) to make off with what belongs to the officers of the church. And so there is no religion anywhere, no sanctity, no fear of God; and, what I shudder to mention, impious men pretend to find in the Pope an excuse for all their crimes. For he and his followers furnish an example of every kind of crime, and with Isaiah and Paul, we can say against the Pope and those about him: “The name of God is blasphemed among the Gentiles through you, you who teach others, but do not teach yourselves; who preach against stealing and yourselves are robbers; who abhor idols, and commit sacrilege; who make your boast of the law and the pontificate, and through breaking the law dishonor God, the true pontiff.”[\[530\]](#)

But if the Roman people through excess of wealth lost the well-known quality of true Romans; if Solomon likewise fell into idolatry through the love of women; should we not recognize that the same thing happens in the case of a supreme pontiff and the other clergy? And should we then think that God would have permitted Sylvester to accept an occasion of sin? I will not suffer this injustice to be done that most holy man, I will not allow this affront to be offered that most excellent pontiff, that he should be said to have accepted empires, kingdoms, provinces, things which those who wish to enter the clergy are wont, indeed, to renounce. Little did Sylvester possess, little also the other holy pontiffs, those men whose presence was inviolable even among enemies, as Leo’s presence overawed and broke down the wild soul of the barbarian king, which the strength of Rome had not availed to break down nor overawe.[\[531\]](#) But recent supreme pontiffs,

that is, those having riches and pleasures in abundance, seem to work hard to make themselves just as impious and foolish as those early pontiffs were wise and holy, and to extinguish the lofty [\[See Latin page\]](#) praises of those men by every possible infamy. Who that calls himself a Christian can calmly bear this?

However, in this my first discourse I do not wish to urge princes and peoples to restrain the Pope in his unbridled course as he roams about, and compel him to stay within bounds, but only to warn him, and perhaps he has already learned the truth, to betake himself from others' houses to his own, and to put to port before the raging billows and savage tempests. But if he refuses, then I will have recourse to another discourse far bolder than this.^[532] If only I may sometime see, and indeed I can scarcely wait to see it, especially if it is brought about by my counsel, if only I may see the time when the Pope is the vicar of Christ alone, and not of Caesar also! If only there would no longer be heard the fearful cry, "Partisans for the Church," "Partisans against the Church," "The Church against the Perugians," "against the Bolognese"! It is not the church, but the Pope, that fights against Christians; the church fights against "spiritual wickedness in high places."^[533] Then the Pope will be the Holy Father in fact as well as in name, Father of all, Father of the church; nor will he stir up wars among Christians, but those stirred up by others he, through his apostolic judgment and papal prerogative, will stop.^[534]

FOOTNOTES

^[411] The meaning of this word in this connection is unknown. The chapters to which it is prefixed are for the most part supposed to have been early marginal annotations afterwards incorporated in the text of the Decretum. Cf. Friedberg, *Corpus Iuris Canonici*, vol. I, Prolegomena, p. lxxxvi.

^[412] The subject of chapters xi and xii is, "The Emperors must be under the Pontiffs, not over them." Chapters xiii and xiv continue the same subject.

^[413] *retro* was used at Rome in the latter part of the eighth century with the peculiar meaning of "still" or "again." This is one of the clues to the date and place of the document. Henderson's translation is erroneous.

^[414] Ps. cxxxix, 7.

^[415] I Tim. v, 20.

^[416] Valla's error for Marcellinus. The whole story is apocryphal.

[417] A reference to the reforming councils of the fifteenth century.

[418] Valla was in the service of the king of Sicily and of Naples when he wrote this.

[419] The phrase “Italy and the western provinces,” in the Donation of Constantine, meant to the writer of that document the Italian peninsula, including Lombardy, Venetia, Istria, and adjacent islands. Other countries probably did not occur to him as part of the Roman Empire. Valla, however, followed the current interpretation.

[420] In many versions of the Life of Sylvester there is a marvellous story of an enormous serpent, finally subdued by the saint. Cf. *infra*, p. 143; Coleman, Constantine the Great and Christianity, pp. 161 *et seq.*; Mombricitus, Sanctuarium, Sive Vitae collectae ex codibus (Milan, c. 1479), v, ii, pp. 279 *et seq.*, also Paris edition, 1910. For the story of Bel and the Dragon, cf. the book of that name in the Apocrypha.

[421] I have made two English paragraphs of the rather long Latin one. [Ed.]

[422] Acts xx, 35.

[423] Matt. x, 8.

[424] I Cor. ix, 15.

[425] Rom. xi, 13.

[426] Quoted, freely, from Matt. vi, 19 and Luke x, 4.

[427] Quoted, freely, from Matt. xix, 24; Mk. x, 25; Luke xviii, 25.

[428] I Tim. vi, 7-11.

[429] Acts vi, 2.

[430] II Tim. ii, 4.

[431] Jer. xlviii, 10, quoted freely.

[432] Free quotations from John xxi, 15-17.

[433] John xviii, 36.

[434] Matt. iv, 17.

[435] Matt. xx, 25-28.

[436] I Cor. vi, 2-5, distorted in punctuation and meaning. Paul argues that cases should be settled inside the church, and that even the humblest Christians are competent to act as judges; Valla quotes him to show that church leaders are not to be judges.

[437] Quotations are from Matt. xvii, 25-26.

[438] Mk. xi, 17.

[439] John xii, 47.

[440] Matt. xxvi, 52.

[441] Matt. xvi, 19.

[442] Matt. xvi. 18.

[443] Matt. iv, 8-9, free quotation.

[444] Matt. xi, 28-30, with the phrases transposed.

[445] Matt. xxii, 21.

[446] Eutropius, *Breviarum ab urbe condita*, X, xvi, 1.

[447] *Ibid.*, X, xvii, 1 and 2.

[448] The antipope elected by the Council of Basle in 1439. This reference is one of the clues to the date of Valla's treatise.

[449] Valla's statement about Eusebius' Church History is slightly overdrawn. Some passages, while not definitely saying that Constantine was a Christian from boyhood, would naturally be construed as implying this, especially when taken in connection with the chapter headings in use long before Valla's time; e.g., ix, 9, §§ 1-12. In his *Life of Constantine*, i, 27-32, however, Eusebius tells the story of the Emperor's conversion in the campaign against Maxentius in 312 by the heavenly apparition, thus implying that he was not previously a Christian. Valla does not seem to have known of this latter work. Nor is he aware of the passage in Jerome, *Chron. ad. ann.*, 2353, that Constantine was baptized near the end of his life by Eusebius of Nicomedia.

[450] This is an extract from a spurious letter purporting to be from Melchiades, or Miltiades; as palpable a forgery as the Donation of Constantine itself. The whole letter is given in Migne, P. L., viii, column 566.

For the question when Constantine became a Christian, and of his relations with the Popes and the church, cf. Coleman, *Constantine the Great and Christianity*, with references to sources and literature.

[451] A number of chapters in Gratian's *Decretum* added after Gratian have this word at their head, the one containing the Donation of Constantine among them. Cf. Friedberg's edition of the *Decretum Gratiani*, *Prima pars*, dist. xcvi, c. xiii, in his *Corpus Iuris Canonici*, Leipsic, 1879-1881.

[452] *Decretum Gratiani*, *Prima pars*, dist. xcvi, c. xiii; in Friedberg, *Corpus Iuris Canonici*, vol. II, p. 342.

[453] *Ibid.*, *Pars prima*, dist. xv, c. iii, *Palea* 19; in Friedberg, vol. II.

[454] Cf. Voragine, *Golden Legend*, trans. by Wm. Caxton, rev. by Ellis (London, 1900).

[455] December 31.

[456] A reference to the story of the three young men in the bodyguard of Darius; cf. I Esdras iii and iv.

[457] In the following section my translation of the phrases of the Donation is harmonized so far as possible with the translation in E. F. Henderson, *Select Historical Documents of the Middle Ages*.

[458] Cf. Coleman, *Constantine the Great and Christianity*, p. 224, ll. 8 *et seq.*

[459] Virgil, *Aeneid*, ii, 77-78. Dryden's translation.

[460] The text of the Donation which Valla used, though apparently in a copy of Gratian's *Decretum* extant in his time, differs here and in a number of other

places, from the texts which we have, whether in Gratian's Decretum, or in the Pseudo-Isidorian Decretals.

[461] The word *satrap* was in fact applied to higher officials at Rome only in the middle of the eighth century. Scheffer-Boichorst, *Mitteilungen des Instituts f. österreichische Geschichtsforschung*, x (1889), p. 315.

[462] Tertullian tells this apocryphal story in his *Apology*, chaps. 5 and 21. For a translation of letters alleged to have been written to Tiberius by Pilate, see *Nicene and Post-Nicene Fathers*, ed. Philip Schaff (New York, 1890-1897), vol. VIII, pp. 459-463.

[463] Valla's argument in this paragraph is partly based on the defective text of the Donation which he used, cf. *supra*, [p. 85, note 2](#). Zeumer's text would be translated, "all the Roman people who are subject to the glory of our rule," and Friedberg's, "all the people subject to the glorious rule of Rome."

[464] Virgil, *Aeneid*, vi, 852.

[465] The conjunction "seu" in classical Latin meant, as Valla insists, "or"; in the eighth century it was often used with the meaning "and." The forger of the Donation used it in the latter sense. Valla did not see the significance of this usage for dating the forgery.

[466] Cf. *supra*, [p. 85, note 2](#).

[467] "firmos patronos,"—this use of "firmus" characterizes the style of Pope Paul I (757-767). See Scheffer-Boichorst, *op. cit.*, p. 311.

[468] Rev. v, 12; with variations.

[469] Part of this criticism rests upon the peculiarities of the text of the Donation which Valla used.

[470] Cf. Coleman, *Constantine the Great and Christianity*, pp. 148-151, 161-164.

[471] Ps. lxxxix, 12.

[472] Rom. i, 28, with the person of the verb changed.

[473] Matt. xxvii, 28; John xix, 2.

[474] Here, as was common in medieval Latin, "seu" is the equivalent of "et," and means "and." Valla's criticism is correct, but might go further in fixing the time of the forgery. Cf. *supra*, [p. 91, note 1](#).

[475] Lucan, *Pharsalia*, i, 7.

[476] In our best texts of the Donation this word is "banda," used in the eighth century for "colors" or "flags."

[477] Horace, *Ars Poetica*, l. 97.

[478] Julius Valerius, *Res Gestae Alexandri*, i, 37.

[479] At Rome in the eighth century, the time of the forgery, "militia" indicated a civil rank, rather than soldiers.

[480] The allusion is to the title of Patrician given to Pippin and to his sons as defenders of the Roman See.

[481] The office of consul as it existed in the Republic and the Empire disappeared in the time of the German invasions. The word was later applied quite differently, to a group, practically a social class, at Rome.

[482] Where Valla's text of the Donation reads "concubitorum," Zeumer's reads "excubiorum" [guards].

[483] Martial, XIV, 141 (140).

[484] Valla for this part of his criticism uses the rather unintelligible order of words found in most texts of the Donation, instead of the more intelligible order which he used in his earlier quotations. Cf. pp. 102, 103.

[485] Valla's text of the Donation in this paragraph differs greatly from Zeumer's, Hinschius', and Friedberg's. It is not very clear in any of the texts whether the intent is to give the Pope power to take any one whomsoever into the clergy and thus relieve him from civil and military duties, or to prevent the Roman nobility from forcing their way into ecclesiastical offices against the will of the Pope.

[486] Ps. xxi, 3, with variation.

[487] Valla does not, here, quote his own text of the Donation correctly.

[488] This singular confusion about the crown in the Donation is explained by Brunner, *Festgabe für Rudolf von Gneist*, pp. 25 *et seq.*, as giving the Pope the possession, but not the use, of the imperial crown, thus paving the way for his prerogative of conferring the crown upon Louis the Pious in 816. Scheffer-Boichorst takes the whole episode as an attempt of the forger to glorify Sylvester by having the emperor honor him with the imperial crown, and having the Pope display the clerical humility (and pride) of rejecting it.

[489] Valla's text of the Donation here has "sive" for "seu," cf. *supra*, [p. 91](#), [note 1](#). In the whole paragraph there are many deviations from other texts of the Donation.

[490] Cf. *supra*, pp. [41 et seq.](#), [49 et seq.](#)

[491] This phrase as used in the Donation probably meant Lombardy, Venetia and Istria; i.e., practically, northern, as distinct from peninsular, Italy. Cf. *supra*, [p. 27](#), [note 2](#), also, Döllinger, *Papstfabeln* (ed. Friedrich), p. 122, note. In classical Latin it would have been, as Valla insists, a vague term.

[492] Cf. *supra*, pp. [91](#), [109](#).

[493] Cf. *supra*, [p. 95](#).

[494] King [rex] was a forbidden title at Rome after the time of the Tarquins.

[495] A parody on Matt. v, 18.

[496] Rev. xxii, 18-19.

[497] "Pagina" in medieval Latin often meant "document."

[498] In the *Liber Pontificalis* (ed. Duchesne, i, 454) the keys of Ravenna and other cities included in the so-called Donation of Pippin are said to have been placed in "the confession of St. Peter" (i.e., before his tomb). This association seems to have been common in the eighth century.

[499] Cf. *supra*, p. 85.

[500] In the best text of the Donation this is not called the fourth consulship of Gallicanus. In any case, however, the date is impossible; no such consulship as this is known.

[501] II Kings xv, 5.

[502] This apocryphal story ran that the Sibyl prophesied of Christ, and that Augustus erected an altar to him.

[503] The Temple of Peace was built by Vespasian and was not destroyed until it was burned down in the time of Commodus.

[504] This episode in the *Gesta*, or *Actus*, or *Vita*, *Silvestri*, as may be gathered from Valla's subsequent discussion, involves an enormous serpent, dwelling in a cave under the Tarpeian rock, devastating the entire city of Rome with his poisonous breath, appeased only by maidens being given him to devour, and finally bound forever in his cave by Sylvester. For references, cf. Coleman, Constantine, etc., pp. 161, 168.

[505] Apparently Valla assumes that the *Gesta Silvestri* was written by a Greek named Eusebius, but not Eusebius of Caesarea, author of the *Church History*. Cf., however, Coleman, Constantine, pp. 161-168.

[506] *Satura*, x, 174-175.

[507] Cf. the story of Bel and the Dragon in the *Apocrypha*.

[508] *Factorum et dictorum memorabilium libri novem*, V, vi, 2.

[509] *Ibid.*, I, viii, 3.

[510] Livy, VII, 6, incorrectly summarized.

[511] Livy, Preface, 7.

[512] Livy, V, 21, 9.

[513] Terentius Varro, *de lingua latina*, lib. v, 148-150.

[514] Valerius Maximus, *factorum et dictorum memorabilium*, lib. i, viii, 7.

[515] *Ibid.*, i, viii, 3.

[516] *Ibid.*, i, viii, 4, with the substitution of "seen" for "given."

[517] In a disputation between Sylvester and Jewish rabbis the rabbis are said to have killed a bull by shouting the sacred name, Jehovah, and Sylvester is said to have brought him to life by whispering the name of Christ. Cf. Coleman, Constantine the Great, etc., p. 163.

[518] These stories were to be found, among other places, in the *Mirabilia urbis Romae*, a guidebook to Rome dating from the twelfth century. English translation by F. M. Nichols, *The Marvels of Rome* (London and Rome, 1889), pp. 19-20.

[519] This clause, though not in the MS. or Hutten, seems necessary to the sense of the following clause, so I have translated it from Bonneau's text. In the *Vita Silvestri* we are told that the pagan priests ordered Constantine to bathe in infants' blood in order to cure himself of leprosy. Cf. Coleman, Constantine the Great, etc., p. 162.

[520] It will be remembered that Valla wrote this while in the service of the King of Naples, who was in conflict with imperial as well as with papal claims.

[521] A forgery of the eleventh century. Cf. E. Emerton, *Medieval Europe*, p. 55.

[522] Gossip had it that Boniface VIII induced his predecessor to abdicate by angelic warnings, which he himself produced through improvised speaking tubes.

[523] The assassination of Vitelleschi, supposedly by order of the Pope, took place in March, 1440, and is one of the means of dating Valla's treatise.

[524] Judges xi, 12-28.

[525] For these episodes, cf. Creighton, *History of the Papacy*, etc., vol. I, *passim*.

[526] Tarquinius, by striking down the tallest poppies with his cane, gave the hint that the leaders of the opposition should be executed; cf. Livy, I, 54.

[527] The ensuing episode occurred in 1434 and thus fixes the date of the writing of this passage as 1439 or 1440. Cf. Mancini, *Vita di Lorenzo Valla*, p. 163.

[528] Flamininus had defeated Philip V of Macedonia, and it was from Philip, not Antiochus, that he "freed" Greece.

[529] A reminiscence of Rom. xi, 16.

[530] Free quotations from Rom. ii, 21-24.

[531] A reference to the well-known interview in which Leo I persuaded Attila to desist from his invasion of Italy.

[532] This other discourse did not appear.

[533] Eph. vi, 12.

[534] The MS., Cod. Vat. Lat. 5314, on which this translation is based, was finished December 7, 1451.

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